

FAMILY LAW NOTES

Topic one

Introducing Family Law.



A. WHAT IS FAMILY LAW?

To define family law encompasses similar problems like those encountered in defining what a family is. This is so because there is no accepted definition. Family law according to Murphy (2005) and B. Stark (2005) (the growing significance of international family law) is seen as the law governing the relationships between children and parents, and between adults in close emotional relationships.

This means that Family law cannot be contained in one definition. This is so because many areas of law have an impact on family life: from taxation, immigration, insurance, social security etc.

B. DEFINITION OF A FAMILY.

Defining what a family is rather difficult. Most definitions center on an 'ideal family' definition which is a mother, father and probably two children yet most people do not experience this particular form of family.

A family may be looked at as a basic society unit constituted by at least of two people (husband and wife) whose relationship may fall within blood relation that is to say Marriage for members of a household or children. This definition is in consonance with Bromely's family law 5th Edition. However, the husband and wife can be considered as a family even before they get children or after their children have left home to establish their own families. In some cases too, wife and husband or blood relatives for example Brothers, sisters can form a family. There is need to distinguish between an English and African family. English family is a nuclear consisting of husband, wife and children below 18years. The African family is an extended one, which not only consists of members of a nuclear family but also other blood relatives/marriage/friendship.

The 1999 African Union's Charter on the Rights and Welfare of the Child Article 18(1) attempts to give the nature of a family thus; *"The family shall be the natural unit and basis of society. It shall enjoy the protection and support of the State for its establishment and development."*

The Universal Declaration of Human Rights in similar terms states under Article 16(3) that, *"The family is the natural and fundamental group unit of society and is entitled to protection by society and the State."*

The Preamble of the United Nations Convention on the Rights of the Child (1989),

states that "... *the family (is) the fundamental group of society and the natural environment for the growth and well-being of all its members and particularly children* "

In ***Hendriks v Netherlands***, UN Human Rights Committee, No. 201/1985, the committee states that, "*The idea of the family must necessarily embrace the relations between parents and child.*



Although divorce legally ends a marriage, it cannot dissolve the bond uniting father - or mother - and child- this bond does not depend on the continuation of the parents' marriage."

From the above, one idea stands out, that is the institutional nature of a family. It is possible to distinguish families (a group of people related by blood, marriage or adoption); a nuclear family (parents and their dependent children); extended families (the nuclear family plus the wider kin, e.g. grandparents); kinships (the larger family groups related by blood or marriage); and households (a group of people sharing accommodation).

C. CHARACTERISTICS OF A FAMILY.

- Patriarchal
- Gender roles.

D. TYPES OF A FAMILY.

There are two types of families, i.e. nuclear including father mother and children and extended including uncles, aunts and grandparents. According to Bromley's, a family is a basic social unit constituted at least by two people whose relationship may fall in;

- Husband and wife.
- Two persons living together as if married.
- Parent living with children.
- Brother Sister and other relations.

E. FAMILY AND THE LEGAL FRAMEWORK.

In Uganda, all laws relating to domestic relations do not define what a family is.

Under **Objective XIX** of the National Objectives and Directive Principles of State Policy in the **1995 Constitution of Uganda (as amended)**, a family is described as *the natural and basic unit of society and is entitled to protection by society and the State*. This is a similar description as provided by the international instruments already quoted.

The Constitution further provides under **Art 31** for the rights of a family but doesn't define it.

The law as applied by Courts of law often rely on the person in the street's definition

of a term where there is no legally recognised definition provided by the law. Here the Court would ask itself, how would a person in the street define a family? The difficulty with this is that although there may be some cases where everyone would agree that a particular group of people is a family, there are many other cases where, when asked, people would answer ‘I don’t know’, or



there would be conflicting answers, reflecting different values, religious beliefs or cultural perspectives. So, asking a person in the street does not help to clarify the definition of family in ambiguous cases.

Courts had gone ahead to restrict the definition of family to only occur where parties are in some sort of marriage. In 1950 in **Gammans v Ekins [1950]**, talking of an unmarried couple, it was stated: *‘to say of two people masquerading as these two were as husband and wife, that they were members of the same family, seems to be an abuse of the English Language’*. However as expressed in the leading case of **Fitzpatrick v Sterling Housing Association Ltd**, the former approach no longer represents good law.

In **Fitzpatrick v Sterling Housing Association Ltd [2000]**, Mr Thompson and Mr Fitzpatrick had lived together in a flat for 18 years until Mr Thompson died. Under the Rent Act 1977 Mr Fitzpatrick could succeed to the tenancy, which had been in Mr Thompson’s name alone, if he was a member of Mr Thompson’s family.

So, the core issue was whether a gay or lesbian couple could be a family.

By a three to two majority the House of Lords held that Mr Thompson and Mr Fitzpatrick were a family. The majority accepted that the meaning of family is not restricted to people linked by marriage or blood. Lord Slynn suggested that the hallmarks of family life were ‘that there should be a degree of mutual interdependence, of the sharing of lives, of caring and love, or commitment and support’. He later added that the relationship must not be ‘a transient superficial relationship’. Applying these criteria to the couple in question, they were certainly family members. Mr Fitzpatrick had cared for Mr Thompson during the last six years of his illness. Lord Clyde, unlike the others in the majority, thought that it would be difficult for a couple to show that they were a family unless there was an active sexual relationship or the potential for one. He felt that the sexual element was important if a distinction was to be drawn between families and acquaintances. The dissenting judges argued that the paradigm of the family was a legal relationship (e.g. marriage or adoption) or by blood (e.g. parent–child). As the couple did not fall into these definitions, nor did they mirror them, they could not be regarded as a family, although the minority added that they believed Parliament should consider reforming the law so that a survivor of a gay or lesbian affair could take on a tenancy.

Conclusively, from the foregoing it is right to note that though there is no agreed definition of what a family is, there are workable definitions as expressed above. Key to note is that the law does not restrict the definition of family life to those who are married or those who are related by blood. It is willing to accept that other less formal relations can be family if they can demonstrate a sharing of lives and degree of

intimacy and stability. However, it would be wrong to say that the law takes a pure function-based approach because if a couple are married they will be regarded as a family, even though their relationship is not a loving, committed, or stable.

F. RIGHTS OF A FAMILY.



A family is protected under a constitution, for Uganda's case Article 31 of the 1995 constitution protects all Ugandan families. Under this Article, courts protect family, rights of marriage of persons of 18 years and above. It also acknowledges equal rights during the marriage and at dissolution of marriage. The Article further recognizes parental rights over their children rights of inheritance.

In **Corbet Vs Cprnett (1970)**, the parties had entered into a marriage. The petitioner knew that a respondent had been registered at Birth as female sex and in 1960 undergone a sex- change operation consisting in removal of the testicles and the scrotum to enable the formation of an artificial vagina in front of the anus. And respondent had since then lived as a woman. 14 days later and petitioner filed for a declaration that a marriage was null and void because respondent was a person of a male sex. The issue was whether there was marriage?

Held, *while sex is an essential determinant of a relationship called marriage, it is not the only essential element, but however sex is a characteristic that makes sex distinguished from other relations and so there was no marriage. Marriage being essentially a relationship between a man and woman and validity of the marriage depended on whether a respondent was or was not a woman and the respondent being a biological male from birth, the so called marriage was void.*

In **Balfour v. Balfour**, a wife alleged that they entered an oral contract where the husband agreed to make the wife an allowance of £30 a month. The two parties had not at that time agreed to live apart but did so frequently when differences arose between them. In an action by the wife against the husband to recover money which she claimed was due to her under the agreement, the alleged consideration for that agreement being a promise by her to support herself without calling upon the husband.

Held, there was no contract in legal sense, the alleged parole contract was no more than a mere arrangement between the husband and wife living together in intercourse and the parties never intended to make a bargain that could be enforced in law. Hence no contract for maintenance.

G. FUNCTIONS OF THE FAMILY

The functions a family provides to both an individual and society cannot be summed up conclusively but we shall attempt to state some of them.

In **Huang v Secretary of State for the Home Department, [2007]**, the House of Lords stated this about a family, *"Human beings are social animals. They depend on others. Their family, or extended family, is the group on which many people most heavily depend, socially, emotionally and often financially. There comes a point at which, for some, prolonged and*

unavoidable separation from this group seriously inhibits their ability to live full and fulfilling lives."

The functions of a family therefore include:



- **Provision of emotional security** to its members. Family members usually give emotional support and care for each other. Parents give children companionship, security and love as they grow up and as such children need to grow up in proper families.
- Families can be regarded as essential to the development of people's identity and to the pursuit of their goals in life. Similarly, families enable children to develop their own characters and personalities.
- **Families also benefit the state.** It is generally believed that strong families make up a strong state. Traditions, values and rituals are passed through family.
- A mechanism for resolution of disputes.
- Confers status, privileges and rights.
- It allows property administration, adjustment and division

H. GIFTS BETWEEN ENGAGED COUPLES

At common law, a gift made by a party for an engagement to the other party in contemplation of marriage could not be recovered by the donor if even if he was in breach of the engagement without legal justification he could not recover the engagement ring but he do so if the woman was in breach of the contract.

Here Read **Cohen Vs Sellar (1926), Jacobs Vs Devis (1917)**

I. COHABITATION.

Since a marriage is an agreement between a man and a woman, it imposes rights and duties between the two hence, a legal relationship between them. However, cohabitation is an arrangement in which a man and a woman decide to live together as husbands and wife but decide not to go through any form of marriage. These arrangements are not recognized as marriage irrespective of length of time and couple may have stayed together or the no of children they have.

Topic 2

Promises to marry.



A. MEANING OF THE PHRASE “PROMISES TO MARRY”.

These are legal implications that arise when one party makes inferences or commit that commit them to marriage. Promises to marry can be enforced in particular circumstances, however they need not be in writing since they can be inferred. Such promises have to be proved and corroborated.

The legal position is that these promises can be enforced under certain circumstances. They do not have to be in writing but they can be inferred from the conduct of parties. The plaintiff's evidence must be collaborated by letters, engagement rings, evidence of 3rd parties, birth of a child and introduction ceremony or part payment of bride price.

At common law, promise to marry amounts to contracts provided that there was an intention to enter into legal relationships because of their being highly, personal and commercial nature they possessed certain peculiar characteristics but as a general rule, they were governed by the general principle of the law of contract. Consequently, if either parties withdraw from the contract without lawful justification, the other party could sue for breach of contract.

In a case of ***Woodman v. Woodman***, The plaintiff sued to recover damages for breach of promise to marry; she used three letter evidence, i.e. one by herself, the second by her brother in law asking the defendant to make his position clear and third by the pastor where the plaintiff prayed. The defendant did not answer any of those letters. The plaintiff averred that silence amounted to consent, she also relied on the fact that she picked a ring that belonged to the defendant but he had not asked for it. The court did not find it satisfactory to amount to a promise and silence did not amount to acceptance. All circumstances must be looked into before judging a case.

Larok Vs Obuoya (1970). In this case, a plaintiff successfully sued and defendant who promised to marry her and got pregnant. Damages were rewarded for injured feelings and reduced chances of marriage to the plaintiff. This is enforceable either when a termination has been communicated to the plaintiff or when the date of marriage passes with no preparation for marriage and no indication that a marriage will be held at a future date.

However, it is important to note that promises to marry are not enforceable if

they are against public policy.

In *Spiers v. Hunt*, the defendant promised to marry the plaintiff on the death of his wife which was contrary to public policy.



Held, to hold such a contract enforceable is to introduce into social life an immoral principle and it is only in the most corrupt conditions of society that such an agreement could be tolerated as lawful.

Notwithstanding the above, there are two exceptions to this rule;

i. If the plaintiff can show she lacked knowledge

In **Shaw v. Shaw**, the plaintiff was a widow when she met the deceased who claimed to be a widower and they agreed to marry, oblivious to the plaintiff, the wife of the deceased was alive at the time and on the demise of the deceased, the plaintiff learnt that they were not married and brought an action against the administrators of the estate of the deceased who pleaded limitation Act and contrary to public policy since the wife was still alive.

Held, promise to marry implied warranty that the deceased was in a position to do so which warranty continued throughout the deceased's life time and the plaintiff's right of action was not extinguished.

The plaintiff being unaware at all material times that the deceased was married, the court was not under duty to raise the question whether the promise to marry was unenforceable as contrary to public policy and the action was maintainable.

ii. If the promise to marry was made after *decree nisi* had been made;

In **Fender v. Mildmay**, the respondent's wife petitioned for a divorce due to the respondent's adultery with the appellant. On two occasions after declaration of *decree nisi* but before declaration of decree absolute the respondent promised to marry the appellant, after declaration of decree absolute the respondent refused to marry the appellant.

Held, there was no rule of public policy which prevented the contract from being enforced. The enforcement of a contract is not against public policy unless it is likely to lead to an injurious action.

The whole position of married parties is changed and fixed not by a mere separation or lodging a petition for divorce, but by a pronouncement of *decree nisi* and the further period of waiting after the decree is imposed in the public interesting order to secure full disclosure before the court.

B. WHAT IS MARRIAGE?

Just like the earlier terms proved difficult to define, so is marriage.



It is usually the case that people may say that marriage is whatever the parties to a marriage take it to be. This is the first approach to defining it.

Thus, a Christian couple seeking to base their marriage on biblical principles may well see their marriage in very different terms from a couple who understand their marriage to be based on Hindu or Islamic principles.

THE LEGAL DEFINITION OF MARRIAGE

The most widely accepted definition of marriage in the law is that in **Hyde v Hyde and Woodhouse (1866) LR 1 PD 130 at p. 133** ‘the voluntary union for life of one man and one woman to the exclusion of all others’.

It should however be noted that this merely an ideal promoted by the law rather than a proper definition of marriage.

As we shall note, it is possible to have a legally valid marriage which is polygamous in nature, divorce is also possible making the “for life” notion inapplicable.

It is further argued that polygamous marriages are also covered by the *Hyde* definition since here a man will contract separate marriages with each woman so for each it is a union between one man and one woman.

Marriage is therefore understood to be a consensual contract between the parties involved.

C. WHO MAY MARRY?

Article 31(1) of the Constitution is to the effect that men and women of the age of eighteen years and above have the right to marry. This means the legal age of marriage in Uganda is eighteen years and above.

In a nutshell, a person domiciled in Uganda has capacity to marry if: one party is male and the other female, neither party is already married (please refer to accepted polygamous marriages in Uganda), both parties are over the age of 18, parties are not related within the prohibited degrees of consanguinity or affinity.

D. PROMISE TO MARRY AND AGREEMENT TO MARRY.

Not every agreement or promise to marry will result in a marriage.

A promise to marry is said to be in place under common law when parties decide to get married and act in a manner that shows their intention to marry.

Traditionally under common law, a promise to marry amounted to a contractual undertaking that was legally enforceable provided the aggrieved party could show that the party at fault intended to enter into the legal relationship but withdrew from it without any legal justification whatsoever.



It is worth noting that there can be no action for breach of a promise to marry unless it is further shown that a contract to marry had been made. However, this type of contract is different from the normal contract in that, it need not be evidenced by writing and the common law provided no particular form of words of promise.

It also had to be shown that a mutual promise had existed, that is, a promise by one person to marry another was not binding unless and until that other also promised to marry the first person. Mutual promises could be imputed from the parties' conduct.

There was no legal requirement that the declaration of an intention to marry by both parties be made at the same time but a reasonable time was required for the communication of this intention. A promise to marry must be fulfilled within the stipulated time, or, where no time has been stipulated, within a reasonable time. A conditional promise to marry may be sued upon when the condition has been fulfilled. If, however, the defendant before then absolutely refuses to honour the contract, an action will lie immediately.

In *Larok v Obwoya (1970)*, the lady who was the Respondent and the Appellant were friends when the lady was a pupil at college she became pregnant and as a result was expelled from the college. The man then wrote to the lady promising to marry her by the end of April. This was in 1968. In October he again wrote to the lady indicating that he was no longer keen to marry her. The lady then went to court and sued for breach of promise to marry and the lower court held that the man had committed a breach of the promise and awarded the lady 2000 as damages. The court based its computation on two grounds that the chances of getting married had been impaired and secondly the injury posed to her feelings. The man appealed but his appeal was dismissed and the sum of 2000 shillings was to be paid.

Similarly, an action will lie where the defendant marries another before the time for the fulfilment of the condition has passed (or where no condition arises, if he or she does so before the time at which he or she has agreed to marry the plaintiff).

Promises to marry made by minors are voidable at the option of the minor. A minor may sue on such a promise but may not be sued, even if he or she has ratified the promise after coming of age. On reaching majority a new and independent promise to marry the other person will be binding. This distinction has been thought to be difficult to apply in actual cases and has been, variously described as “perplexing” and “somewhat subtle”, leading to “some extreme refinements”.

A promise by a married man or woman to marry another person is actionable where the plaintiff had no knowledge of the defendant's married state.

In **Shaw v. Shaw (1954) 2 ALLER 638** , the Plaintiff had cohabited with a man she regarded as a husband for 14 years and they lived together as husband and wife and at one point even celebrated their marriage. Upon his death, the plaintiff discovered that for 10 years of their



marriage the man had been married to another woman who died 2 years before him and that it was therefore in those two years that he had capacity to marry the plaintiff. i.e. he was only single for 2 years of their cohabitation and only in those 2 years that he should have been legally been married to her. She sued in the States for breach of warranty and that warranty was that he was single and had capacity to marry and he had therefore breached his promise to marry her. The court awarded her damages for breach of that warranty.

Where, however, the other person is aware of the defendant's position, a promise by the defendant to marry that person after the death of his or her spouse will be unenforceable on the grounds of public policy. Similarly, a promise by the defendant to marry the other person after he or she has obtained an annulment of a voidable marriage will be unenforceable. On the other hand a promise to marry made by a party to a void marriage would be enforceable. (A marriage that is void may be so treated by any person and does not require a decree of annulment.) A promise to marry conditional upon obtaining a divorce a vinculis outside the jurisdiction would presumably be unenforceable on the ground of public policy, but in England, in 1937, the House of Lords held that this did not apply in a case where the promise was made after a decree nisi had been pronounced. (*Fender v. St. John-Mildmay* [1938] A.C. 1.) The fact that the defendant is already engaged to another person will not relieve him of liability.

Under Islamic law agreements to marry maybe entered into between the parents of the intended spouses. Which means that until the contract to marry and the actual marriage takes place; no contractual obligations arise as between the intended spouses. Therefore no suit for breach of agreement to marry can be instituted. However, where gifts or ornaments have been exchanged between the two families, then these can be returned if the agreement to marry is broken. This was the issue in **Fazaldin Satardin v Din Mahomed and Hajra Begum (1928)**, where the girl's father entered into a betrothal agreement without her consent and she later refused to marry the prospective suitor. The prospective suitor brought an action where he claimed damages for breach of agreement to marry and in the alternative he also sought an injunction to restrain her from marrying any other man until he had recovered all his damages and the gifts he had given. The court held that he could only recover the presents and the ornaments he had given but could not recover any damages.

Under Hindu Law, a similar position is adopted where agreements are made between the parents of the parties. In **Vishram Dhanji v Lalji Ruda [1957] 1 EA**

110, The respondent's son and the appellant's daughter in 1938, being each only a few months old, were betrothed in India according to the rites and customs of the Hindu community. Following the betrothal certain ornaments and clothing were given by the respondent to the appellant for the prospective bride according to Hindu custom. It was common ground that the Indian Contract Act applied to this contract. The proper law to be applied was the law of India and if the contract was valid by its proper law it would be enforced in Kenya, provided that it was not an illegal contract in Kenya. When she was 12 the appellant's daughter was informed of the betrothal and had then indicated that she did not wish to marry the respondent's son and when she was



15 the respondent was informed, either by her or by her father that the betrothal was broken off. The respondent sued for damages for breach of contract and the Supreme Court awarded special and general damages and ordered the return of certain ornaments to the respondent. At the time the proceedings were instituted the girl had been married to another suitor for twelve months. The appeal was allowed by the Court of Appeal except for the order of the Supreme Court for the return of the ornaments to the respondent. The court further held that an action in Kenya against the father of a prospective bride for breach of a marriage contract made by him on her behalf based on the proposition that the father could compel his daughter to marry as he had agreed might not succeed as being contrary to public policy and *contra bonos mores*. Note that this case emphasizes the need for free will in a marriage contract.

E. VARIOUS DEFENCES EXIST TO AN ACTION FOR BREACH OF PROMISE.

- A defendant is not bound by his promise where he establishes a false representation, or fraudulent concealment in material particulars, of the pecuniary circumstances or previous life of the plaintiff. The bad character of the plaintiff will also excuse the defendant from performance of the contract, unless he or she was aware of the plaintiff's character before making the promise.
- Physical or mental incapacity may give rise to a right to terminate the engagement in limited circumstances. No disease or infirmity short of absolute incapacity on the part of the defendant will avail him or her, however, even if it is proved that the performance of marital duties would endanger his or her life. Previous confinement in a mental hospital does not per se render the agreement to marry void but supervening insanity will afford a defence. The fact that the defendant honestly and reasonably believed the plaintiff to be unfit to marry is no defence if the plaintiff was in fact fit.
- Finally, it is a defence to an action for breach of promise that the plaintiff has released or discharged the defendant from performance before any breach of the contract occurs. The release may be express or implied.

F. REMEDIES TO BREACH OF A PROMISE TO MARRY.

Specific performance. However, damages for injured feelings or reduced chances of marriage are awarded and these are called general damages. Special damages for expenses incurred can also be awarded.

Damages awarded in actions for breach of a promise to marry are discretionary in nature. Exemplary damages may be awarded by the judge and depending on the behaviour of the parties, the damages may be aggravated or mitigated.



Return of gifts. As already noted above, the gifts given, it is implied, where the contract is broken, should be returned unless they were given unconditionally. But the party at fault is not entitled to benefit from their own wrong. Here read **Samson Vs Samson (1960)**.

SIKIA

Topic three

LOW

Domicile.

A. MEANING OF DOMICILE.

In simple terms, domicile refers to a place at which a person has been physically present, this place being the permanent residence of the person; the person may be temporarily absent from such a place but has the intention of returning.

Domicile means habitation in a place with the intention of remaining there forever unless some circumstances occur to alter the intention. It also means a person's legal home. And it is indicated to mean that place where a man has his true fixed and permanent home and principle establishment and to which whenever he is absent he has the intention of returning to it. See Black's law dictionary 6th Edition at page 484. This definition of domicile (*lex domicilii*) is here in concord with the one given in the case of **FOX VS STRIK 91970) 3 ALLER 7** meaning that it is settled law that "one has to dwell permanently or for a considerable time to have one's settled usual abode to live in a particular place."

NB. There is no agreed definition of domicile but case law has tried to provide explanations.

In **Whicker v Hume, [1858] 7 HL 124**, Justice Cranworth described it by way of illustration, a place "*From which you cannot be separated if nothing removes you. When you depart from them, you are seen as a stranger.*" Justice Wensleydale in the same case offered: "*One very good definition (of domicil) is habitation in a place with the intention of remaining there forever, unless some circumstance should occur to alter his intention.*"

In **Lord v Colvin**, Lord Kindersley wrote: "*That place is properly the domicil of a person in which he has voluntarily fixed the habitation of himself and his family, not for a mere special or temporary purpose, but with a present intention of making it his permanent home, unless and until something (which is unexpected or the happening of which is uncertain) shall occur to induce him to adopt some other permanent home.*"

Domicile differs from nationality which is acquired by operation of a law which it also differs from where residence in a country without intention to stay there and one can be a resident of more than one country but one can only have one domicile. Domicile is important in determining a validity of a given marriage. This usually comes up when looking at essential requirements to a marriage contract. It is also important in determining a mutual rights which obligations and property arising

from a marriage for example It is important in determining a jurisdiction of court in annulment or divorce proceedings and for parties wishing to marry must have their marriage bans announced and published in the parish in which each of them resides. The meaning of domicile is discussed by Lord Denning in the case of **Fox Vs Stirk** as noted above.



Although the notion which lies behind the concept of domicile is of "permanent residence" or a "permanent home", yet domicile is primarily a legal concept for the purposes of determining what is the "personal law" applicable to an individual and therefore, even if an individual has no permanent residence or permanent home, even then he is invested with a "domicile" albeit by law or implication of law.

B. TYPES OF DOMICILE.

There are three main categories or classes of domicile, A) Domicile of Origin, B) Domicile of Choice, and C) Domicile by law.

1. Domicile of origin (natural domicile): This is acquired by birth. Therefore, children born in a legally recognized marriage acquire a father's domicile but if a child is illegitimate, they acquire a domicile of the mother.

In **Udny v Udny (1869)**, the House of Lords considered the domicile of the respondent's father at the time of the respondent's birth. The father had been born in Scotland but had left Scotland and taken a lease of a house in London. He had a castle in Scotland but that was not habitable. He visited Scotland frequently but had no residence there. In 1844, he sold the lease and his personal possessions and left London for France to avoid his creditors. But he did not intend to reside permanently in France. His first wife died in 1846, and he formed a liaison with the respondent's mother who, in 1853, gave birth to the respondent in London. He married her and went back to Scotland thinking that he would thereby legitimize the respondent, avoid his creditors and bar the entail on his estates. He intended to stay in Scotland because he thought he would be safe from his creditors. Lord Westbury said, *"That no man shall be without a domicile, and to secure this result the law attributes to every individual as soon as he is born the domicile of his father, if the child be legitimate, and the domicile of the mother if illegitimate."*

2. Domicile of choice:

This can be acquired if someone becomes of age of 16 this can only be done *"animo et facto"* meaning that such a person must assume residence in the country in question and there are 2 essential requirements one must satisfy before he or she is said to have acquired these domicile.

- You must have the intention to stay in a place permanently.
- One must prove some "overt Act" to demonstrate this intention. (Bromely's family law).

In **Thornbill v. Thornbill**, the husband petitioned the dissolution of his marriage

on his wife's adultery. The man was a non-Ugandan, the petitioner was born in Wales lived in Ceylon, educated in the United Kingdom and moved to Uganda where he stayed for 4years. He had shares in a tea company worth £7000 and had intention of making Uganda his home and wanted to buy a house in Kampala. He however stated that if the tea company could not work,



he would move to another part of the world. Held, he had acquired domicile of choice despite living in a hotel.

Droogenbroech Vs Coolen A Gibbons (1992). In this case the husband petitioned for a divorce on ground of adultery. The marriage was solemnized in Belgium. The petitioner had been resident for 2 ½ years acquired 2 properties, which stated that he intended to permanently reside in Uganda while on a business trip, the wife shared a master bed with the co-respondent. This was testified by a house girl when the petitioner found the respondent a co-respondent in his house seeing Television and asked what was going on, the respondent broke down crying and admitted to having an affair with a co-respondent. Court held that the petitioner failed to prove that he had acquired a domicile of choice in Uganda thus court lacks jurisdiction to make the decree unless the petitioner was domiciled in Uganda.

Domicile for married woman at common law level automatically she acquires her husband's domicile on marriage and it is retained throughout her curvature. Read **Harvelly Vs Farnie (1882)**. However, this will not occur if the marriage was void but it was avoidable the wife retains her husband's domicile until the marriage is nullified. Read **Reneville Vs Renville**.

In **Undy (supra)**, Lord Westbury said "Domicil of choice is a conclusion or inference which the law derives from the fact of a man fixing voluntarily his sole or chief residence in a particular place, with an intention of continuing to reside there for an unlimited time. This is a description of the circumstances which create or constitute a domicil, and not a definition of the term. There must be a residence freely chosen, and not prescribed or dictated by any external necessity, such as the duties of office, the demands of creditors, or the relief from illness; and it must be residence fixed not for a limited period or particular purpose, but general and indefinite in its future contemplation."

In other words, the "domicile of origin" is what is attached to person by birth whereas the domicile of choice is what is acquired by residence in a territory subject to a distinctive legal system with the intention to reside there permanently or indefinitely.

3. Dependant Domicile (domicile by the operation of law):

This is one that the law vests in a person without taking into consideration a person's residence or intention to change residence. The person will therefore have no choice of refusing to have one since it is one imposed by law.

There are two classes of persons who may acquire a domicile by operation of law; -

- i) Those persons who are under control of another for example a wife*, a minor or a lunatic. The wife takes the domicile of her husband until she voluntarily changes domicile. Similarly a widow takes and retains the domicile of her husband until she marries for the second time or unless she voluntarily changes it. On a second marriage



a widow will take the domicile of her second husband. A minor and a lunatic will take the domicile of his/her father, when his/her father is alive. On the death of the father the minor and a lunatic will take the domicile of the mother.

- ii) Those on whom domicile of another is given. Public servants and prisoners fall under the category of those who are given a domicile of another by law. Public servants who are assigned with public duty will have to reside in other places for the discharge of their duty these include diplomats, ambassadors, soldiers etc. In such cases, public officers can retain their original domicile which they have in their respective state.

In **Droogenbroeck v Coolen & Gobbons (1992) IV KALR 16**, In this case the husband petitioned for a divorce on ground of adultery. The marriage was solemnized in Belgium. The petitioner had been resident for 2 ½ years acquired 2 properties, which stated that he intended to permanently reside in Uganda while on a business trip, the wife shared a master bed with the co-respondent. This was testified by a house girl when the petitioner found the respondent a co-respondent in his house seeing Television and asked what was going on, the respondent broke down crying and admitted to having an affair with a co-respondent. Court held that the petitioner failed to prove that he had acquired a domicile of choice in Uganda thus court lacks jurisdiction to make the decree unless the petitioner was domiciled in Uganda.

Gamuthumayor v Gamthumayor (1959) EA 204

Gordon v Gordon (1967) EA 85



Topic four

SIKIA

Marriage:

Types and Prerequisites of recognised marriages in Uganda.

LOW

A. MARRIAGE.

Marriage has traditionally been at the heart of family law. In Uganda it has come under challenge in recent years. First, there is always fierce debate over who can marry. Whereas the Constitution expressly states that marriage should be between persons of the opposite sex, a lot of debate has been going on legitimizing same sex unions but this has not gone with little opposition.

A marriage can be created legally between a male and a female who possess appropriate legal capacity to marry and who comply fully with all formal requirements. It is therefore for this reason that no 'marriage' can either be dissolved by divorce or annulled pursuant to the law of nullity if no valid marriage has been contracted in the first place.

B. TYPES OF MARRIAGE

In Uganda there exists two broad categories of marriages. A marriage can either be monogamous or polygamous in nature.

Monogamous marriages as already defined in **Hyde v Hyde (supra)** by Lord Penzance is one he understood under Christendom as the voluntary union for life of one man and one woman to the exclusion of all others. This covers church and civil marriages. (Read **R v Amkeyo [1917]**)

Polygamous marriages on the other hand are the voluntary unions for life of one man with two or more wives. It is worth to note that here a man can take on as many women as he may wish to marry. This covers mainly customary and Islamic marriages.

The types of marriages recognised in Uganda are;-

- 1) Civil marriage.

- 2) Customary marriage.
- 3) Islamic marriages.
- 4) Hindu marriages.



1) CIVIL AND RELIGIOUS MARRIAGES.

The Civil and Religious are contracted under marriage Act. In this respect a registrar's Office and Churches are concerned in this matter. The Law provides no actual destination between a two marriages. The marriage Act spells out requirements, which parties to an intended marriage must satisfy prior to the marriage. Some requirements are substantive and others are procedural.

PRELIMINARIES OF CIVIL AND RELIGIOUS MARRIAGES IN UGANDA.

1) CIVIL PRELIMINARIES.

They are designed to ensure that notice of the intended marriage is given.

a) Residence,

Notice must be given to the Registrar of the district where one of the parties has resided for at least fifteen days. According to S.6 of the Act, one of the parties to the intended marriage is required to give notice to the registrar of the district in which the marriage is intended to take place in Form A (first schedule to the Act).

b) Publicity,

This can be found under S.9 (1) of the Act. Upon receipt of marriage Notice, the Registrar shall cause it to be entered in a book to be called the Marriage Notice Book. The Registrar shall also publish the Notice by causing a copy of it to be affixed on the outer door of his or her office until three months have elapsed or until he grants a certificate. This notice is open for public inspection.

A 21 days period must be set aside after notice is lodged before the parties can get married. Under S.13 of the Act, if a person has an objection to the marriage, he or she may enter a caveat against the issue of the Registrar's certificate by writing at any time before the issue, the word "Forbidden" opposite the entry of the Notice in the

Marriage Notice Book.

The caveat should indicate particulars of the person objecting to the marriage and the grounds. The Registrar shall not issue his or her certificate until removal of the caveat and under S.14 of the Act, the Registrar is required to refer the matter to the High Court for resolution. (Read Re a



Notice of Marriage Given by Sansone Banin [1960] 1 EA 532)

If no objection is lodged within the 21 days, the registrar shall then issue a certificate permitting the parties to marry.

According to S.10, the marriage shall then take place after 21 days but before 3 months expire.

c) Discovery of impediments.

There should not be any impediments to this marriage such as kindred or affinity or any lawful hindrance to the marriage.

d) Age:

Parties to be over 18 at the date of marriage. Article 31 of the constitution provides for the age of marriage as eighteen years and above. However, there is always the contention of the discrepancy of the Customary Marriage (Registration) Act Cap 248 s.11. (a) and (b) with this Article. This Section provides for the minimum age of a female contracting a customary marriage to be sixteen years of age and for the male party eighteen years. This section has not yet been litigated upon by the Constitutional Court but the only logical and legal conclusion would be to interpret it with Article 274 of the Constitution in mind.

In **Pugh v Pugh [1951]**, Pearce J gives the rationale of this preliminary bar. The learned Judge says; *“According to modern thought it is considered socially and morally wrong that persons of an age at which we now believe them to be immature ... should have the stresses and responsibilities of marriage ... Child marriages by common consent are believed to be bad for the participants and bad for the institution of marriage.”*

e) Degree of marriage:

Parties to an intended marriage shouldn't be within a prohibited degree of marriage. This arises either by marriage on blood. Section 10 (c) of the Marriage Act Cap 251 provides for above. Parties must not be within the prohibited degrees of kindred and consanguinity. In Uganda, marriages that are regarded as incestuous are

prohibited. The prohibited marriages may arise from consanguinity (ie, blood relationship) or from affinity (ie, relationship by marriage).

The rules prohibiting marriage between relations were based originally on biblical grounds. Latterly, the prohibitions have been justified by reference to the genetic health of any of spring of such unions. However, genetic problems can arise between unrelated persons and between



cousins, who may marry, and the prohibitions extend to adoptive and step-relations. So the rules are better rationalized on social grounds: the undesirability of relatives forming conjugal relationships disrupting other family relationships.

The prohibitions of affinity were also largely based on theological reasons that a husband and wife were one flesh, so that marriage with one's sister-in-law was as incestuous as marriage with one's own sister. This view is no longer supportable considering the multitude of religions in Uganda and the absence of a state religion. Note that prohibited degrees may vary from jurisdiction as was the case in **Cheni v Cheni [1962]**, X and Y, who were uncle and niece, were married in Egypt in a ceremony based on Jewish rites. The marriage was valid under Egyptian and Jewish law and although it was, at the time of its celebration, potentially polygamous, it was rendered monogamous when a child of the marriage, Z, was born in 1926 (two years after the marriage). X and Y became domiciled in the UK in 1957. In 1961, Y, the wife, presented a petition praying that her marriage to X be declared void on the ground of consanguinity. The marriage was however held to be valid. In his word, the judge said; *"[The true test is] whether the marriage is so offensive to the conscience of the English court that it should refuse to recognise and give effect to the proper foreign law ... It would be altogether too queasy a judicial conscience which would recoil from a marriage acceptable to many peoples of deep religious convictions, lofty ethical standards and high civilisation. I must bear in mind that I am asked to declare unmarried the parents of [Z] who is unquestionably legitimate in the eyes of the law (Re Bischoffsheim (1948)). In my judgment, injustice would be perpetrated and conscience would be affronted if the English court were not to recognise and give effect to the law of the domicile in this case."*

An interesting case in Uganda on this is **Bruno L Kiwuwa v Ivan Serunkuma and Juliet Namazzi Civil suit 56 of 2006**, where the High Court of Uganda barred the respondents from getting married on the basis that it would violate the local marriage customs of their tribe. It must be pointed out from the outset that different parts of this decision were declared as bad law by the Supreme Court of Uganda (refer to *Mifumi (u) Ltd and others v Attorney General and Kenneth Kakuru Constitutional*

Appeal no. 2 of 2014 per Tumwesigye JSC) and also that the Court made this decision despite the fact that the respondents had not sought to celebrate their union under customary law.



The Plaintiff, Kiwuwa, the biological father of the female respondent, Namazzi, sought a permanent injunction against a marriage by the respondents under the Marriage Act on the grounds that the respondents both belonged to the Ndiga (sheep) clan by virtue of the fact that their parents were both members of that clan and that same clan marriages were prohibited by Kiganda customs to which the clan belonged. The Plaintiff claimed that such a union was against custom, 'abominable' and 'illegal' and further that on the basis of Article 37 of the Constitution, the court was enjoined to enforce the custom in issue. The defendants argued that even if the marriage was found to be repugnant on a cultural basis, it was not illegal under the Marriage Act as it was not within the written prohibited degrees of consanguinity and neither did it fall under the prohibitions under the Penal Code Act on incestuous sexual relations. They further argued that as they did not seek to celebrate their marriage under the Customary Marriages Act, their union could not be regulated by the custom which the plaintiff sought to impose on them.

However, in finding for the plaintiff, the court took an approach of the right to culture as an absolute imposition with no room for the existence of the individual other than as a 'specific cultural being'. The court's decision turned on whether or not, even if the defendants were to procure a marriage under the Marriage Act, there existed a lawful impediment or just cause to the marriage under that Act, as provided in sections 10, 12, 13 or 21 and whether the plaintiff's claim comprised such an impediment. This was a misinterpretation of the law by the learned Justice Remmy Kasule, this being fortified by the words of Tumwesigye JSC in *Mifumi* (supra). However, the law on marriage in relations was spot on.

f) Consent in marriage.

In some instances as will be noted, the consent of a parent or any person in the position of loco parentis to an intending party will be required before a marriage is celebrated.

Article 31 of the Constitution on the other hand provides for the free consent of

parties intending to marry. However Section 17 of the Marriage Act requires written consent if either party to the marriage is below the age of twenty-one. A similar provision is also present in Section 32 of the Customary Marriages (registration) Act when contracting a customary marriage. A case on this is **Parojcic (otherwise Ivetic) v Parojcic [1959] 1 ALLER 1**, The petitioner's father, after fighting with anti-communist forces in Yugoslavia, left the country in 1944; he



reached England in 1947. The petitioner and her mother, after suffering many hardships, left Yugoslavia and arrived in England on 11 November 1956. In London they were met by the petitioner's father and the respondent, a Yugoslav refugee, whom the father introduced to the petitioner as the man whom she was to marry. The respondent was fourteen years older than the petitioner. The petitioner refused the proposal. During the period between 11 November and 29 December 1956, there were quarrels between the father and the petitioner concerning the proposed marriage. The father threatened to send the petitioner back to Yugoslavia if she did not marry the respondent; she told her father that she would rather commit suicide than return there. On 28 December there was an argument between them about the marriage and the father struck her. On 29 December 1956, the petitioner and the respondent, in the presence of her father and two other Yugoslavs, went through a ceremony of marriage at a register office. The petitioner, so the court found, understood the nature of the ceremony. After the ceremony the petitioner said that she did not agree, locked herself in her room, and did not thereafter see the respondent again. Both parties to the marriage ceremony were found to have acquired domicile of choice in England. On petition for nullity on the grounds of mistake and duress. It was **HELD** that though the petitioner had understood the nature of the ceremony, she had established that she never consented to marriage, but was driven to go through the ceremony by terror instilled in her by her father's threats; therefore, a decree of nullity granted.

g) Notice:

Section 6 of the Marriage Act Cap 251 provides that one of parties to the intended marriage is required to give notice to a registrar. The registrar then enters notice of a marriage to the notice book, which is open for inspection during Office hours (Section 9).

After a notice is lodged to the registrar's he waits for 21 days before the parties can get married. At a lapse of 21 days, if nobody objects to the intended marriage, then the registrar will issue the parties with a certificate permitting them to marry Section 10

(I). It should be noted under Section 11 of the Marriage Act, after a notice of 21 days, marriage should take place within 3 months. After a 3 months if a marriage has not taken place, a whole exercise has to be redone.

h) Neither party is already married to some other person.

Marriages under the Marriage Act are monogamous in nature.



Section 34 (1) of the Marriage Act though it provides that one should not be married by customary law to any other person before contracting it, the marriage is monogamous in nature and one should not be married in any other type of marriage with anyone other than the person to whom they want to be joined with. If a person has already contracted one marriage, they cannot contract another until the first spouse dies or the first marriage is annulled or dissolved but this does not apply if the first marriage was void. A mistaken belief that the first marriage has been terminated, for example, by death of the spouse is immaterial: what is relevant is whether it has in fact been terminated.

However, there are exceptions to this bar as seen in Mohammedan and customary marriages.

The following case draws the exceptions to this preliminary bar clearly.

In **Ayoob v Ayoob [1967]**, The petitioner and the respondent, both Mohammedans, were married under the Marriage Act of Kenya, and subsequently also went through a marriage according to Mohammedan law. The petitioner-husband later divorced the respondent by “talak”, which would have been a valid divorce according to Mohammedan law as regards a marriage recognised by Mohammedan law. The petitioner then brought this suit for a declaration that this “talak” divorce was also recognised by the law of Kenya as dissolving the marriage under the Marriage Act. Rudd J in his holding had this to say of a marriage under the Marriage Act and that under Mohammedan law; *“Under the Mohammedan law a man is entitled to have as many as four wives at the same time. A Mohammedan marriage is, therefore, not a monogamous marriage... The effect of a marriage under the Marriage Act is quite different in its incidents from that of a marriage under Mohammedan law. I think it might be recognised as a Mohammedan marriage for some purposes, albeit many such marriages, including the one in question in this case, might be irregular marriages under the Muslim law. An irregular marriage is void under Shiite law but not necessarily void under Sunni law. It is unnecessary, fortunately, to consider that aspect in detail in this case, but the point is that a marriage which is merely a marriage recognised under Mohammedan law has quite different incidents from a marriage under*

the Marriage Act. I will call the former form of marriage a Mohammedan marriage and the latter form a marriage under the Act and I have no doubt but that a marriage under the Act is not a Mohammedan marriage in the ordinary sense. A marriage



under the Act is a monogamous marriage, a Mohammedan marriage is not a monogamous marriage. This distinction is implicit virtually throughout the Act." Emphasis mine.

2) CHURCH PRELIMINARIES;

According to S.20 of the Act, marriages may be celebrated in any licensed place of worship by any recognised minister of the church, denomination or body to which the place of worship belongs, and according to the rites or usages of marriages observed in that church, denomination or body.

a) Residence. If the parties reside in the same parish, the banns must be published there and if in different parishes then in each of the different church which is the usual place of worship of one or both parties. No specific requirement is imposed on the length of prior residence in the parish.

b) Publicity. The banns are entered in an official register and then published in a loud manner and in accordance with the form of words prescribed for the particular denomination. Publication here means announcing of the banns aloud. It is usual practice for the parties to be present on at least one of the occasions when the banns are published. The real names of the parties (those known by everyone in the parish), intending to get married should be used when publishing banns. In *Dancer v Dancer* [1948] 2 All ER 731, Jessamine was the legitimate daughter of Mr and Mrs Knight. When Jessamine was aged three, Mrs Knight began to live with Mr Roberts, by whom she had children. All the children, including Jessamine, were known as Roberts. She did not discover that she was not Roberts' daughter until his death, when she was 17. She continued to be known as Roberts and was named in the banns as Jessamine Roberts. Later her husband petitioned for a decree of nullity, arguing undue publication of banns. It was held by Ormrod J that there was no undue publication of banns. He said; *"She [Jessamine] had adopted the advice of the vicar, which was: 'If you give the name of Knight, no one will know anything about you. But if you give the name of Roberts, by which name you have always been known in this parish and everywhere else, then everyone will know*

who it is that is being married.’ On that advice and with the intention of avoiding any form of concealment, she allowed her name to go forward in the banns as Roberts. I am satisfied that, in those circumstances, this is a case in which there was no undue publication of banns.”

In **Small v Small (1923)**, X was a deserter from the Royal Field Artillery. In order to avoid detection and prosecution he had assumed a false name which he used in relation to the



publication of banns concerning his marriage to Y. It was held that X had a fraudulent intention to conceal his true identity and therefore the marriage banns had not been properly published. The marriage was therefore void.

Similarly, in **Chipchase v Chipchase** (supra), a woman named Matthews married Leetch in 1915; he deserted her in 1916. In 1928 she married the petitioner, following banns published in the name of Matthews. She was generally known by this name and had used it for two years before her marriage to the petitioner. Her motive was, apparently, a wish not to emphasise the fact of her marriage to Leetch. The justices held that the second marriage was void because there had been no due publication of the banns. She appealed to the Divisional Court. The appeal was allowed and the case was remitted to the justices for a determination of the question as to whether she had knowingly and wilfully concealed her identity in relation to the publication of the banns. Merriman P stated in this decision that; *“I think it quite clear that the justices have not had their minds directed to the established interpretation of the Marriage Act 1823, s 22 [‘Provided always, that if persons shall knowingly and wilfully intermarry without due publication of banns*

... the marriage of such persons shall be null and void to all intents and purposes whatsoever.’] The object of this Act was to prevent clandestine marriages. There must be an element of intentional concealment of identity before it can be said that the marriage is void for undue publication of banns. I do not think that this element of the matter was considered sufficiently by the justices. Small v Small was cited. In that case unquestionably there was the element of deliberate concealment, and the motive was quite plain. It may be that this is such another case, but, at any rate, the wife must have the opportunity of establishing, as counsel says she is able to establish, that the name in which she was married was the name by which for years she had been commonly known, and that there was no intention to conceal her identity in the particular circumstances of this case.”

- c) **Sex:** Parties to be male and female. Article 31 of the constitution provides for men and women as the persons that can engage in marriage. This means that same sex marriages do not have a place in Uganda. However, in the wake of technological advancement, the common problem now is the issue of sex change. Does a sex

change from one sex by an individual render them a member of their new sexual orientation?

In **Corbett v Corbett [1970]**, X and Y had participated in a marriage ceremony in 1963. In 1960, Y, born a male, had undergone so called sex-change surgery after which he had lived as a woman and had married X. During subsequent proceedings related to a decree of nullity of marriage, the court considered the problem of Y's sex. Held: The so called marriage of X and Y was void. Per



Ormrod J:- *Since marriage is essentially a relationship between man and woman, the validity of the marriage in this case, depends, in my judgment, on whether respondent [Y] is or is not a woman. The question then becomes what is meant by the word 'woman' in the context of a marriage, for I am not concerned to determine the 'legal sex' of the respondent at large. Having regard to the essentially heterosexual character of the relationship which is called marriage, the criteria must, in my judgment, be biological, for even the most extreme degree of transsexualism in a male or the most severe hormonal imbalance which can exist in a person with male chromosomes, male gonads and male genitalia cannot produce a person who is naturally capable of performing the essential role of a woman in marriage. My conclusion is that the respondent [Y] is not a woman for the purposes of marriage, but is a biological male and has been so, since birth.*

In **Talbot v Talbot (1967)**, the facts are a bit peculiar, a woman dressed herself as a man and went about calling herself John. She managed to get herself a woman with whom she celebrated a marriage. The next day when the woman discovered that she had married a fellow woman she did not seek to nullify the union there and then but continued living with her for close to four years, she later petitioned court to declare the union a nullity which was granted on the reasoning that there existed no marriage from the start.

Residence: Under S 10 (a) of the Marriage Act Cap 251, at least one of the parties of a marriage must have resided in a district, which a marriage would be celebrated at least for 15 days.

d) Discovery of impediments.

Normally marriage banns are announced three times after which the parties may marry after the third publication. The marriage must be solemnized in one of the churches where the banns have been published.

3) CELEBRATION OF THE MARRIAGE:

a) CHURCH MARRIAGE

Marriage may be celebrated in any licensed place of worship by a recognized

minister of the church, denomination or body to which the place of worship belongs, and according to the rites or usages of marriage observed in that church, denomination or body. The marriage must be celebrated with open doors [within] between the hours of 8 o'clock in the forenoon and six o'clock in the afternoon and in the presence of two or more witnesses besides the officiating



minister. If any impediments or any just cause exist(s) the church minister is precluded under

S.21 from celebrating the marriage unless the parties deliver to him or her a registrar's certificate or Minister's license.

b) CIVIL MARRIAGE

After a certificate under Ss. 10 or 15 or a license under S.12 has been issued, the parties, may, if they think fit, contract a marriage before a registrar.

It should be in the presence of two witnesses in his or her office with open doors, between the hours of 10 o'clock in the forenoon and 4 o'clock in the afternoon. (Refer to Ss.12 and 26)

Questions shall be asked by the registrar designed to satisfy that the parties understand the implication of their marriage.

The Registrar after the marriage has been celebrated should issue a marriage certificate to the parties signed by the parties and witnesses from the church or registrar's office as well as the person who conducted the celebration.

The parties will be given a copy of the certificate and the Registrar or Church minister will also remain with a copy. (Refer to Ss. 24 and 27)

The reason why marriages under the Act should be celebrated in open doors is for the public to be aware of what is taking place.

The case of **Puttick v AG [1979] 3 WLR 542** is instructive on the purpose of publication of banns and its difference from a marriage by license where Baker P stated that; *"A clear distinction has been recognised by the English courts between marriage by banns and marriage by licence. In the former, a misdescription of a party renders the marriage void because there has not been the required publicity. In the case of marriage by licence there is no such requirement and no such result follows, for the object of the licence is not publicity but identity."*

OFFENCES UNDER THE MARRIAGE ACT

For example if you go then more than one marriage ceremony, a penalty is 5

years imprisonment, and the Offence is for Bigamy. (See Section 41 –50 of the Marriage Act Cap 251).

Section 41- Bigamy – imprisonment not exceeding 5 years

Section 42 – Marriage with a person previously married – imprisonment not exceeding 5year.



Section 43 – making false declarations

Section 44 – false pretence of imprisonment to marriage.

Section 45 – Unlawful ling performing marriage Ceremony.

Section 46 –Will full neglect of duty to fill upon transmit Certificate of marriage. Section 47 –Personation in marriage

Section 48 – Fictitious marriage

Section 49 – Contracting marriage when already married

Section 50 – Contracting marriage by customary law when already married under the Act.

VOID AND VOIDABLE MARRIAGE UNDER THE MARRIAGE ACT

Qn. Under what circumstances can marriage be nullified?

The word void is defined by Black law dictionary 6th Edition at page 1573 to mean null, ineffectual, nugatory or having no legal force or binding effect, unable in law to support the purpose for which it was intended. On the same page voidable means something that exists when an imperfection or defect can be cured by the act or confirmation of him who would take advantage of it. Therefore it can be avoided or declared void.

This is where a marriage has been conducted but either a procedure on essential requirements have not been fulfilled which a marriage is declared void hence it will be a nullity and not registered by law. Where a marriage is declared voidable, there is a valid marriage existing until it is declared a nullity by court. **Read DERENEVILLE VRS. DERENEVILLE (1948) 1 ALLER 56**

The circumstances of marriages being void or voidable are spelt out under section 34 (1) and (2) of the marriage Act Cap. 251.

a) Section 34 (1) provides that no marriage in Uganda shall be valid which, if celebrated in England would be null and void on the ground of kindred or affinity or where either of the parties to it at the time of celebration of the

marriage is married by customary law to any person other than the person with whom the marriage is had. And Also under Section 11 and 12 (1) (a) – (e) Divorce Act cap.249 gives grounds for degree of nullity.

- b)** For void marriage see section 34 (2) of the marriage Act Cap. 251. The marriage shall be null and void if both parties knowingly and willfully acquiesce in its celebration-
- In any place other than the Office of the Registrar of marriage or a licensed place of worship, except where authorized by a Minister.



- Under a false name or names
- Without a Registrar's Certificate of notice or Minister's licence duly issued or
- By a person not being a recognized Minister of same religious denomination or body or a registrar of marriages. Here read **HAY Vs HAY (1939), A Vs B (1932)**

c) Under a Divorce Act cap.249 Section 12(1) lays out other grounds on which a marriage may be declared a nullity.

Parojeic Vs Parojeic (1951). In this case, the petitioner with her mother who had been in Yugoslavia left for England where her father was living. Her father forced her to marry the respondent without her consent. After the ceremony, the petitioner locked herself in a room in protest. Subsequently, she petitioned for nullity of marriage on grounds of duress and mistake. The issue in court was whether the petitioner's father could induce her to go into marriage without her consent. Court held that although the petitioner had understood the nature of the ceremony, she did not consent to the marriage but she was driven to go through the ceremony by terror instilled in her by her father's threat. The decree of nullity was therefore granted.

In **K VS K (1960) EA. 717**, the appellant petitioned for a decree of nullity of marriage on a ground that a respondent had willfully refused to consummate the marriage. The respondent entered an appearance but filed no answer and decree nisi was pronounced exparte. The respondent insisted that a marriage had been consummated. It was submitted that "Vera Copula" was never normal, full and complete, therefore there was no consummation.

In a case of impotent, there is permanent capacity to consummate a marriage, but if it is shown that a defect can be corrected by operation, permanent capacity will not be held unless a victim reused to have an operation.

d) **Will full refusal by the Respondent.**

Here a situation may not be that one of a parties are incapable of having sexual intercourse but the respondent has made a definite and deliberate refusal to consummate a marriage without reasonable excuse.

e) **There is also lack of consent.**

Valier Vs Valier unreported. This case involved an Italian man who went to UK with little knowledge of English. He was later tricked to go through a marriage ceremony with an English woman at the registrar's office. He petitioned court that he did not understand clearly about a marriage. Court held that since his

consent was obtained fraudulently the marriage was nullity and there set aside. There was no consent since he did not understand a language very well.

Also read **Mwangim Vs Mumbi (1967) E.A 639**



4) CUSTOMARY MARRIAGES.

LAW APPLICABLE

- a) Constitution.
- b) Customary Marriages Registration Act Cap 248.
- c) Customary Marriages (Registration.) Prescription of Forms and fees) Regul's SI 248_1.
- d) Customary laws of various tribes and Case law.
- e) The Marriage Act Cap 251.
- f) Judicature Act Cap 13.

NATURE OF THE MARRIAGE

According to S.4 (2) of the Customary Marriages Registration Act, Customary marriages are potentially polygamous. In **John Tom Kintu v Myllious Gafabusa Kintu** it was stated by Justice S.B. Bossa as she was then that, “...if a person married under customary law continues to marry more wives under the same type of marriage, he doesn't commit adultery thereby [the marriage is polygamous]. I think however, that the situation is different where the other person involved is not legally married to that person under customary law. There the association must be clearly adulterous.”

Section 1 (b) of a Customary Marriage Registration Act (cap 248) defines a customary marriage as a marriage celebrated according to the rights of an African community and one of parties is a member to that community. On any marriage celebrated under Part III of the Act. It should be noted that there is no general customary law in Uganda and customary law must not be contrary to natural justice, equity and good conscience.

In **Uganda v Peter Kato and 3 others [1976]**, Ssekandi J as he was then, held that the test of determining what a marriage is, under customary law, is whether the union is treated as a marriage by the laws or customs of the nation, race or sect to which the parties.

Where the parties are from different tribes, the customs of the woman would be followed in case of a customary marriage. Such customs should not be contrary to the principles of natural justice. (Refer to Article 2 of the Constitution and S.15 of the Judicature Act.)

The custom being relied on by a party in court must be established by them to the

satisfaction of court so that the Court may take judicial notice of it. In **Ernest Kinyanjui Kimani v Muiru Gikanga and another [1965]**, it was held that where African customary law is neither notorious nor documented it must be established for the court's guidance by the party intending to rely on it and that as a matter of practice and convenience in civil cases the relevant customary law, if it is incapable of being judicially noticed, should be proved by evidence or expert opinions adduced by the parties. (Also refer to Halsbury's Laws of England, 3rd Edition, Vol. 15 – *"Judicial notice is taken of facts which are familiar to any judicial tribunal by virtue of their universal*



notoriety or regular occurrence in the ordinary course of nature or business. As judges must bring to the consideration of the questions they have to decide their knowledge of the common affairs of life, it is not necessary on the trial of any action to give formal evidence of matters with which men of ordinary intelligence are acquainted whether in general or to natural phenomenon.”

And also **Mifumi (U) Ltd & another vs Attorney General & Another** Constitutional appeal No. 2 of 2014 where the Court observed that, “*It is not necessary to require that the custom should be formally proved in court in order for the court to know it exists...*”

There is no general customary law in Uganda and therefore each tribe is guided by its customary beliefs which may not necessarily be uniform. However in **Nassanga v Nanyonga [1977] HCB 314**, it was held that where the intending parties to the customary marriage are of different tribes, the tribal customs of the girl should be observed. (However, I have reservations on this case.)

The law prohibits practices and customs and cultures against a welfare and dignity of women and is others, which under mind their status. In case of any contentions, witnesses can be called hence customary law should be proved that is to say Using facts of culture, evidence by elders. Here read **KIMANI VS GIKANGA (1965) EA 735**.

PRELIMINARIES OF CUSTOMARY MARRIAGE.

The Act does not spell out these preliminary hence they vary depending on a customs of each community. However, there are certain general requirements, which have a legal significance. **Bride price:** This is payment made by a bridegroom or his family on his behalf to a family of a girl he intend to marry in consideration of her family allowing him to marry their girl. The Act doesn't spell out what form or amount should be paid but at the end of the colonial period, there were efforts to limits the form in quantity of bride price paid. Bride price depended on the society, Economical status of the girl, influence, Morals and hand workingness of the girl and the issue whether she had a child or not was paramount. Here read;

It is worth noting that the Act does not spell out how much should be paid therefore each custom is free to set its terms and the kin have freedom to exercise their bargaining power as was the case in **Case v Ruguru [1970] 1 EA 55**. There are times when half bride price can be paid. Where a balance of bride price remains. It

shows that the girl's family either expressly or by acquiesce waived their rights.

Age of Marriage: As far as tradition is concerned there was no uniform age of marriage and capacity to marry. Under the customary marriage Act cap.248, Section 11(a) and (b) attempts to set a minimum age of marriage at 16 years for girls and 19 for boys respectively.



However, under Article 31 of the 1995 constitution of Uganda provides that persons of 18 years and above have a right to marry. It is equally worth to note that under Article 2 (1) of the 1995 constitution of Uganda, it is provided that the constitution is the supreme law of Uganda and binding to all authorities and persons throughout Uganda, actually Sub-Article (2) of this Article puts it clear that “if any other law or any custom is inconsistent with any of provision of this constitution, the constitution shall prevail, and any other law or custom shall, to that extent of the inconsistency, be void”. This therefore leaves the age of 18 as the marriage age in Uganda. In the words of Tumwesigye JSC in **Mifumi (U) Ltd & another vs Attorney General & Another**, “...justification for the maintenance of a custom cannot be based on its popularity alone. It would still be unacceptable if it were harmful.”

Prohibited decrees in marriage: The notion of prohibited degrees was observed in all tribal community of Uganda. The extent to which they prohibit the degree is provided for under Section 11 (d) of the customary marriage Act cap.248.

Consent: The consent of a girl was not always obtained in marriage. In most community it was the parents who consented on behalf of their daughter. Article 31 (3) of the 1995 constitution of Uganda resolves the issue of consent and provides that the marriage shall be entered into with the consent of both parties. Among the Iteso however, their by-laws prohibited a parent from inducing their daughter into a marriage and it was an offence to marry off the girl without her will.

The Constitution as already noted prohibits any cultural practices that are contrary to it this can be seen in Article 2. More specifically, Article 31 of the Constitution requires that the parties to a marriage should exercise free will and consent before contracting the marriage.

In **Pamela Sabina Mbabazi vs. Henry Bazira**, the Court of Appeal had underscored the necessity of the couple's consent to marry.

CELEBRATION OF A CUSTOMARY MARRIAGE

The Act doesn't spell out the formalities of celebrating a customary marriage. These marriages are celebrated according to the rights of a given community. The customary marriage can be celebrated in any part of Uganda under Section 2 (1) of the customary marriage Act cap.248. There are also other requirements under Section 6(1) of the customary marriage Act cap.248.

Registering within 6 months in the registration[s Office with 2 witnesses. Under Section 7 of the customary marriage Act cap.248, at the time of registration, the registrar shall upon payment of the prescribed fee issue the parties with a Certificate in the prescribed form.



Under Section 9(2) of the customary marriage Act cap.248, the copy of such a record certified by the registrar general as being a true copy shall be advisable as evidence in any court proceedings and shall be prima-facie evidence of a settlement.

Under Section 10 of the customary marriage Act cap.248, such a certificate shall be conclusive evidence of a marriage for all purposes in any written law.

EFFECT OF A NON-REGISTRATION OF A CUSTOMARY MARRIAGE

Section 20 of the customary marriage Act cap.248, of the Act provided the parties for a customary marriage who fail to registrar their marriage within a time specified in Section 6 of the customary marriage Act cap.248, commit an offence and they are liable to a fine not exceeding 500shs. However, non-registration doesn't invalidate a marriage.

Also worth noting is that as was held in **Nassanga v Nanyonga [1977] HCB 314**, non-registration does not invalidate a customary marriage

Here read **Mugisah Vs Kakuru (1994)**, Where It was held that non registration of a customary marriage doesn't invalidate a marriage but such a marriage fail to find a cause of action as it is incapable of proving it self. Under Section 18 of the customary marriage Act cap.248, the registrar has powers to correct any errors made in the Certificates.

CUSTOMARY MARRIAGES BETWEEN NON-UGANDANS AND UGANDANS

Part III of the Act provides for marriages between persons that do not belong to any indigenous tribe in Uganda.

S.21 of the Act provides that one of the parties to the intended marriage should must sign and give the registrar of the district in which the marriage is to take place notice.

The registrar under S.24 will enter the notice in the Customary Marriage Notice book and publish it by placing a copy of it outside his or her office until when a certificate is granted.

The parties are required to swear an affidavit under S.25 stating that one of the

parties has been resident within the marriage district at least fifteen days preceding the grant of the certificate, that each party has attained the age of 21 or being below, that the requisite consent has been attached thereto and that the parties to the marriage are not within the prohibited degrees of kinship.

The other option would be to obtain confirmation of the Minister under S.26 of the Act for the marriage to take place in lieu of giving notice to the Registrar.



Under S. 27, any person whose consent is required, or who may know of any just cause why the customary marriage should not take place, may enter a caveat against the issue of the registrar's certificate, by writing at any time before the issue of the certificate the word "Forbidden" opposite to the entry of the notice in the customary marriage notice book, and appending to it his or her name and place of abode, and the grounds upon or by reason of which he or she claims to forbid the issue of the certificate, and the registrar shall not issue his or her certificate until the caveat shall be removed as hereafter provided.

Where the objector is outside Uganda, the objection shall be made in accordance with the laws of his or her country and authenticated by a notary public, consul or other person authorised by the laws of that country under S.28 of the Act.

The Registrar under S.29 shall refer the matter to a Chief Magistrate where a caveat is entered which Magistrate shall summon all the parties to show cause why the marriage should or should not take place.

VOID AND VOIDABLE MARRIAGE UNDER CUSTOMARY MARRIAGE ACT

The concept of void and voidable marriages was recognised under customary law and the ground for which depend on the different communities.

Some of the grounds include failure to pay bride price, the woman being pregnant by another man by the time of the marriage, adultery of the woman during the marriage or where either of the parties practiced witchcraft.

The Act under Ss.11 to 13 gives grounds that make a marriage void.

S.11 states that the marriage shall be void if;

- a) The female party has not attained the age of sixteen,
- b) The male party to it has not attained the age of eighteen,
- c) One of the parties to it is of unsound mind,
- d) The parties to it are within the prohibited degrees of consanguinity or the marriage is prohibited by custom of one of the parties, and;
- e) One of the parties has previously contracted a monogamous marriage.

Section 12 of the Act provides that, notwithstanding the provisions of S.36 of the Marriage act, where a person was married under the Marriage act or any other law

relating to marriage and subsequently contracted a customary marriage during the subsistence of a previous monogamous marriage, but before the into force of this Act, such subsequent customary marriages shall be deemed to be valid. The Section puts an exception to those marriages prior to coming into force of the Act.



In **Gakwavu v Mariana Gasenganyire [1977] HCB 322**, it was held by Ssekandi J as he was then that, *“The customary marriages [registration] Decree came into force on 1st October 1973 and by S.11(1) of the decree, a customary marriage contracted during the subsistence of a monogamous marriage before the decree came into force is deemed to be valid. In the instant case, the respondent contracted the customary marriage with Apolonia Mukandoli on 1st October 1973, the date the Decree came into force. Therefore the marriage was not validated by the Decree.”*

Section 13, provides that where a person contracts a marriage under the Act and subsequently contracts a monogamous marriage or Islamic marriage with another person, the validity of the customary marriage shall not be affected by such monogamous or Islamic marriage, but such monogamous marriage or Islamic marriage shall be void.

This provision makes it impossible for someone married under the Act to contract a monogamous marriage with another person while this marriage is still subsisting.

5) ISLAMIC MARRIAGES.

Marriage (nikah) is a solemn and sacred social contract between bride and groom. This contract is a strong covenant (mithaqun Ghalithun) as expressed in Quran 4:21). The marriage contract in Islam is not a sacrament. It is revocable.

Both parties mutually agree and enter into this contract. Both bride and groom have the liberty to define various terms and conditions of their liking and make them a part of this contract.

LAW APPLICABLE:

- a) The Marriage and Divorce of Mohammedans Act Cap 252
- b) The Marriage and Divorce of Mohammedans (Appointment of Registrars) Order S.I 252_1.
- c) The Marriage and Divorce of Mohammedans (Jurisdiction in Matrimonial Causes) Instrument S.I 252_3
- d) Sharia laws or Islamic laws.

Zainabu v Mohamedi [1973] EA 280

“It is common ground that the parties, both muslims, are governed by Islamic law which was the lex celebrationis. This court has taken judicial notice of the well-

known fact that most if not all indigenous Muslims like the parties to this suit are Sunni Muslims of the Shafii sect. The present suit is therefore determinable in accordance with the personal law of Sunni Shafii muslims. Much confusion has reigned in this court when Indian authorities were employed to resolve issues between the Shafii muslims of this country. It must respectfully be pointed out that Indian muslims are mainly Shias who do not recognize the “Sunna” (the sayings of the



Prophet). Even those Indians who are Sunnis belong to the Hanbal sect. Unfortunately, there is very little in the form of case law or text books on Sunni Shafii law, so that when this court is faced with Islamic disputes there is a tendency to equate Shafii law to Shia or Hanbal law. The result is rather disturbing decisions like *Nanyanje v Mwenkimanzi*, 1967 H.C.D. 41 (unreported). The judge who made this startling ruling must have resorted to Shia authorities and to authors like Ameer Ali or Mulla. With great respect, it is unjust to decide a Sunni Shafii's case according to the law of the Sunni Hanbal, or Shia Bohora, or Shia Ithnasheri – which are the predominant Indian sects.

Zainabu v Mohamedi [1973] EA 280

The appellant and the respondent were Sunni Muslims of the Shafii sect. The appellant applied to the court for an order that her husband be forced to divorce her on the grounds of cruelty and constructive desertion.

Both parties being Sunni Shafii muslims, are governed by the law pertaining to that sect of muslims. And, according to that law constructive desertion is an alien concept. It is not recognized. If the respondent used to beat the appellant often, he would only be guilty of cruelty and not implied or constructive desertion. The only offence which the trial court therefore could have entertained was that of cruelty.

The appellant further alleged at the trial that her husband told her that she was of no use to him. Ordinarily construed, these words meant that the respondent did not like her. This could mean that he had constructively pronounced the “talak”, and that his words amounted to “Dhihari” (constructive talak). There is no authority for such a proposition, however and the assessor who advised the trial court that the respondent's failure to show love to the appellant was sufficient cause for the court to hold him to have given her the talak was not sure of what he was saying.

The appellant sought to move the court to cause the respondent to issue her a talak. I doubt whether this was the right thing for her to do, really. She was alleging that her husband was guilty of the matrimonial offence of cruelty. It is evident that all she sought was a court order dissolving the marriage, i.e. fashki, and not talak. This court has already defined “Fashki” in **Kilango v Kilango, 1971 HCD 105**.

It must respectfully be pointed out that Islamic law does not recognize that the court should compel a husband to pronounce the talak to his wife. All the court has to do is to satisfy itself whether or not a matrimonial offence has been proved and if there is evidence of such offence, then it is for the court itself to dissolve (fashki) the marriage. In this case there was insufficient evidence to prove the offence of cruelty. Indeed the assessors who opined that the respondent should be compelled to issue

the appellant the talak based their opinion on the matrimonial offence of constructive desertion. Islamic law recognizes chastisement of a wife, and since the appellant did not sufficiently show that her husband exceeded the limit of permissible chastisement, there was no cause to dissolve the marriage.



The trial court was not competent to compel the respondent to pronounce the talak on the appellant. No court of law can competently do so under Islamic law.

According to the recorded evidence, it is the appellant who has no love for her husband for, in spite his repeated entreaties to her that she should return to the matrimonial home, she would no budge. Instead, she rushed to Court with a request that her husband would be compelled to divorce her. At the trial she did not conceal her determination to wreck the marriage. Fortunately for the respondent, Islamic law provides for such a situation. By deserting her husband and refusing to return to him, the appellant is guilty of the Islamic matrimonial offence of disobedience. She is therefore “nashiza”. The respondent may sue for restitution of conjugal rights or he may leave her where she has chosen to live. But all the time she remains his wife and she cannot remarry. Being “nashiza” she is not entitled to any maintenance until she ceases to disobey her husband’s lawful order that she should return to the matrimonial home.

PRIMARY REQUIREMENTS

- a) Mutual agreement (Ijab-O-Qubul) by the bride and the groom.
- b) Two adult and sane witnesses.
- c) Mahr (marriage-gift) to be paid by the groom to the bride either immediately (muajjal) or deferred (muakhkhar), or a combination of both.

SECONDARY REQUIREMENTS

- a) Legal guardian (wakeel) representing the bride.
- b) Written marriage contract (“Aqd-Nikah) signed by the bride and the groom and witnesses by two adult and sane witnesses.
- c) Qadi (State appointed Muslim judge) or Ma’zoon (a responsible person officiating the marriage ceremony).
- d) Khutba-tun-Nikah to solemnize the marriage.

This is one of the types of marriage recognized in Uganda and it is governed by the marriage and divorce of Mohammedan’s Act cap 252, the constitution of Uganda .Article 129 (d), Islamic or Shariah law, which is comprised of the divine laws of Islam (Quran) and also the Hadith. This law is applicable on the basis of Section 2 of the marriage and Divorce of the Mohammedan’s Act and it provides that all marriages between persons professing between marriages and all divorces of such marriages which are celebrated or given to the rights or observance of the Mohammedan

religion or the usual in that particular sect shall be valid.

The Marriage Act and the Marriage of African Act does not apply to 2 parties who are married under cap 252.



A. PROMISES TO MARRY UNDER ISLAM.

This concept is recognized under the Islamic law and is called **KHUTBA**. This is when a man asks for a woman's hand in marriage and the woman accepts. The woman can accept this through an agent or in person. Once this happens, no any other man is allowed to promise this woman knowing that she is already in the promise to be married. For this process to be valid, the woman must be legible for marriage. You can't promise a woman in the period of **Idat** (4 months after the death of her husband).

B. PRELIMINARIES FOR ISLAMIC MARRIAGE.

They are not spelt out in the Act. Therefore by virtue of Section 2, we refer to positions under the Shariah. For an Islamic marriage to take place there must be an offer and acceptance and the person offering the accepting must meet the following requirement:

- a) **Age:** Both in the Act and under the Islamic Laws, age of marriage is not specified. The determining factor is once the intending parties to marry have attained puberty.
- b) **Mental state of marrying parties.** The parties must be of sound mind. However, even persons of unsound mind may in some circumstances be allowed to get married which this should be based on a medical report certifying that a marriage can help their faculty.
- c) **Prohibited degrees of kinship.** Islamic Law also recognizes this motion and the source of this prohibition is in the Qoran 4:23. This motion arises to different affinities and also as a result of fosterage, which must have taken place during infancy. The extent to which the degrees apply varies. However, the degrees do not apply between cousins.
- d) **Marital status.** For a woman who intends to get married shouldn't be in a subsisting marriage and she should be eligible for the person she intends to get married to. The maximum wives should be four.

C. CELEBRATION OF ISLAMIC MARRIAGES.

There are no requirements for the celebration spelt out under the Act. Reference is made to Section 2 of the Act. It will be celebrated according to those rites of the different sects. The marriage can be celebrated anywhere provided the perquisites have been adhered usually it is celebrated at the home of the bride's parents although some couple go to the Mosque basically for preaching and guidance. There is no requirement, which the Act for a registrar of Marriages to be present while the marriage is being contracted. Section 16 of the marriage and divorce of Mohammedan Act Cap. 252.



There is a requirement for 2 witnesses to the marriage to be present. These witnesses must either be 2 men or a man and 2 women. They must be same adults, Moslems, acting on their free will and they must hear and understand the offer and acceptance. see Section 3 of the marriage and divorce of Mohammedan Act Cap. 252.

Mahr. The marriage-gift (Mahr) is a divine injunction. The giving of mahr to the bride by the groom is an essential part of the contract. The Quran under 4:4 states that; “And give the women (on marriage) their mahr as a (nikah) free gift”

Mahr is a token commitment of the husband’s responsibility and may be paid in cash, property or movable objects to the bride herself. The amount of mahr is not legally specified, however, moderation according to the existing social norm is recommended. The mahr may be paid immediately to the bride at the time of marriage, or deferred to a later date, or a combination of both. The deferred mahr however, falls due in case of death or divorce. To this, the Prophet (PBUH) said, “Go and look for something even if it is a ring of iron.” Narrated by al-Bukhaari (5121) and Muslim (1425).

It is mustahabb to make the mahr simple and easy, because the Prophet (peace and blessings of Allaah be upon him) said: “The best of dowries is the simplest.” Narrated by al-Haakim and al-Bayhaqi and classed as saheeh by al-Albaani in Saheeh al-Jaami’ (3279). And he (peace and blessings of Allaah be upon him) said: “The best of marriage is the simplest.” Narrated by Ibn Hibbaan and classed as saheeh by al-Albaani in Saheeh al-Jaami’ (3300).

The following points are worthy of consideration:

- Mahr must be agreed upon by the marrying partners themselves, not by parents.
- Mahr is her right, to which her husband remains indebted.
- It is a free gift and not her price.

The assembly of nikah is addressed with a marriage sermon (khutba-tun-nikah) by the Muslim officiating the marriage. In marriage societies, customarily, a state appointed Muslim judge (Qadi) officiates the nikah ceremony and keeps the record of the marriage contract. However any trust worthy practicing Muslim can conduct the nikah ceremony, as Islam does not advocate priesthood. The documents of marriage contract/certificate are filed with the mosque (masjid). (Refer to S.5 of the Act).

According to Shariah, the wife-to-be says, '*An Kab'tu nafsaka a'lal mah'ril ma'loom*'

"I have given away myself in Nikah to you, on the agreed Mahr." Immediately, the man (bridegroom) says, '*Qabiltun Nikaha*'. "I have accepted the Nikah."

With these pronouncements, they become husband and wife. If the marrying partners are not able to recite the formula in Arabic, one or two persons or priests are appointed and authorized



to officiate. One who represents the bride would first seek her explicit consent to officiate on her behalf, and so would the other who acts on behalf of the groom.

Naturally, there would be a slight variation in the pronouncements, because the persons reciting them are appointees. A person who represents the bride would initiate by saying, “Ankah’tu muwakkilati muwakkilaka a’lal mah’ril ma’loom.” “I give away in Nikah the woman who has thus appointed and authorized me, to the man who has authorized you, on an agreed Mahr.” The groom’s representative would respond, “Qabiltunnikaaha limuwakkili a’lal mah’ril ma’loom.” “I accept the Nikah on behalf of the one who has appointed me, on the agreed Mahr.” It is mustahab to recite a brief discourse or Khutba before the Nikah formula is enunciated. In this Khutba, Allah is praised for His Wisdom in regulating the lawful process of procreation, and then the traditions from the Prophet (S) are also recited.

Time of marriage ceremony. Though basically marriage is allowed at all times, there are some days on which marriage is not recommended; some of these are based on ahadith and some on cultural, historical reasons. Generally, we can categorize these days into three: (a) There are some ahadith which say that it is makruh (not recommended) to have a marriage ceremony on the days when the moon is in the constellation of Scorpio (this is known as al-qamar fil aqrab or qamar dar aqrab), during the last two or three days of the lunar months, and on Wednesdays. (b) There are certain days of the Islamic calendar which have become associated with the early events of the Islamic history; for example, the 10th of Muharram is the day of mourning for the massacre at Karbala or the day of the Prophet (S)’s death in Safar, etc. Since such days are commemorated by the Muslims as days of mourning, it is socially and, to some extent, religiously not recommended to have a marriage ceremony on such days. The Shi’ah Ithna Ashari (Twelver Shi’ahs), especially in India and Pakistan, rarely perform marriage ceremony between the 1st of Muharram and the 8th of Rabi al-Awwal as this period includes the mourning days of Muharram culminating in the martyrdom of Imam Askari (A.S.). The 9th Rabi al-Awwal is celebrated as Eid-e-Zahra. If there is a need, however, Nikah can be performed at any time.

Permission of the Bride-to-be/Father

The girl’s consent is necessary and has to be taken by her representative, directly. In case of a virgin/spinster the father’s or the grandfather’s permission is also necessary. However if the permission is unreasonably withheld under some conditions or the girl has no father/paternal grandfather it is not necessary. However, a woman who is not a virgin does not require any permission in case of

remarriage.

SIKIA
LOW

Topic five

SIKIA

Void and voidable marriages.

LOW

A. VOID AND VOIDABLE MARRIAGES.

These situations arise where the essential or procedural requirements of a particular marriage were not complied with.

A consolidation of the law on void and voidable marriages is found in the Marriage Act. Circumstances invalidating a marriage are therefore found under Section 34 of the Marriage Act. This is in relation to church and civil marriages. Other marriages like the Hindu marriages, cultural marriages and Islamic marriages are governed by their respective laws.

Section 12 of the Divorce Act also contains grounds that make a marriage void. Marriages fall into three categories:

- those that are valid and can only be brought to an end through divorce or legally authorised separation;
- those that are void and have, therefore, never existed as a valid marriage; indeed in law, no marriage has been created; and
- those that are voidable and which will be seen in law to be valid, although due to an irregularity, the marriage may be set aside and declared to be no longer in existence.

The terminology stems from the fact that marriage is seen as a contract and so terms are used that reflect contractual situations.

The distinction between void and voidable marriages is well brought out in the case of **De Reneville v De Reneville [1948]**. In this case Husband and wife were married in France; the husband was domiciled there, the wife in England. The wife petitioned on the ground of no consummation of the marriage. It was held that the question of the marriage was to be determined according to French law, ie, the law of the country in which the parties intended to make the matrimonial home. Lord Greene considered the essential distinction between void and voidable marriage:

“The substance [of the distinction] may be expressed thus. A void marriage is one that will be regarded by every court in any case in which the existence of the marriage is in issue as never having taken place and can be so treated by both parties to it without the necessity of any decree annulling it. A voidable marriage is one that will be regarded by every court as a valid subsisting marriage until a decree annulling it has been pronounced by a court of competent jurisdiction.”

From the above, we note that for a marriage to be void there should have been a ceremony where the parties purported to be getting married. This is important because a void marriage is treated by law as being a nonexistent and this is both de

facto and de jure.

Some authors have tried to create a further distinction here. There is what they call a “non- marriage” though technically it is a void marriage. According to Jonathan Herring, a non- marriage needs to be distinguished from a void marriage. According to the author, a non-



marriage is where the ceremony that the parties undertook was nothing like a marriage and so is of no legal consequence. This distinction according to *Re Spence* (infra) is nothing more than a void marriage.

The reason the author gives as to why this distinction is of so great an importance is because if it is a void marriage then the court has the power to make financial orders, redistributing property between the couple. If the ceremony is a non-marriage the court has no power to redistribute property and the couple will be treated as an unmarried couple. He quotes *Hudson v Leigh* (Status of Non-Marriage) [2009] 3 FCR 401, in support of this assertion.

In that case, it was clear the event was a “non-marriage.” Neither the parties nor the celebrant intended the ceremony to be a marriage and the normal wording of a marriage service was altered so it did not appear to be a marriage. Bodey J listed the following factors as indicating whether a marriage was a void marriage or a non-marriage;

- Whether the ceremony or event set out or purported to be a lawful marriage.
- Whether it bore all or enough of the hallmarks of marriage.
- Whether the three key participants (most especially the officiating official) believed, intended and understood the ceremony as giving rise to the status of lawful marriage.
- The reasonable perceptions, understandings and beliefs of those in attendance.

This case can be contrasted with *Gereis v Yagoub* [1997]. Be it as it may. The distinction but a mere duplication of the term void and such a distinction should only be created by a presiding judicial officer when he or she is faced with a problem in deciding whether to distribute property between the couple or not. However, this distinction is a welcome reform in modern times where a sham ceremony could pass for a marriage and parties may want to benefit from the same.

In *Re Spence* [1990] 2 FLR 278, W married H in 1885 and gave birth to D in 1891. Later W left H to live with X and gave birth to two sons by him. In 1934 W went through a ceremony of marriage with X. H was alive at that time. In subsequent proceedings related to the grant of letters of administration to D, the question of D’s legitimacy arose. It was held that the marriage of W to X was void (and, under s 1(1) Legitimacy Act 1976, persons born before their parents entered into a void marriage were not to be treated as legitimate). Nourse LJ said: “*A void marriage, both as a matter of language and by definition, is a nullity ... It is only an idle ceremony, achieving no change in the status of the participants. It achieves nothing of substance.*”

Voidable marriages subsist from inception until one party succeeds in obtaining an

order for nullification. This means that the impediments to the validity of the marriage are to help an aggrieved party or interested person to proceed to courts of law and use them as ground for getting an order of nullification.

Technically, a void marriage is void even if it has never been declared to be so by a court, whereas a voidable marriage is valid from the date of the marriage until the court makes an



order. That said, a party who believes his or her marriage to be void would normally seek a court order to confirm this to be so. This avoids any doubts over the validity of the marriage and also permits the parties to apply for court orders relating to their financial affairs. (Read Whiston v Whiston [1995] 2 FLR 268)

Any person may seek a declaration that a marriage is void, but only parties to the marriage can apply to annul a voidable marriage. As we shall note this point shows the distinction between the grounds on which marriage can be declared void or voidable.

B. DISTINCTION BETWEEN NULLITY AND DIVORCE.

A decree of nullity acts retrospectively and therefore the marriage will be regarded as having been invalid from its inception.

The annulment of a voidable marriage on the other hand, like divorce, changes the parties' status by judicial decree. However here divorce will not act retrospectively, the parties are still regarded as having been husband and wife up to the time when the decree is made absolute.

C. SITUATIONS THAT VOID OR INVALIDATE A MARRIAGE UNDER THE ACT

As already pointed out, only the Marriage Act contains grounds that may be used to imply invalid marriages. These grounds are laid out under S.34 of the Act. A marriage shall be null and void if both parties knowingly and wilfully acquiesce in its celebration;

- a) in any place other than the office of a registrar of marriages or a licensed place of worship, except where authorised by the Minister's licence;- read Mohadervan v Mohadervan [1962] 3 ALLER 1108.
- b) Under a false name or names;- read Militante v Ogunwomoju [1993] 2 FCR 355, Chipchase v Chipchase [1941] 2 ALLER 560.
- c) without the registrar's certificate of notice or Minister's licence duly issued; or
- d) by a person not being a recognised minister of some religious denomination or body, or a registrar of marriages.- read A v B (1932) 14 KLR 109.
- e) In addition to the above, as already mentioned, Section 12 of the Divorce Act also has grounds where a decree of nullity of a marriage may be passed;
 - the respondent was permanently impotent at the time of the marriage;

- the parties are within the prohibited degrees of consanguinity, whether natural or legal, or affinity;
 - that either party was a lunatic or idiot at the time of the marriage;- read Bennett v Bennett [1969] 1 All ER 539, also Sheffield City Council v E and another [2004]
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“ . . . The law . . . can be summed up in four propositions. (i) It is not enough that someone appreciates that he or she is taking part in a marriage ceremony or understands its words. (ii) He or she must understand the nature of the marriage contract. (iii) This means that he or she must be mentally capable of understanding the duties and responsibilities that normally attach to marriage. (iv) That said, the contract of marriage is in essence a simple one, which does not require a high degree of intelligence to comprehend. The contract of marriage can readily be understood by anyone of normal intelligence. There are thus, in essence, two aspects to the inquiry. The first is whether the person understands the nature of the marriage contract. But this, as the authorities show, merely takes us to the central question: does he or she understand the duties and responsibilities that normally attach to marriage? This in turn leads on to two further questions. (1) What are the duties and responsibilities that normally attach to marriage? In other words, what are the essential attributes of the contract of marriage that the person has to be mentally capable of “understanding”? . . . (2) What is meant for this purpose by “understanding”?” per Munby J.

- That the former husband or wife of either party was living at the time of the marriage, and the marriage with the previous husband or wife was then in force.
- That the consent of either party to the marriage was obtained by force or fraud.- read *Hirani v Hirani* [1983] 4 FLR 232 *“The crucial question in these cases, particularly where a marriage is involved, is whether the threats, pressure or whatever it is, is such as to destroy the reality of consent and overbears the will of the individual. It seems to me that this case of a young girl, wholly dependent on her parents, being forced into a marriage with a man she has never seen in order to prevent her (reasonably from her parents’ point of view) continuing in an association with a Muslim which they would regard with abhorrence. But it is as clear a case as one could want of the overbearance of the will of the petitioner and thus invalidating or vitiating her consent.”* Per Ormrod LJ.

Section 13 of the Customary Marriage Registration Act provides that if a party has already contracted a customary marriage, and subsequently contracts a marriage under the Marriage Act with another person, that subsequent marriage will be void. (Also look at S.36 of the Marriage Act).

CIRCUMSTANCES THAT MAKE A MARRIAGE VOIDABLE.

A marriage is voidable where;

- a) it has not been consummated because of incapacity of either party or wilful refusal of respondent to consummate;**

A marriage may be annulled where not consummated owing either to the wilful

refusal of the respondent or to incapacity of either party.



There is no limitation on a suit based on either ground and can be raised at any time until consummation occurs.

Here it is important to examine three issues: first, the meaning of ‘consummation’; and then the two ways in which lack of consummation may give grounds for nullity: incapacity and wilful refusal to consummate.

What is consummation?

Consummation or sexual intercourse can well be explained in the words of Dr. Lushington in *D- E v A- G*, falsely calling herself *D- E* (1845) 1 Rob Eccl 279, 298,

“Sexual intercourse, in the proper meaning of the term, is ordinary and complete intercourse; it does not mean partial and imperfect intercourse: yet I cannot go the length of saying that every degree of imperfection would deprive it of its essential character. There must be degrees difficult to deal with; but if so imperfect as scarcely to be natural, I should not hesitate to say that, legally speaking, it is no intercourse at all. I can never think that the true interest of society would be advanced by retaining within the marriage bonds parties driven to such disgusting practices. Certainly it would not tend to the prevention of adulterous intercourse, one of the greatest evils to be avoided . . . If there be a reasonable probability that the lady can be made capable of vera copula—of the natural sort of coitus, though without power of conception—I cannot pronounce this marriage void. If, on the contrary, she is not and cannot be made capable of more than an incipient, imperfect, and unnatural coitus, I would pronounce the marriage void...”

What is incapacity?

The incapacity to consummate may be physical. If it is curable by non- dangerous surgery, a refusal to undergo treatment might amount to wilful refusal.

Incapacity may also be psychological as was the case in *Clarke (otherwise Talbott) v Clarke* [1943] 2 All ER 540, the parties were married in 1926 and co-habited until 1940. In 1930, the wife gave birth to a son, of whom, it was admitted, the husband was the father. In 1942, the wife petitioned for a decree of judicial separation on the ground of the husband’s adultery. The husband, in his answer, alleged that, for physical reasons, the marriage had never been consummated and petitioned for a decree of nullity. The wife had an invincible repugnance to sexual intercourse, described in the language of 1940s psychology as ‘frigidity’. It was held on the facts and on the medical evidence the birth of the child was due to fecundation ab extra and the marriage had never been consummated owing to the wife’s incapacity and a decree of nullity would, therefore, be granted to the husband.

There is always a tendency to confuse wilful refusal with incapacity and care must be

taken to differentiate the two since while a spouse may plead his or her own incapacity, wilful refusal may only be relied on by the other party.



What is wilful refusal?

Not any refusal to have intercourse suffices. Since consummation need occur only once, refusal to repeat the exercise will not render the marriage voidable, though it might give grounds for divorce.

‘Wilful refusal’ was described in **Horton v Horton [1947] 2 ALLER 871** by Lord Jowitt. He said, *“I do not think it desirable to attempt any definition of the phrase. ‘Wilful refusal to consummate the marriage’. The words connote, I think, a settled and definite decision reached without just excuse, and in determining whether there has been such a refusal, the judge should have regard to the whole history of the marriage.”* In this case, consummation had been delayed by the war, and an unsuccessful attempt subsequently made. The court acknowledged that in such ‘false start’ cases, one or both parties would frequently be reluctant and hesitant to try again, and in light of the wife’s evident anxiety to resolve the problem, she could not be said to be wilfully refusing.

b) Mistake, Misrepresentation and Fraud.

A mistake as to the identity of the contracting party will make a marriage voidable if this results in one party failing to marry the individual they intend to marry.

For a mistake to be able to make a marriage voidable, it must relate to identity or the nature of the ceremony.

Mistakes may be spontaneous or induced by the fraud of the other party or a third party. Other mistakes will not make a marriage voidable though the courts have with time enforced a jurisdictional protection to prevent marriages involving vulnerable individuals going ahead under such misapprehensions as was stated by the court in *Re SA (Vulnerable Adult with Capacity: Marriage) [2005] EWHC 2942* in a marriage arranged for a deaf and dumb young Pakistani woman.

Fraudulent Concealment of faith

Tatiana Adebiyi v Adebi Adenji [1900— 1991] KALR 36- in this case, the petitioner petitioned for nullity of marriage under the Divorce Act on the grounds that the respondent had fraudulently led her into marriage with him by stating that he was a Methodist and yet he belonged to a chaotic, fanatical Christian sect who pray at night, screaming, shouting and jumping. In her decision Justice Mukasa Kikonyogo held that the fraudulent concealment of the true faith of the respondent was a ground by which the consequent marriage would be declared null and void since if the petitioner had known the true profession of the respondent she would not have

married him.

Mistake as to identity.



C v C [1942] NZLR 356, 358–9 (Supreme Court, New Zealand) in this case, Callan J while quoting Moss v Moss (1897) P631 stated that, “*But when in English law fraud is spoken of as a ground for avoiding a marriage, this does not include such fraud as induces a consent, but is limited to such fraud as procures the appearance without the reality of consent*” . . . “*Error about the family or fortune of the individual, though produced by disingenuous representations, does not at all affect the validity of the marriage.*”

Note that this decision is also in tandem with the decision in **Wegfield v Mackay (1807)1 Hag. Con. 394** where it was stated that, the law makes no provision for blind credulity however it might have been produced. That the law presumes that the husband uses due caution in a matter in which his happiness and life are so materially involved.

However, the line between mistakes as to identity and attributes may not be certain. In **Militante v Ogunwomoju [1993] 2 FCR 355**, the court voided a marriage involving an illegal immigrant who had assumed the identity of someone living legally in the UK. The court further stated that where a person makes a false representation as to his identity, and another person marries him believing his misrepresentation, fraud of this nature will destroy consent. One commentator on this case notes that is not known whether the petitioner ‘thought she was marrying another man, or simply [as in C v C] that she thought the man had a different name.

Mistake as to the nature of the ceremony

Here, language barrier often creates the confusion. An example is the case of **Valier v Valier (otherwise Davis) (1925) 133 LT 830**, where the Conte Jerome Valier, an Italian resident of France who had fallen on hard times, was working in a garage and was ‘not quick on the uptake’ when spoken to in English. He went through a marriage ceremony with May Winifred Davis, aspiring actress, at St Giles’, London register office. Not realizing that he had thus been married, he later married the Marchesa Balbi in Italy. His London marriage was annulled on the ground that he had no idea when he attended the register office and signed a document, which he never subsequently saw or read, that he was contracting a marriage. In Italy, engaged couples must sign a document at the town hall and wait three weeks before obtaining a licence to marry, the marriage then being solemnized at the town hall and thereafter in church. He mistakenly thought that he was merely performing this preliminary. The marriage was annulled.

c) Fear and Duress

As we shall see, consent is key. Duress negatives consent. The law on duress has received considerable attention mostly in UK courts due to the emergence of forced marriages. Whereas such marriages are prevalent in Uganda, no case has been successfully concluded on the matter in our jurisdiction.



A distinction should however be drawn between an arranged marriage and a forced marriage. Singer J explains the difference well in *Re SK (Proposed Plaintiff) (An Adult by way of her Litigation Friend)* [2004] EWHC 3203, he says; “. . . [T]here is a spectrum of forced marriage from physical force or fear of injury or death in their most literal form, through to the undue imposition of emotional pressure which is at the other end of the forced marriage range, and that a grey area then separates unacceptable forced marriage from marriages arranged traditionally which are in no way to be condemned, but rather supported as a conventional concept in many societies. Social expectations can of themselves impose emotional pressure and the grey area . . . is where one may slip into the other: arranged may become forced but forced is always different from arranged.”

Forced marriages are therefore voidable whereas arranged marriages to which both parties consent are not.

For fear to be able to vitiate a marriage and thus negative consent, the English Courts have set up a three-stage test. Scarman J laid out this test in **Buckland v Buckland (or se Camilleri)** [1968] P 296, 301 (Probate Div) thus; “[I]n a case where it is alleged that the petitioner’s consent to marriage has been vitiated by fear, it must be shown, first, that fear of sufficient degree to vitiate consent was present; and, secondly, that the fear was reasonably entertained [A]

third proposition may be stated to the effect that, even if the fear is reasonably entertained, it will not vitiate consent, unless it arises from some external circumstance for which the petitioner is not himself responsible.” The facts of this case were rather peculiar, the husband, a member of the armed forces serving in Malta, found himself in an awkward position. Falsely alleged to be the father of a young girl’s child, he was told by his senior officers and lawyer that his only escape from prosecution and imprisonment for under- age sex would be to marry the girl. The judge ruled in the petitioner’s favour on the facts on a ratio that he agreed to marry the girl because he was afraid because of the charge that had been preferred against him strengthened by the advice given to him by his own lawyer and seniors. He was in a dilemma, it was either marriage or prison.

This test was further elaborated in *Szechter v Szechter (or se Karsov)* [1971] P 286, 297–8 (Probate Div).

In **Singh v Kaur** (1981) 11 Fam Law 152, a young man aged 21, not under any immediate threat to life, limb or liberty but because having always lived at home, he was threatened that if he did not marry, he would lose his job in the family business and have no income or transport. The court held that this did not fall under duress that could vitiate a marriage. Ormrod LJ stated that; “[O]ne can see that, through our English eyes, he is in a sad position but, at the same time, he has to make up his mind, as an adult,

whether to go through with the marriage or whether to withstand the pressure put upon him by his family. It is quite clear that this court cannot possibly hold that this marriage is invalid by reason of duress unless it can be shown that there were threats to his life, limb and liberty. Quite clearly, the evidence falls far, far short of that. There was no threat of that kind...”

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d) Consent

This also makes a marriage voidable and not void. The reason for this is that the parties themselves may wish to rectify it when true consent can be given and consequently third parties should not be able to impeach such a marriage.

Lack of consent may be relied on by either party, not only the party whose consent it is claimed was lacking. A petitioner may rely on this ground even if they are the ones that orchestrated the lack of consent.

Note that to discuss what factors negative consent here would be a repetition of what has already been discussed above.

BARS TO GRANT OF RELIEF OF NULLITY; APPROBATION OF VOIDABLE MARRIAGES AND COLLUSION.

A void marriage cannot be approbated but a voidable marriage can be.

If a marriage that is otherwise voidable due to failure to satisfy one of the formal requirements, it may be subsequently tolerable and if the party who did not know of the defect discovers it but does not set the marriage aside, then he or she has waived his or her right to do so.

This is known as approbation of marriage i.e. continuing to observe it and the defect is deemed cured.

a) Approbation by overt acts;

If a party, knowing that he may obtain a decree of nullity, acts in a way which is consistent only with his or her treating the marriage as valid, he may not subsequently treat it as voidable.

In *K v K* [1960] EA 717, the case dealt with two issues, approbation by overt acts and wilful refusal to consummate a marriage. The husband in this case claimed that he could not be satisfied with consummation because of lack of proper penetration. Court observed that since the man had stayed with the woman and had paid mortgage debts for her, he had approbated by an overt act.

b) Approbation by delay

Mere delay in presenting the petition will not necessarily bar the remedy. However, if the petitioner continues to live with the respondent as his or her spouse for a considerable length of time, this may be sufficient to amount to approbation.

In *Scott v Scott* [1959] 1 ALLER 531, the husband could not obtain a decree after

he had been content with a marriage without sexual intercourse for some five years and the reason why he now sought to dissolve it being that he wanted to marry another woman.

In **K (otherwise P) v K [1944] 21 KRL 23**, the parties were married in England in 1930. They went to Kenya and lived there for 14 years. The wife brought nullity proceedings on the ground that



the marriage had not been consummated due to impotence of the husband. That the wife learnt of the impotence and the inability to consummate the marriage after three years. She however did not bring the suit until after 11 years from the time of discovery. That she kept hoping he would be able to make it and that's why she waited for 11 years. The court held that the wife's conduct in this case did not amount to approbation and so a decree of nullity was granted.

c) Acceptance of material benefits

If the petitioner, knowing that he or she can obtain a decree of nullity continues to accept material benefits to which he would be entitled to only on the assumption that the marriage is valid, he may then be estopped from asserting that it is voidable e.g. in case a petitioning wife had continued to accept income from a trust in the wife's favour in a marriage settlement.



Topic six; The legal effect of marriage

Historically, marriage had a profound and unequal effect on the legal status of the individuals who became husband and wife.

A classic exposition of these legal effects and a beginning point of discussion should start with

W. Blackstone's commentary (W. Blackstone, Commentaries on the Laws of England, vol 1 (1765, Facsimile edn: Chicago: University of Chicago Press, 1979), 430) where he says;

"By marriage, the husband and wife are one person in law: that is, the very being or legal existence of the woman is suspended during the marriage, or at least is incorporated and consolidated into that of her husband: under whose wing, protection, and cover, she performs everything . . . Under this principle, of an union of person in husband and wife, depend almost all the legal rights, duties, and disabilities, that either of them acquire by the marriage."

This classical example represents the old patriarchal notion where men were in control however in the nineteenth century, this watered away. (For this read *Sheffield City Council v E* and another [2004] EWHC 2808, [2005] Fam 326)

The following effects cut across most types of marriages discussed herein

a) Acquisition of status of being married/ incapacity to marry.

One that gets married under the Marriage Act becomes incapable of contracting another marriage during the subsistence of this marriage. Marriage whilst still under this status constitutes the matrimonial offence of bigamy. (Refer to S.41 of the Marriage Act and *R.S v SS* [1969] EA 111.) Basing on **Hyde v. Hyde**, marriage is monogamous and during its subsistence one can not purport to enter another relationship

If such a person has sexual intercourse outside marriage he or she commits the matrimonial offence of adultery under Ss 12(d) of the Divorce Act and 10(1) (d) of the Marriage Act.

Also look at *John Tom Kintu Muwanga v Myllious Gafabusa Kintu* (infra)

b) Right of the wife to use the husband's name.

Fedlal v Goldsmith (1877) 2 PD 263- marriage confers upon a wife the right to use the husband's name but she is under no duty to do so. However, if she so wishes, she may adopt it without swearing a deed poll. The wife acquires the right to use her

husbands name but can not be compelled. It was thus stated in Fendal v. Goldsmith, while marriage confers a right to the wife to use her husbands name, she can not be forced to do so but if she desires she can use it.

Even after the termination of the marriage, the woman may retain the husband's name and the husband has no right to restrain her from using it unless she is using it for a fraudulent purpose.



c) Acquisition of the husband's domicile

The wife acquires the domicile of the husband as depicted in **Joy Kigundu v. Aggrey Awori**, the court observed that during the lifetime of the husband, the wife can not acquire domicile of her own from that of her husband because the domicile of a married woman depends on her husband's domicile and since her husband's domicile was in Kenya her domicile also was in Kenya and therefore she could not sustain divorce proceedings.

d) Presumption of legitimacy

There's a rebuttable presumption that all children born during the subsistence of a marriage belong to the parties to that marriage. The law does not make a distinction between legitimate and illegitimate children when it comes to inheritance. Therefore in **Kajubi v. Kabali**, although there was no valid marriage, the children were entitled to inherit from their deceased father.

e) Conjugal rights/Consortium

This is the living together as husband and wife with all the incidents that flow from such a relationship. The right embraces the right to companionship, love, comfort, affection, sexual intercourse etc.

Both parties have a right to consortium and both can sue anyone who destroys this right. In **Kremezi v Ridgway**, while in Greece, an English naval officer entered into a contract of marriage with a Greek girl, resident in Athens. Later the contract was renewed in England, with the intention that the new contract should be in substitution for the previous one. The marriage was to take place in Athens but the parties intended to make their matrimonial home in England. In an action for breach of promise of marriage:

Per Hilbery J: while it is true that this peculiar type of contract—the exchange of mutual promises to marry—ends, so far as legal enforcement is concerned, on the performance of the marriage ceremony, none the less the performance which the parties contemplated at the time they exchange mutual promises is not exhausted by the performance of a mere ceremony. No young woman when she accepts a proposal of marriage and a contract is formed, would be satisfied if she were told that all the young man is undertaking by the promise is to go through a form or a ceremony with her. What the parties intend is an exchange of mutual promises to become one another's spouses—to become husband and wife with all that that should entail.

In **Newton v. Handy**, it was held that a married woman has a right to consortium from the husband and can recover damages from anyone who violates this.

Section 20 of Divorce Act envisages restitution of conjugal rights. It thus provides that if the husband or wife without reasonable excuse withdraws from the society of the other, the aggrieved party may petition the court for restitution of conjugal rights.

However it is important to note that a court cannot order specific performance apparently because you can't supervise people having sex or coerce them into the same.



If there is a reasonable excuse as to why a party has left then the court can order separation. In **R v. Jackson**, the husband got a decree of restitution of conjugal rights and the wife refused to comply so he abducted her, the state set out her case to secure her release and the court held that the husband could not keep her in confinement against her will.

f) Right to recover damages.

If death of a spouse is occasioned by negligence of a third party, then the aggrieved spouse can institute a suit for damages against the third party. In *Best v Samuel Fore*, the husband was involved in an accident which impaired his sexual performance, the wife sued the person who caused the accident and succeeded in loss of consortium, other marital rights and inability to continue getting children.

In **Amos Senyakazana v. AG**, the husband sued the government for the death of his wife caused by government vehicle; he was awarded damages for loss of consortium and deprivation of company.

g) Parties loses the right to agency of necessity.

This is a common law right and it rises where the wife collects goods from a trader or shopkeeper for her maintenance and under the law she is deemed to be acting as an agent of husband granted by the case of *NAJUNKI GENERAL STORES VS MRS. PETERSON*. In this case a married woman living with her husband and keeping house ordered from the merchant goods of precisely the description one would expect a married person of situation in life to order for issue in the house hold. The issue in court was whether the wife contracted otherwise than an agent. Court held that the respondent a married person who at the relevant living with her husband acted as an agent for and with the authority of her husband.

h) The right to maintenance.

This is mainly for the wife, under the law the husband has a duty to maintain the wife e.g. alimony (financial provision made by the husband to his wife when they are living apart). The husband's is conditional on continuing to enjoy conjugal rights; these rights include inter alia living in a matrimonial house, clothing and food.

In **National Provincial Bank v. Ainsworth**, the husband and the wife were living in the house the husband deserted and the wife remained in occupation of the house. After desertion the husband mortgaged the house and the bank took it.

Held, the wife had no right in matrimonial home, she was a mere licensee of the husband, she had equity enforceable only against the husband and not third parties. It was also decided that the wife should be moved out of the house if the bank acted

genuinely and in good faith.

In **Ferris v. Weaven, [1952]**, A husband, after deserting his wife, sent her a letter in which he said: “I will carry on paying on the house [the matrimonial home] providing you do not annoy me. If you come here, I will not pay another penny, and don’t forget you have my house of furniture.” The wife continued to reside in the house and the husband paid the rates and certain



mortgage instalments in respect of it. After ten years the husband sold the house for £30 to a purchaser who bought it with full notice of the arrangement between the husband and the wife and of the fact that that arrangement had been, and was being, acted on, and with the intention of enabling the husband to defeat any right which the wife had as a result of that arrangement. In an action by the purchaser for possession of the house,

Held – The wife was a licensee with a contractual right to remain in the house as a result of the arrangement with her husband, and in the circumstances the purchaser was not entitled to recover possession of the house because he had acted in bad faith.

In **Stewart v Stewart [1947]**, on an application by a husband for possession of the matrimonial home the county court judge found as a fact that the husband was the tenant of the premises. There was evidence that the parties had not cohabited for a considerable period, that they were making counter accusations against each other, and that the husband had filed a petition for divorce on the ground of the wife's adultery. The judge made an order for possession within two months, which might have resulted in the wife being ejected from the matrimonial home, and refused to make that order conditional on the husband providing accommodation elsewhere for the wife. On appeal it was held that the county judge had properly exercised his discretion.

When does the duty to maintain the wife cease?

- a. When the wife commits a matrimonial offence e.g. adultery
- b. Desertion by the wife without reasonable justification.
- c. Death of the wife distinguishes the right to maintain.

By a separation deed which recited that the parties had agreed to live separately and apart, the husband covenanted to pay the wife “for her separate use and for the maintenance and support of herself a clear annuity of £104 payable by weekly payments of £2 each until determined. On the husband's death, his executor discontinued the weekly payments. The wife brought an action against the executor.

Held, there was no general rule of law that a covenant in a separation deed was intended to bind the estate of the covenantor; whether such an obligation was intended depended on the terms of the particular contract. In the present case, the obligation to pay the annuity did not pass to the executor, since the husband's covenant could not be construed as intended to continue after his death.

Obiter, in Tanzania there is dual obligation. If the wife is financially stable she can be

ordered to pay expenses when the husband is sick, impaired, imprisoned or advanced in age.



HOW CAN A WIFE ENFORCE MAINTENANCE?

a) Enforcing her right of agency of necessity.

This arises where the wife collects groceries and goods on credit and the shop owner demands payment from the husband. The wife is treated as the husband's agent and agency is only for necessities of life.

In *Callot v. Nash*, it was stated that necessities are articles that are reasonably needed and in the style of living set by the husband. In this case a firm supplied dresses for the wife that was not paid for and the firm sued the husband on agency. The husband argued that the wife had her private means.

Held, the existence of the private means of the wife while relevant, it did not exonerate the husband from paying the bills.

The decision in *Callot v. Nash* was overruled in a later case and it stands as a bad law. This was captioned in *Biberfeld v. Berens*, A wife, who was compelled to leave her husband by reason of his cruelty, borrowed money from the plaintiff for the purchase of necessities. The wife possessed savings certificates worth £1,125, a balance of £37 at her bank, a co-operative society's dividend of £7 5s 9d, and jewellery worth £250. The plaintiff sued the husband for repayment of the money lent on the ground that the wife had borrowed it as the husband's agent of necessity.

Held – In considering whether a wife, who has been compelled by her husband's conduct to leave him, is her husband's agent of necessity, regard must be had to her means; in the present case the wife had assets which she could have been reasonably expected to use to pay for necessities; and, accordingly, she was not her husband's agent of necessity and the plaintiff's claim failed.

In *Nanyuki Trading stores v. Peterson*, the wife had purchased some liquor which the husband refused to pay for, the husband argued that the wife was acting otherwise than agent of necessity. Issue, whether liquor is a necessity?

Held, it must be considered if the amount of liquor is of an extent that might be reasonably expected by a person in the husband's state of life.

Conditions necessary for a trader to move against the husband

Under common law the husband is liable for burial expenses even if the wife died in desertion. However it is important to note that where the wife leaves an estate sufficient to pay her expenses for burial the husband is not liable for the same.

On the same note it is trite law to argue that if the husband dies first, the executors of his estate have no duty to maintain the wife. Therefore in *Langstone v Hayes [1946] 1 All ER 114*

○ It must be proved that the husband refused to supply the wife with the

necessaries of life.

- The husband must still have the right to maintain the wife.
- The wife cannot exercise agency of necessity for items which are not necessities of life.
- The husband must not have prevented the wife from exercising agency of necessity.



- The trader must show that she gave the goods of the agent of the husband and not on the wife's right. This applies to goods and not money.
- The trader must prove that the husband did not expressly terminate this right.
- Legal expenses of the wife can also be treated as necessities of life.

b) Through a bilateral maintenance agreement.

Spouses if living in separation may include a clause in their separation agreement of maintenance and this agreement must be enforceable.

In *Williams v. Williams*, a wife left her husband and the husband promised to make her weekly payment for her maintenance. He failed in this and the wife claimed the arrears. The husband claimed that she had deserted and she could maintain herself.

Lord Denning MR held, a promise to perform an existing duty is sufficient consideration to support a promise, so long as there is nothing in the transaction which is contrary to public interest.

c) Maintenance order from court.

In Uganda statutory law does not create a right of a wife to seek maintenance order where the marriage is still ongoing. However Article 139 of the constitution, Judicature Act Cap 13 section 14, Civil Procedure Act Cap 71 section 98 and Magistrate Courts Act Cap 16 section 10 provides courts with jurisdiction to hear family law cases. They may apply doctrines of common law and equity in ensuring there is maintenance between the husband and the wife.

In *Johnstone v. Johnstone 1960*, a husband had left his wife and was living with a rich woman and had new additional income to be taken into account when issuing maintenance order.

Held, where a party has failed to make full disclosure of income, property and other resources, court is entitled to draw inferences against him.

In *Stringer v Stringer [1952]*, the husband and wife parted by mutual consent in November, 1946, and from that date the husband had not paid the wife any maintenance nor had she demanded any maintenance until 17 July 1951, when she issued a summons for wilful neglect to maintain.

Held – Proof of a consensual separation of spouses without any agreement by the parties regarding the maintenance of the wife is sufficient to rebut the common law presumption that a husband is liable to maintain his wife.

d) Auxiliary relief.

Section 23 of Divorce Act Cap 249 gives the court power where proceedings have been filed to provide *Alimony pendente lite*. The court may award alimony not exceeding 1/5 (a fifth) of a husbands income. Section 24 provides that on permanent dissolution, the court may order the



husband to secure to the wife such amount of money as it may deem reasonable. If she doesn't trust the husband the court may receive on her behalf.

In Tanzania, a wife has a duty to maintain if her husband's earning is impaired. On the other hand in England the party more capable of maintaining is responsible.

However it is important to note that the issue of *res judicata* may apply since the wife cannot apply for revision of the sum awarded as a result of economic change.

e) Fiction of one person.

According to *Balfour v. Balfour*, a domestic arrangement can't be taken as a binding contract.

In **Uganda v. Chanda, 1977**, a married woman could own property separately from her husband and could sue him over her property.

In **Moonlight Sengooba v. Administrator General**, the woman was allowed to inherit insurance benefits arising out of a policy taken out by her husband. The position of one party is also apparent in rules of evidence as depicted in *Uganda v. Kato*, where a woman gave evidence against a man she was cohabiting with. In practice a spouse is not a compellable witness in criminal cases.

f) Resultant trust

This arises where one party has contributed money in the purchase of property in question. The law assumes that the legal owner is the trustee of the other party who is not registered.

In ***Allen v. Allen, 1961 WLR 1186***, the husband had agreed before marriage to purchase a house from her mother in law, after the purchase he put it in his sole name. During the subsistence of marriage his wife applied her income towards household expenses while the husband paid the mortgage instalments. During dissolution of marriage the husband sought to repossess the whole property as the sole owner but the wife counter claimed for a fair share. The court said that it was not automatic that equal shares arose where the husband and the wife were wage earners. However the court agreed with the wife and said she was entitled to a share due to her household contribution.

In a latter case the court took a different view in ***Pettit v. Pettit [1968] 2 All ER 388***. A wife purchased property, the husband undertook internal decoration work and build a wardrobe in it, he also laid a lawn and also constructed an ornamental well

and a side wall in the garden all these improved the value of the property.

Issue, whether the husband by reason of his expenditure and labour was entitled to claim a beneficial interest in the proceeds of sale of property.

Held, the husband was not entitled to an interest in his wife's property merely because he had done during his leisure time jobs which husbands normally did. There was no justification for



imputing common intention that husband should acquire beneficial interest in respect of the work that he did.

In ***Falconer v. Falconer***, the husband and wife were married in 1960. In 1961 when they were living in a flat, they decided to buy a plot of land and build a house on it. The price of the plot was £525 of which the wife's mother provided £80 and the balance was raised by mortgage buy the wife as the mortgagor and the husband joining as a surety. In the construction of the house, the wife was the mortgagor, the husband's father guaranteed mortgage repayment for 17 months and the husband paid £105 out of his money. The husband was paying the wife for housekeeping until 1967 when the wife committed adultery and on dissolution of marriage.

Held, the plot of land was solely obtained by the wife's efforts and contribution and hence belonged to her, but the house was paid for by both parties and belonged to them jointly in equal shares.

Where the property in question is matrimonial home, the law imputes an intention to create a trust against each other especially where there is contribution substantially to the purchase.

Common intention cannot be inferred where there is indirect contribution.

In ***Gissing v. Gissing***, the parties purchased a matrimonial home and conveyed it in the sole name of the appellant. There was no express agreement as to how beneficial interest in the matrimonial home should be held. The respondent made no direct contribution towards the initial deposit or legal charges nor to the mortgage instalments. The respondent provided some furniture and some equipment for the house and for improving the lawn; she also paid for her clothes and for her son's clothes.

It was not suggested that either the respondent's efforts or earnings made it possible for the appellant to raise the loan or the mortgage. The marriage broke down and the respondent obtained decree absolute.

Issue, whether the respondent had any beneficial interest in former matrimonial home?

Held, on the facts, it was not possible to draw any inference that there was common intention that the respondent should have any beneficial interest in the matrimonial home. The court could not ascribe intentions which the parties never had, nor can the ownership of property be affected by mere fact that harmony has been replaced by discord.

In ***Ulrich v. Ulrich & Felton***, before their marriage, the parties bought a bungalow. The wife contributed £415 and the husband obtained a mortgage for the rest of the

money i.e. £2000. The bungalow was conveyed in the husband alone, it was intended to become their matrimonial home. After their marriage they both continued with their work, their joint earnings being used for household expenses. After delivering an issue of the marriage the wife ceased to work to look after the boy. After resuming work the wife committed adultery and the husband left the matrimonial home and on obtaining divorce it was agreed that the house had to be sold.



Held, money contributed before marriage was the same as that contributed after, the husband and the wife were entitled to the house in equity. A variation of ante nuptial settlement should be fair and the husband should take half of his share of equity of redemption of the house and the wife's half should be put in trust in whole or in part for the child of the marriage.

Section 26 of the divorce Act provides that, when a decree of dissolution of marriage or of judicial separation is pronounced on account of adultery by the wife, and the wife is entitled to any property, the court may, notwithstanding the existence of the disability of coverture, order the whole or any part of the property to be settled for the benefit of the husband, or of the children of the marriage, or of both.

In *Edita Nakiyingi v. Merekiyadeki*, the plaintiff and the defendant were married under customary law and the father of the defendant gave a kibanja to the plaintiff on which the plaintiff and the defendant erected a house. The wife contributed corrugated iron sheets plus tendering the kibanja and growing some crops. After the collapse of marriage;

Held, where the matrimonial home is beneficially owned by the husband and the wife jointly in equity or other shares under trust for sale, neither party was entitled as a right to expel the other and thus deprive him or her of his/her share. In the circumstances of the instant case, the kibanja and the house were beneficially owned by the husband and the wife under a trust for sale having arisen out of the substantial contribution by the wife towards the development of the kibanja and building of the house and thus the husband could not exclude the wife from the enjoyment of their joint endeavours.

g) Bank accounts

In the case of **Re Bishop**, the court considered the rules governing joint accounts. In this case it was stated that, where spouses opened a joint account to be drawn by either and any investment made by the money from the account belongs to the person in whose name the investment was purchased and if one spouse made a purchase in their joint names there was no equity to displace joint legal ownership. Any investment purchased with the money from the account in the name of either spouse belonged beneficially to that spouse and on the husband's death the balance standing to the credit of the joint account accrued beneficially to the wife.

In **Jones v Maynard**. In May, 1941, a husband and wife each had a banking account, but, as the husband was to go abroad on war service, it was decided that their joint incomes should be paid into the husband's account on which the wife was given power to draw. From time to time money was withdrawn from the account by both parties for their own purposes, and, in particular, for investments which were made

in the name of the husband. In July, 1948, the marriage was dissolved.

Held – On the evidence the intention of the parties was to constitute a pool of their resources in the form of a joint account; it was not consistent with that intention to divide the moneys in the account and the investments made with moneys withdrawn therefrom by reference to the amounts respectively contributed to the account by each of them; and, therefore, the husband



must be regarded as trustee for the wife of one-half of the investments and of the balance of the account.

In **Harrods v. Tester**, a husband opened a banking account in his wife's name, all payments into the account being made by the husband. The account was used for domestic and other purposes. The wife always asked for her husband's consent before she drew on the account and she had given the bank the mandate to allow her husband to draw on the account. Judgement creditors sought to garnishee the account.

Held, on the facts there was a resulting trust in favour of the husband, and as the moneys were therefore the property of the husband, the wife's creditors could not garnishee the account although it was in her name.

In law there is a presumption that wedding gifts belong from the person on whose side they originated. In **Samson v. Samson**, it was stated that there is no principle of law that wedding presents are joint wedding presents to both spouses. If there is evidence of intention on the part of the donor, that may determine whether the gift belongs to one spouse or both, but if there is no such evidence, the inference may be drawn that gifts from the relatives or friends of a spouse were gifts to that spouse. Property which was given to one spouse may also become the property of both by subsequent conduct.

h) Chattels and household furniture. In **Re Cole**, a husband acquired a lease of a large mansion which he furnished by articles mainly bought by himself. After sometime he took the wife to the mansion and after showing her around she handled some articles and he told her it's all yours. They always considered the furniture to be the property of the wife. When the husband became bankrupt the wife claimed most of the furniture as her property.

Held, where the husband and the wife were living together in a common establishment, possession of the furniture therein followed the legal title to the furniture and although the wife may have use and enjoyment of it, and the facts of this case were equivocal and did not establish a charge of possession on delivery of the furniture to the wife as a gift transferring the property to her. Accordingly there had not been effective or perfected gift to her of the furniture and the husband's trustee in bankruptcy was entitled to the furniture.

i) Savings from household expenses

In **Blackwell v. Blackwell**, a husband and wife separated in 1941. At that date there was standing to the credit of the wife in the books of a co-operative society a

sum of £103 10s which upon the evidence represented moneys saved from a housekeeping allowance made to the wife while the parties were living together. It was contended for the wife that this sum was her own property:—

Held, it was clear that the source of this money was the husband's weekly allowance and that was sufficient in the absence of any evidence to the contrary that this money was still the property of the husband.



Exceptions

Where the savings are from the wife's personal effects Gift to a couple living separately

Money advanced from maintenance



Topic seven

SIKIA

Suspension and Termination of Marital Obligations

LOW

SUSPENSION AND TERMINATION OF MARITAL OBLIGATIONS

Suspension or termination of marital obligations in Uganda is three-fold;

1. Death.
2. By Mutual agreement and Judicial Separation
3. By a Court Order or Divorce.

1) DEATH

The death of either party to a marriage ipso facto brings the marriage to an end. This is a rather old ground through which a marriage traditionally was presumed to have come to an end. If H's spouse, W, disappeared in such circumstances as to lead to the reasonable inference that they were dead, H would remarry without committing the offence of Bigamy and the second marriage would be presumed to be valid.

However, if it were later proved that the spouse was in fact alive when H remarried, then, the second marriage would be void.

There is no express provision under the Ugandan laws that provides for dissolution of a marriage by death. However, by implication Section 39 of the Divorce Act Cap 249, hints on such a dissolution and the fact that parties can remarry.

Death in these circumstances is a rebuttable presumption. The presumption of death is dealt with in different statutes.

Section 108 of the Evidence Act for instance provides on whom the burden of proof lies in a case where the question of whether a person is dead or alive arises. The provision provides for a time lapse of seven years. If it is proved that after seven years a person has not been heard from by those who would naturally have heard of him or her if he or she had been alive, the burden of proving that he or she is alive is shifted to the person who affirms it.

For purposes of administration of the estate of such a person, Section 20 of the Estates of Missing Persons Management Act Cap. 159 provides for a time period of three years.

The petitioner is however not required to rely on these time frames if they can produce evidence to the satisfaction of a Court of law that the spouse is dead.

However, the timeframes will be of great importance when there is no evidence at all of what has happened to the spouse.



2) MUTUAL AGREEMENT AND SEPARATION

A separation occurs where a husband and wife agree to stay apart for a given period after which they could decide to either get back together or initiate divorce proceedings.

In *Lister's Case*, 8 Mod. 22, it was stated by the court that, "*An agreement between husband and wife to live separate, and that she shall have a separate maintenance, shall bind them both until they both agree to cohabit again; and, if the wife be willing to return to her husband, no court will interpose or obstruct her. But, as to the coercive power which the husband has over his wife, it is not a power to confine her; for by the law of [England] she is entitled to all reasonable liberty, if her behaviour is not very bad.*"

The parties usually agree on custody and maintenance of the children and either party.

This type of separation can either be by court order or by simple mutual agreement. Both types of agreements are enforceable by court.

Whether the order is by a court of law or the agreement initiated by the parties, it does not mean that the marriage has ended. The parties are both de facto and de jure husband and wife though they have suspended some conjugal rights. (Read; **Besant v. Wood (1879) 12 Ch. D. 605**)

In **Ringsted v Lanesborough 3 Doug. 197 (K.B. 1783)**, Lord and Lady Lanesborough had separated and had agreed on how to share the property. The husband moved to Ireland while the wife stayed in England where she contracted some sundry debts and when a suit was brought against her, she defended herself saying that she was actually married and that the husband was liable for these debts as necessities. Lord Mansfield in his judgement said the effect of a separation agreement as thus; "*The agreement of separation bound both the parties in the same manner as if they had been sole, and the court will not suffer either of them to break through it. Under the agreement the wife possesses a separate property. She is no longer under the control of her husband, and creditors, even for necessities, have no remedy against him. Credit was given to her as a single woman; and shall she now be permitted to say that she was not single? . . . We are of opinion that the case resembles abjuration or exile in every particular, that the wife therefore may be sued alone, and that she cannot avail herself of this most iniquitous defence*"

There is no provision under the laws that provides for the mutual agreement to separate out of court and how the agreement should be framed but the rules are developed out of common law, however, the period of separation should not exceed

two years.

The guiding principle on separation agreements was laid out by the House of Lords in **Fender**

v. St. John-Mildmay [1937] AC 1 as simply that it should not be against public policy.



The first and cardinal clause to include in a separation agreement is that the parties agree to leave apart.

The reason why parties usually opt to go for separation agreements when they can go for judicial separation is because they lack the grounds to obtain the judicial separation

a) Judicial separation

This remedy is usually sought after where the parties lack the grounds of divorce.

The grounds for Judicial separation are provided for under Section 14 of the Divorce Act, thus a husband or wife may apply by petition to the court for a judicial separation on the ground of cruelty, adultery, or desertion without reasonable excuse for two years or upwards, and the court, on being satisfied that the allegations of the petition are true, and that there is no legal ground why the application should not be granted, may decree judicial separation accordingly.

The decree and its effects;

Under Section 15 of the Divorce Act, although the marriage is still subsisting, the wife is treated to be un-married with regard to property she acquires from the date of the decree.

The decree relieves the petitioner from the duty of cohabiting with the respondent. This means that as long as it is in force neither spouse can be in desertion, and also that a husband who has intercourse with his wife against her will may be guilty of rape.

In **R v Clarke [1949]**, the defendant was accused of the rape of his wife and assault. At the time they were separated by virtue of a court order recently obtained by her. He replied that the offence alleged was not known to law because of the marriage. It was held that the separation order amounted to a withdrawal by the wife of the consent implied by the marriage. He could be guilty of the rape alleged.

The wife as already noted is treated as un-married and therefore under Section 16, she can sue and be sued in her own names and her husband shall not be liable in any way.

The court has power to make a number of orders relating to the custody and welfare of the children of the marriage to financial relief.

As noted under Section 15 of the Act, the decree will also affect the devolution of a spouse's property if he or she dies intestate.

It is worth noting that for all other purposes the spouses remain husband and wife and neither of them is at liberty to remarry and all legal disabilities that come with this status remain in force. For example in **Moss v Moss [1963]** 2 ALL ER 829 the Court held inter alia that,



in criminal cases, subject to certain common law and statutory exceptions, a spouse is incompetent to give evidence against the other, and the incompetence continues after a decree absolute for divorce or a decree of nullity (where the marriage annulled was merely voidable) in respect of matters which arose during the coverture and applies to the spouses notwithstanding a decree of judicial separation.

Discharge of the decree;

Under Section 17 of the Act, the decree of judicial separation may be reversed by the court on application of any party to the marriage by either showing that it was obtained ex-parte or if desertion was the ground of the decree the person's petition for reversal may prove that there was reasonable ground for the desertion.

The other ground is showing that the spouses have resumed cohabitation. In *Haddon v Haddon* (1887) 18 QBD 778, the court noted that the effect of a resumption of cohabitation is to put an end to the legal existence of the order and to render it no longer operative.

In ***Oram v Oram* (1923) 129 LT 159**, an application was made by petitioner for discharge of a decree of judicial separation at the suit of W on the ground of H's adultery. W had subsequently petitioned for increased alimony, but during those proceedings, H had been taken ill and W had nursed him. A reconciliation followed and the parties lived together until H left W. Petitioner asked that the decree of judicial separation be discharged. The court was able to discharge a decree of judicial separation when the parties, by resuming cohabitation, appear to have put an end to it. The court has an inherent power to discharge an order which has become ineffective.

Also where the parties' agreed period of separation or the court period ends.

3) DIVORCE;

Divorce involves the termination of marriage by a court of competent jurisdiction. The law relating to divorce is consolidated in the Divorce Act Cap 249 and the rules made there under. However, different types of marriages have their modes of divorce as we shall discuss below.

It should be noted that for court to pass a decree of divorce, the Petitioner should have been domiciled in Uganda at the time the petition is presented. This is provided for under Section 1 of the Divorce Act.



THE LAW RELATING TO DIVORCE

The term divorce is not defined in the divorce act but basically means a formal dissolution of marriage based on appropriate and applicable grounds under the relevant law. The grounds for divorce depend on the nature of marriage and the rules and procedures that regulate such a marriage as well as its dissolution.

Other than death which automatically dissolves marriage in all other cases marriage can be dissolved on recognised grounds either under a divorce Act or under applicable customs as provided for in **Article 37 of the constitution** which provides that *“Every person has a right as applicable to belong to, enjoy, practise, profess, maintain and promote any culture, cultural institution, language, tradition, creed or religion in community with others”*, or under Islamic faith and in accordance with principles and procedures applicable there under.

LAW APPLICABLE FOR DIVORCE

Divorce is governed by a number of legislation including constitution Article 31(1) which provides that *“Men and women of the age of eighteen years and above have the right to marry and to found a family and are entitled to equal rights in marriage, during marriage and at its dissolution.”*, Divorce Act Cap 249, Customary marriage registration act Cap 248, the marriage and divorce of the Mohammedans’ act, the judicature act section 14, common law and doctrines of equity and Divorce rules. **Julius Rwabinumi v. Hope Bahimbisomwe.**

In **John H R Thornhill v Islay Thornhill & another [1964] 1 EA 616**, the Petitioner’s petition was dismissed by the Court because the Petitioner failed to prove that they were domiciled in Uganda. The court stated that, *“there was insufficient evidence of a settled intention on the part of the petitioner to remain in Uganda permanently to enable the court to hold that he had acquired a domicile of choice there.”*

Furthermore, Section 3 provides for jurisdiction of the Courts in Divorce matters. Where all parties are Africans or where a petition for damages only is lodged in accordance with section 21, jurisdiction may be exercised by a court over which presides a magistrate grade I or a chief magistrate and in other cases jurisdiction shall be exercised by the High Court only.

PRELIMINARY FOR DIVORCE UNDER THE DIVORCE ACT

Jurisdiction is very important in divorce, it is important to identify the court with prerequisite jurisdiction to entertain the petition for the purpose of divorce under the divorce act.

Jurisdiction is provided in Section 3 of the divorce act.

(1) Where all parties to a proceeding under this Act are Africans or where a petition for damages only is lodged in accordance with section 21, jurisdiction may be exercised by a court over which presides a magistrate grade I or a chief magistrate.

(2) In all other cases jurisdiction shall be exercised by the High Court only.



DOMICILE

In order for a court to make a decree for dissolution of marriage, the petitioner must prove to the court that at the time which the petition is presented he/she is domiciled in Uganda. This section was subject of judicial separation in the case of *Joy Kigundu v. Aggrey Awori [2001- 2005] HCB 122*. The court held that section 2 currently section 1 of the divorce act is to the effect that a decree for the dissolution of a marriage cannot be made unless the petitioner is domiciled in Uganda at the time which the petition is presented. In the instant case the petitioner was domiciled in Kenya and the High Court of Uganda in the circumstances had no jurisdiction to entertain her petition for the dissolution of marriage.

There are various ways or forms in which parties may acquire domicile in Uganda.

1. **Marriage**; this arises in relation to married women whose domicile depend on the domicile of the husband as long as he is alive. In the case of Joy Kigundu (supra), the court observed that during the life time of the husband, the wife cannot acquire domicile of her own separate from that of the husband because domicile of married women depends on the husband and since her husband was domiciled in Kenya her domicile was also in Kenya.
2. **Domicile of choice**; it is possible for parties to marriage to acquire domicile of Uganda by choice, in order to satisfy the court that the parties have acquired domicile of choice, they must prove that they have abandoned their domicile of origin and they have settled intention to permanently stay in Uganda.
 - ✓ *Tatiana Adebisi v. Adebisi Adenji [1990-1991] KALR 36*
 - ✓ *Thornhill v. Thornhill [1965] E.A. 268*
 - ✓ *McKay v. McKay*

Domicile maybe proved by the petitioner's evidence by way of affidavit. *Thornhill & McKay*. The burden of proof of domicile lies on the petitioner and the standard of proof vary depending on whether the petitioner is relying on her domicile or on the domicile of the other party to the marriage. *Lyon's case*

GROUND FOR DIVORCE

Divorce is the dissolution of marriage. Marriage is an institution that is supposed to be for a life time however due to conditions beyond human control this institution is shaken and the law comes in to protect the affected parties.

In a petition for divorce, it is incumbent on the petitioner to prove:

- a) Existence of a valid marriage.

- b) Domicile in Uganda.
- c) The grounds for divorce.
- d) The absence of any of the bars to divorce.



Not every misunderstanding can be a ground for divorce, the law provides grounds for divorce and these are what am going to briefly take you through. The grounds for Divorce under the Divorce Act are provided for under Section 4(1) of the Act. It is worth noting from the onset that these grounds contrary to their current wording, they were modified by the Constitutional Court in *Uganda Association of Women lawyers and others v Attorney General* (Constitutional Petition No. 2 of 2003, where the Court unanimously noted that all grounds of divorce are available to both parties to the marriage and the provisions so do the provisions apply to both women and men who are parties to that petition.

In **Norman v. Norman**, it was held that adultery means adultery given the natural and the ordinary meaning of the word.

In section 4(1) the issue that the husband will only petition only on the ground of adultery, the words were so clear and should not be construed as giving the husband any other ground to petition for divorce.

However, the constitutional court took a different view in **Uganda Association of Women Lawyers v. Attorney General (FIDA case)** wherein they stated that each of the ground in section 4 is available for both the husband and the wife and this is the law. According to section 4(2) a wife may apply by way of petition.

a) **ADULTERY**

Married parties have a duty to be faithful to one another if it's a monogamous marriage a man/ woman ought to remain with one spouse. In the event of unfaithfulness the affected spouse can petition for divorce as long as there's evidence. Adultery is a quasi-criminal offence and the burden of proof is slightly higher than a balance of probabilities.

Adultery has been defined in **Veronica Habyarimana v Perfect Habyarimana [1980]** as “...consensual sexual intercourse during the subsistence of the marriage between one spouse and a person of the opposite sex, not the other spouse. It is sexual intercourse between two persons of whom one or both are married but who are not married to each other”. (12 Halsbury’s Laws of England, 3rd Edn. para 444, pp. 235 – 236. Consensual intercourse excludes rape e.g. of the woman. In **Rapsin v Rapsin [1953]**, it was held that; *where an allegation of adultery is made against the wife, she may in order to rebut that allegation, adduce evidence to prove that the sexual intercourse was not consensual, i.e. she was a victim of rape. However the burden lies on her to prove lack of consent.*

Specific grounds for adultery:

Section 4(1) of the Act provides: “*A husband may apply by petition to the court for the*

dissolution of his marriage on the ground that since the solemnization of the marriage his wife has been guilty of adultery.”

In **Norman v Norman (1973)**, it was held that; *...given the natural and ordinary meaning of the words used in s.4 (1) of the Act, the inference is that a husband will only petition for divorce on*



the ground of adultery. That the words were so clear and could not be construed as giving a husband any other ground to petition for divorce.

This position has been modified in the case of **Uganda Association of Women Lawyers & 5 Ors v AG (2003)** thus; - *each of the grounds for divorce in s.4 (1) and (2) is available equally to both the husband and the wife i.e. the husband can rely on any ground in the Divorce Act. (And that the provisions relating to the naming of a correspondent, compensation, damages, and alimony apply to both men and women who are parties to the marriage).* The discriminatory provisions in the Divorce Act requiring the husband to prove adultery while the wife has to prove adultery in addition to other ground/s have been addressed by the Constitutional Petition. Adultery as a ground for divorce is available both to the wife and to the husband by virtue of the Constitutional Court's decision. This is because **Art. 31(1)** of the Constitution provides that men and women are entitled to equal dignity.

In **Dr Kazibwe's** case, the court noted that the position of the law is that both adultery and cruelty are distinctive grounds each on its own rights upon which a decree for dissolution of marriage may be issued. The petitioner (wife) could therefore obtain a decree for divorce after proving to the satisfaction of the court either the ground for adultery or cruelty or both.

Burden/standard of proof in adultery:

The burden of proof lies on the petitioner to satisfy court that indeed there was adultery committed by the respondent. In **Veronica Habyarimana v Perfect Habyarimana [1980] HCB**, it was held that; - in adultery, the burden of proof lies throughout on the person alleging it there being a presumption of innocence – *Galler v Galler [1954] p.232*

The burden of proof lies on the petitioner to satisfy the court that indeed there was adultery committed by the respondent. In **Ruhara v. Ruhara (Mary Ruhara v. Christopher Ruhara)**, it was held that; - *the basic rule as established by case law is that in cases of adultery the burden of proof lies on the petitioner and it is heavier burden than that that lies on a party to an ordinary civil action though it is not high as in criminal cases.*

Bater v Bater [1951] P 35 Per Lord Denning LJ: *"In civil cases, the case may be proved by a preponderance of probability, but there may be degrees of probability within that standard. The degree depends on the subject matter. A civil court, when considering a charge of fraud, will naturally require a higher degree of probability than that which it would require when considering negligence. It does not adopt so high a degree as a criminal court, even when considering a charge of a criminal nature; but still it does require a degree of probability which is commensurate with the occasion. Likewise, a divorce court should require a degree of probability which is proportionate to the subject matter."*

In order to constitute adultery as a ground for divorce, there must be penetration of female organ by the male organ and it is important that the petitioner should adduce evidence to corroborate the alleged adultery.

In **Dennis v Dennis [1958] All ER 651**, *Court emphasised that a mere attempt, penetration not having taken place, does not constitute adultery.*



In **Redpath v Redpath [1950] All ER 600**, it was held that; *if a husband's sues for divorce on the grounds of the wife's adultery and he proves that an act of intercourse has taken place, the burden shifts to the wife to prove that the act occurred against her will in the course of a rape committed on her by the correspondent.*

In **Rapsin v Rapsin [1953] 2 All ER 349**, where an allegation of adultery is made against the wife, she may in order to rebut that allegation, adduce evidence to prove that the sexual intercourse was not consensual, i.e. she was a victim of rape. However the burden lies on her to prove lack of consent.

In **Preston-Jones v Preston-Jones**, the husband was absent from the United Kingdom from 17 August 1945, to 9 February 1946. On 13 August 1946, the wife gave birth to a normal child, and the husband brought a petition for dissolution of marriage on the ground of her adultery, the charge being based on the fact that a period of three hundred and sixty days elapsed between 17 August 1945, and 13 August 1946, from which, it was alleged, it followed that the child must have been conceived in adultery. **It was Held that;** - though a finding of adultery against a wife might have the effect of bastardising her child that did not mean that a degree of proof of adultery was required such as in a scientific inquiry would justify the conclusion that such and such an event was impossible. No higher proof was demanded than that the fact should be established beyond reasonable doubt, and in the present case all the court could demand was that it should be established beyond all reasonable doubt that a child born three hundred and sixty days after a particular coitus could not be the result of that coitus. On the evidence in the present case it was proved beyond reasonable doubt that the husband was not the father of the child, and he was entitled to a decree.

In **Dr. Specioza Kazibwe v Eng. Charles Kazibwe Divorce Cause no.3 of 2003**, it was held that;- Regarding Standard of proof in adultery; it was held that; *the Court was satisfied, in terms of s.8(1) of the Divorce Act, that the petitioner's case has been proved to the standard required in matrimonial matters. That standard of proof being one that is higher than what is ordinarily required in other civil matters but not as high as beyond reasonable doubt as required in criminal cases.*

Corroboration:

In **Ruhara v Ruhara [1977] HCB 86**, Court emphasised the requirement for corroboration while noting that direct evidence, apart from that of the petitioner is seldom available. It held that adultery may be inferred from the fact that the parties spent a night (or part of it) in the same room, but that the court is not obliged to draw such inference, and if no further evidence is available, it may dismiss the petition in that respect. In the instant case since there was no corroborative evidence in support of the petitioner's evidence, adultery was not sufficiently proved.

What evidence is corroborative? Parties sleeping together in the same room. Additionally, previous conduct and subsequent conduct is sufficient to corroborate. Note that mere attempt does not constitute adultery.



It is also important for the petitioner to adduce evidence to corroborate the alleged adultery. It has also been suggested that in case of adultery, it is not necessary to prove a direct fact of adultery. Adultery can be proved by circumstantial evidence as long as that evidence is cogent to the extent that it raises no other inference other than the fact that the respondent committed adultery.

It has also been suggested that in cases of adultery, it is not necessary to prove a direct fact of adultery. That adultery can be proved by circumstantial evidence, as long as such evidence is cogent to the extent that it raises no other inference other than the fact that the respondent committed adultery.

In **Rapsin v Rapsin [1953] 2 All ER 349**

The issue was whether evidence of hotel receipts, a register and evidence from the waitress was sufficient to prove that there was adultery. Court held that: -

(where there was no evidence of a background of an adulterous association, the Court was not always prepared to make a finding of adultery. Where a hotel bill and waitress were produced, the hotel waitress was called to give evidence. However, in the circumstances of this case, the Court was satisfied that the husband had committed adultery and the wife was entitled to a decree)

- Where there is no direct evidence, it may rely on circumstantial evidence and make an inference as to the existence of adultery and that the hotel bills and register would constitute sufficient corroboration as evidence to substantiate the allegation of adultery.
- Where an allegation of adultery is made against the wife, she may in order to rebut that allegation, adduce evidence to prove that the sexual intercourse was not consensual, i.e. she was a victim of rape. However the burden lies on her to prove lack of consent.

In **Veronica Habyarimana v Perfect Habyarimana**, Court noted that the standard of proof of adultery is well settled; *where there is an allegation of adultery it must be proved to the satisfaction of the court that while the evidence need not reach certainty, nevertheless it must carry a high degree of probability.* (Compare with Kazibwe's case)

Still on circumstantial evidence, if the respondent produces a child and paternity is proved, the party may admit adultery either through his/her confession or otherwise.

Adultery may be proved by admission of the respondent. In **Dr. Specioza Wandira Naigaga Kazibwe v Eng. Charles Nsubuga Kazibwe (2003)**, it was held that; adultery can be proved by the petitioner by adducing direct or circumstantial evidence. It can also be proved by admission on the part of the party against whom it has been

alleged... Once the fact is admitted, it need not be proved and the person making the claim is entitled to judgment upon the admission. In the instant case, adultery was admitted.

Where the petitioner relies on adultery as a ground for divorce, it is essential that the respondent be guilty of adultery but the petitioner should be innocent. Where both parties commit adultery, neither can succeed. In **Christopher Kivumbi v Mariam Kivumbi [1976]**,



Court noted that the petitioner was on his own admission guilty of continuous adultery and he could not justly be aggrieved by the adultery of the wife.

However, a petitioner who is guilty of adultery may apply to the court to have such adultery condoned by court and if a proper application is made and granted by court, the petition for divorce may be allowed. E.g. where the petitioner was patient but ran out of patience.

b) CRUELTY

The Divorce Act does not define what amounts to cruelty as a ground to support a petition for dissolution of a marriage. Nevertheless, judicial creativity has laid a foundation for the meaning of cruelty. Cruelty occurs when one spouse conducts himself/herself in a manner which causes injury or a reasonable apprehension of injury or harm to one's life or limb. However, cruelty occurs where one spouse conducts him or herself in a manner which causes injury to the other or a reasonable apprehension of injury or harm on one's life or injury for example, battery, denial of conjugal rights, too much demanding of sexual intercourse and nagging.

Section 4 (2) of the Act provides that a wife may apply by petition to the court for the dissolution of her marriage on other grounds such as adultery, bigamy, rape, sodomy, bestiality, cruelty, desertion without reasonable excuse for two years or upwards (however grounds are combined). *So what is the implication of the pronouncement of the Constitutional Court? The court's pronouncement is legally enforceable regardless of whether Parliament has amended the position in Statute. One need only cite s.4 of the Act and explain that it is subject to the Constitutional court's interpretation.*

In **Dr. Specioza Wandira Naigaga Kazibwe v Eng. Charles Nsubuga Kazibwe (2003)**, the petitioner sought a decree nisi on grounds of adultery and cruelty. She presented her petition to the registrar of the court before the Court of Appeal had delivered its judgment in **Uganda Association of Women Lawyers & 5 Ors v AG**. She even then presented adultery and cruelty as separate grounds in her petition.

It was held (V.F. Kibuuka Musoke) that; -

- *After the decision of the Court of Appeal, each of the grounds for divorce specified in **Section 4 of the Divorce Act**, is available equally to both the husband and the wife.*
- *It also appears to me to be the law that both adultery and cruelty are distinctive grounds, each in its own right, upon any of which decree nisi may issue. The petitioner in this case, therefore, could obtain that remedy after proving to the satisfaction of this Court either the ground of adultery or the one of cruelty or both.*

In **Veronica Habyarimana v Perfect Habyarimana [1980]**, it was held that; -
“There is no definition of cruelty in the Divorce Act but case law has established that no conduct can amount to cruelty in law unless it has the effect of producing actual or apprehended injury to the petitioner’s physical or mental health”

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In **Kasasa v Kasasa**, [1976], it was held that; -

“There must be danger to life, limbs or health, bodily or mental, or a reasonable apprehension of it, to constitute legal cruelty.”

What does reasonable apprehension mean? It depends on the conduct. In **Colbeck v Colbeck** [1961], it was held that; - *I have no hesitation whatsoever in finding that the husband was guilty of persistent cruelty to his wife which took the form both of physical cruelty and of mental cruelty causing physical illness by his excessive drinking and by his general unkind and inconsiderate attitude towards her and, on occasions, his deliberate humiliation of her before strangers and subordinates... The grave nature of some of the assaults and the pointing on at least two occasions of a pistol at the wife and the placing by the husband of his hands round the wife's neck as though to strangle her with the result that she nearly lost consciousness leave me in no doubt whatsoever that the wife was in considerable fear of her husband.*

In **Veronica Habyarimana v Perfect Habyarimana** [1980] HCB 139, it was held that; - to constitute cruelty the conduct complained of must be serious. It must be higher than the ordinary wear and tear of married life. It is therefore the effect of the conduct rather than its nature which is of paramount importance in assessing the charge of cruelty and it must be proved that the respondent however mindless of the consequences has behaved in a way which the petitioner could not in the circumstances to be called upon to endure and that such conduct caused injury to health or reasonable apprehension of it.

In **Veronica Habyarimana v Perfect Habyarimana** [1980] HCB 139 it was held that; - “In determining whether conduct amounts to cruelty, the general rule as stated in **12 Halsbury's Laws of England at pp. 270-271** is as follows:

“The general rule in all questions of cruelty is that the whole matrimonial relationship must be considered and that rule is of special value where the cruelty consists not of violent acts but of injurious reproaches, complaints, accusations and taunts. Before coming to a conclusion the Judge must consider the impact of the personality and conduct of one spouse on the mind of the other and all incidents and quarrels between the spouses must be weighed from that point of view. In determining what constitutes cruelty regard must be had to the circumstances of each case, keeping always in view the physical and mental conditions of the parties, and their character and social status.

In **Habyarimana**, the respondent had assaulted, battered and abused the petitioner several times; he had also pulled the petitioner's hair and dragged her about the home sometimes with the remark, ‘Go and bring your parents so that they may help you’. He had also removed the children from the care of the petitioner and had on many occasions not provided the petitioner and the children with food. Court held that applying the principles and the law of the conduct of the respondent in this case in

relation to the petitioner, the court found that it had been proven beyond any doubt that the cumulative effect of the entire conduct of the respondent amounted to the matrimonial offence of cruelty.



In **Ruhara v Christopher Ruhara [1977] HCB 86**, it was held that; - scalding a person with burning oil would be a most cruel and brutal act and a clear injury to life and limb, and damage to a partner's personal possession has been held to be a version of cruelty and conduct which gives rise to apprehension of danger to life or limb and amounts to cruelty.

A single act of cruelty may suffice depending on the gravity of the matter. It has further been suggested that in deciding whether a particular conduct amounts to cruelty as a matrimonial offence, the whole matrimonial relations between the parties, the entire conduct, the personality and character and social status of the parties must be taken in account.

In **Kagimu v Kagimu**, *Conduct that is taken into account in determining what amounts to cruelty as a matrimonial offence*

The lack of intention to injure is not a defense.

Veronica Habyarimana v Perfect Habyarimana (supra)

Per Odoki J (as he was then):

"There is no definition of cruelty in the Divorce Act but case law has established that no conduct can amount to cruelty in law unless it has the effect of producing actual or apprehended injury to the petitioner's physical or mental health. There must be danger to life, limbs or health or mental, or a reasonable apprehension of it, to constitute legal cruelty (Kasasa v Kasasa Divorce Cause No. 13 of 1976 HCB 348)...To constitute cruelty the conduct complained of must be serious. It must be higher than the ordinary wear and tear of married life. It is therefore the effect of the conduct rather than its nature which is of paramount importance in assessing a charge of cruelty and it must be proved that the respondent however mindless of the consequences has behaved in a way which the petitioner could not in the circumstances be called upon to ensure that such conduct caused injury to health or reasonable apprehension of it...In determining whether conduct amounts to cruelty, the general rule is stated in 12 Halsbury's laws of England Vol. 3 pages 270-271 as follows: the general rule in all questions of cruelty is that the whole matrimonial relations must be considered, and that the rule is of special value when the cruelty consists not of violent acts but of injurious reproaches, complaints, accusations and taunts. Before coming to a conclusion, the judge must consider the impact of the personality and the conduct of one spouse on the mind of the other, and all incidents and quarrels between the spouses must be weighed from that point of view. In determining what constitutes cruelty regard must be had to the circumstances of each case, keeping always in view the physical and mental condition of the parties and their social character and social status."

In **Gollins v Gollins [1964]**, The husband did little or nothing to help the wife in earning a living for the family; he was incorrigibly and inexcusably lazy and that has been at the root of the whole trouble. The wife was an active and extremely capable woman who was often dunned by his creditors and she did pay a number of his debts. There was never any suggestion that he was deliberately trying to hurt her or that there were any violent quarrels. She did say that

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he was an arrogant and extremely bigoted and didn't think of anyone but himself. His debtors worried her to death and she said she couldn't stand any more of it. Her health began to be affected and she brought proceedings. It was a case of a husband fully responsible for his conduct, knowing that it was injuring his wife's health and yet persisting in it, not because he wished or intended to injure her, but because he was so selfish and lazy in his habits that he closed his mind to the consequences.

(Thus the husband's conduct reduced her to a physical and mental state where she would no longer be able to maintain herself or their children; in spite of his awareness of the consequences he chose to continue to sponge on her in selfish idleness). The question is whether she would be regarded as guilty of desertion if she left him or whether his conduct in such circumstances amounts to persistent cruelty? More precisely, the question was whether the husband's conduct was of a kind which can in law be called cruel and whether the law required an intention to injure before there can be cruelty?

If without just cause or excuse you persist in doing things which you know your wife will probably not tolerate, and which no ordinary woman would tolerate, and then she leaves, you have willfully deserted her, whatever your desire or intention may have been. If the conduct complained of and its consequences are so bad that the petitioner must have a remedy, then it does not matter what was the state of the respondent's mind.

Held that the presence of an intention to injure on the part of the spouse who is charged is not an essential ingredient in cruelty but where it's plainly proved that the spouse's normal mind and health has been reduced to ill health by the inexcusable conduct of the other spouse, although he knew the damage that he was doing or be it that he did not wish to injure the other spouse but closed his mind to the consequences of such conduct – amounts to cruelty.

Essential elements of cruelty:

- i) Injury or apprehended injury to health.
In **Gollins v Gollins**, it was held that; - *"In the light of that vital fact, the court has then to decide whether the sum total of the reprehensible conduct was cruel. That depends on whether the cumulative conduct was sufficiently weighty to say that from a reasonable person's point of view, after a consideration of any excuse which this respondent might have in the circumstances, the conduct is such that this petitioner ought not to be called on to endure it"*.
- ii) The other essential element is that the conduct must be grave and weighty.
In **Williams v Williams**, it was held that; - *"After making all allowances for his disabilities and for the temperaments of both parties, it must be held that the*

character and gravity of his acts were such as to amount to cruelty”.

The burden of proof lies on the petitioner to prove that the acts or conduct of the respondent amount to legal cruelty.



In **Gakwavu v Gasengayire** [1977] HCB 322, it was held that; - *in a petition based on cruelty, courts cannot examine every petty squabble in a marriage and build a case on cruelty. Court further emphasised the fact that the standard of proof is not beyond reasonable doubt as required in criminal cases, but like in adultery the standard of proof in cruelty is slightly higher than on a preponderance of probabilities required in ordinary civil cases.*

In **Colarosi v Colarosi** [1965] and **Musinga v Musinga** [1993], *by the nature of the conduct of the respondent, future cohabitation was impossible.*

In **Sheldon v Sheldon** [1966], *A young couple had a normal married life for eight years. Then the husband went off to Scotland for a year and thenceforth for six years persistently, without the least excuse, refused to have any sexual intercourse with the wife at all; he said that she ceased to be attractive to him. The House of Lords did not set any limits to the kind of conduct which may constitute cruelty. The categories of cruelty are not closed. The persistent refusal of sexual intercourse is not excluded. It may amount to cruelty, at any rate when it extends over a long period, and causes grave injury to the health of the other spouse. You must, of course, make allowances for any excuses that may account for it, such as ill-health, or time of life, or age, or even psychological infirmity. These excuses may so mitigate the conduct that the other party ought to recognize it and accept it. But if, after making all allowances, the conduct is such that the other party should not be called upon to endure it, then it is cruelty.*

However that no spouse would have any chance of obtaining a divorce on such a ground except after persistent refusal for a long period: and that it would usually need to be corroborated by the evidence of a medical man who had seen both parties and could speak to the grave injury to health consequent thereon.

It has also been suggested that where a spouse deliberately refuses to satisfy the other's natural and legitimate privy to his children and the deprivation reduces him/her to desperation and affects his/her mental health, that may be sufficient to constitute cruelty. **Knott v Knott**

Standard of proof of cruelty:

In **Ruhara v Ruhara** [1977], *the same standard of proof in cases of cruelty applies as for adultery. Corroboration is usually required whenever it can be obtained unless its absence can be satisfactorily accounted for, but it is a matter of practice and not essential in law.*

In considering the standard of proof in divorce cases, it is important to remember that it had been held by the House of Lords in Mordaunt v Moncrieffe that a suit for divorce is a civil and not a criminal proceeding. The stringency required to prove a crime in a criminal court is not necessarily called for in divorce suits, or, at any rate, in divorce suits on the ground of either cruelty or desertion, where the court is concerned, not to punish anyone, but to give statutory relief from a marriage which has irretrievably broken down. In a suit for divorce on the ground of cruelty the court should not

require any higher standard than that required by the statute, that is, that it should be ‘satisfied’ on the evidence, that the case for the petition has been proved”

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c) DESERTION

Desertion occurs where the spouse leaves the matrimonial home with an intention not to return and this continues for a period of time of two or more years. It can also take place where the parties still stay together in the same house or room.

A spouse may petition for divorce on ground of desertion by the other which must have continued for at least 2 years without reasonable excuse. In **Kazibwe v Kazibwe**, it was held that; - *The position of the law before the Constitutional petition... only judicial separation if wife was unable to prove other grounds.*

Desertion is not defined in the Act but case law has provided the various elements that may constitute the matrimonial offence of desertion.

- Departure or withdrawing from society of the spouse (*although both parties leave together under the same roof*).
- De facto separation of the spouses.
- Withdrawing from cohabitation on the part of the deserting party.
- An intention to depart for at least two years, *with an intention not to return (animus deserendi)*.
- The person deserted must not have consented to it.

In **Medcalfe v Medcalfe [1941]** it was mentioned that; - *In the 12th Edition of Lately on Divorce, the learned author says that there is no judicial definition of desertion that can be applied to meet the facts of every case, but it is in essence the abandonment of one spouse by the other with the intention of forsaking him or her without just cause. The party charged with desertion must have withdrawn from cohabitation contrary to the consent of the petitioner.*

In **Sickert v Sickert** it was mentioned that; - *“In order to constitute desertion there must be a cessation of cohabitation and an intention on the part of the accused party to desert the other. In most cases of desertion the guilty party actually leaves the other, but it is not always or necessarily the guilty party who leaves the matrimonial home. In my opinion the party who intends bringing the cohabitation to an end and whose conduct in reality causes its termination commits the act of desertion.*

The English meaning of desertion should be distinguished from the legal meaning.

Desev [1952] *Mere partial neglect of matrimonial obligations is not desertion parse.*

Perry v Perry (1952), *The parties were married in 1939. In 1951 the husband petitioned for divorce alleging that the wife had deserted him form 1944. In 1949 however, the wife had sought financial assistance from the husband and the husband thereafter visited her regularly and on each occasion he asked her to resume marriage life with him but she refused. On two or more occasions he had asked sex but on no occasion did the wife accept to return.*

Held: that although sex was an important incident to the marital relationship, an act or two or three acts of sex could not be regarded as proof of the presumption of marital relationships;

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where the wife although participating in such acts but in all other respects repudiates the relationship; and accordingly on the facts of the case, the wife had not assumed cohabitation so as to terminate the period of desertion.

Constructive desertion:

This is a creature of case law. Desertion may also be constructive and this is where a spouse conducts himself/herself in a manner which makes it impossible for the other spouse to continue living with him or her and thus forces the other spouse to leave the matrimonial home without his/her will. The spouse who remains in the home will be guilty of constructive desertion.

In **Pulford v Pulford [1923] Probate. p.18** *Court held that desertion is not necessarily withdrawing from the place/matrimonial home but from the state of things and that the test is whether the spouses are still living together as husband and wife.*

In **Winand v Winand [1948] 2 All ER 62** *The wife was more interested in cats than in the husband and she preferred sleeping in the same bed with them. The husband felt that he could not stay in the same house with the cats. Held that since the wife preferred the company of the cats to his, she had constructively deserted him.*

In **Bartholomew v Bartholomew [1952] 2 All ER 1035** *Wife refused to ever take a bath when husband came back from war and decided to clean children and wife refused to be cleaned. Husband deserted.*

In **W v W [1961] P.49** *A husband was convicted of incest with his daughter, F, one other offence with a daughter K, was taken into consideration, and he was sentenced to 18 months imprisonment. In June and July 1960, after his release from prison, he tried to effect a reconciliation with his wife, during the course of which acts of sexual intercourse took place. On Aug.4, 1960, the wife wrote a letter in marked contrast to an earlier friendly one telling the husband not to come any more in view of what he had done to K. Her evidence was to the effect that the letter was written because of certain information which she had received. On October 26, 1960, the Justices made an order in the wife's favour on the ground of constructive desertion and included a non-cohabitation clause. The husband appealed.*

Held: "I notice with approval that the Justices have already properly perceived that what they are dealing with here was not a simple case of one spouse leaving the other, but of the disruption of the marriage by conduct of a peculiarly gross and revolting character and they are quite right in treating that, as they do, as a case of constructive desertion." That the Justices were right in finding that the husband's conduct, even in the absence of persistence after protest, amounted to cruelty which justified the wife in excluding him from the matrimonial home, the husband was, therefore, in constructive desertion which was continuing at the time they made their order.

Desertion embodies four elements:

1) De facto separation.

It is not necessary to withdraw from a place but from a state of things i.e. it does not require physical movement from the house. This simply means that desertion can exist even when the parties are living under the same roof. In cases of de facto separation, there must be evidence of complete cessation of cohabitation otherwise partial neglect of obligation in marriage is not enough.

In **Pulford v Pulford [1923] Probate. p.18** *Court held that desertion is not necessarily withdrawing from the place/matrimonial home but from the state of things and that the test is whether the spouses are still living together as husband and wife. A mentally disturbed woman who was taken to Butabika for over 2 years. It was held that there was desertion.*

In **Perry v Perry 1952 1 All ER 1075**, the parties were married in 1939, and in May 1951, the husband presented a petition for divorce alleging that his wife had deserted him from July 1944, to the date of the petition. In December 1949, the wife asked the husband for financial assistance. He thereupon visited her and during the period from that date to March 1950, he went to see her once a fortnight. On each visit he asked her to resume married life with him, but she refused. On either two or three of these occasions he had sexual intercourse with her, as a result of which she gave birth to a child on 6 December 1950, but at no time did the wife resile from her firm and constant intention never to return to her husband.

Held, though sexual intercourse was beyond doubt a most important incident in the marital relationship, an act, or two or three acts, of intercourse could not be regarded as proof of the resumption of marital relationship where a wife, though participating in such acts, in all other respects repudiated the relationship, and, accordingly, on the facts of the present case the wife had not resumed cohabitation so as to interrupt or terminate the period of desertion.

In **Hopes v Hopes [1949] P 227**, H and W were occupying separate bedrooms. H petitioned for divorce on the ground of desertion. He argued that W had moved into a separate bedroom, sexual intercourse had ended and she failed to look after him. Evidence was given, however, that W cooked for H and his meals were taken in a common dining room with W and his daughters. It was held that there was no *de facto* separation and, therefore, no desertion. H's petition *failed*. Per Lord Denning: *"One of the essential elements of desertion is the fact of separation. Can that exist while the parties are living under the same roof? My answer is, yes ... It is important to draw a clear line between desertion, which is a ground for divorce, and gross neglect or chronic discord, which is not. That line is drawn at the point where the parties are living separately and apart. In cases where they are living under the same roof, that point is reached when they cease to be one household and become*

two households, or, in other words, when H and W are no longer residing with one another or cohabiting with one another.”



Where the spouses are living together in the same house, the test applicable in determining whether there is desertion is whether they are living as two households or as *one i.e. whether the spouses are living together as a married couple*. The petitioner in such cases must prove that all matrimonial services and any form of common life has entirely ceased.

2) *Animus deserendi* – intention to desert

It must be proved that it was the intention of the spouse to choose to remain separated permanently. If for example a party chooses to go and pursue further studies for a period of time, it cannot amount to desertion.

In **Crowther v Crowther [1951] 1 All ER 1131**, W filed a petition for divorce on the ground that H had deserted her in June 1948. H was detained in a mental hospital from 29 July 1948 to 10 October 1948, as a person of unsound mind. It was argued that, during H's detention, he lacked the capacity either to form or sustain the necessary *animus deserendi*, so that, effectively, he had not been in desertion of W for the necessary continuous period of three years immediately preceding W's presentation of her petition. The HoL heard the appeal and held that W had the right to be allowed to show that H was capable of possessing the appropriate animus deserendi throughout the appropriate period. She did not show this and her petition therefore failed.

Per Lord Reid: *“There are many degrees of mental incapacity and there appears to be no definition of that degree of mental incapacity which is necessary to justify a reception order. In the absence of such a definition it is not obvious to me that there cannot be a case where a reception order is justified, but where, nevertheless, the individual detained still possesses a mind capable of maintaining an animus deserendi. I am of opinion, therefore, that this wife ought to be allowed to prove, if she can, that this is such a case. I think that it can be taken to be common knowledge that persons so detained do not generally have such a mind, so, if it appears that the husband has been detained under a reception order, that does raise a presumption against the wife. I can see no ground for holding that it is more than a presumption.”*

3) Absence of consent on the part of the deserted spouse.

(Presence or absence of consent is strictly construed) Consent may be express e.g. by separation deed or even by judicial separation and it may also be by implication from the conduct of the parties. Consent should be freely given in order for it to be effective (and this is in effect of contract law – *consensus ad idem*) **Patel v Patel**

4) Absence of any reasonable cause for withdrawing from cohabitation on the part of the deserting spouse

As already noted, if the deserting party has a reasonable defence as to why they are moved to leave the consortium of their spouse, then there is no actionable desertion.



In **Quoraishi v Quoraishi [1985] FLR 780**, H and W, both Muslim citizens of Bangladesh, married in Karachi in 1964 and came to live in England. H went to work in Kuwait in 1979 and entered into a second marriage by proxy, according to Muslim law, with a Bangladeshi woman, hoping to have children. On his return to England, W asked H on several occasions to divorce his second wife. When he refused, W left him. Her complaint to the magistrates, alleging desertion, was dismissed on the ground that expert opinion, by which H and W had agreed to abide, stated that a Muslim wife had no cause of complaint regarding a second marriage. H petitioned in 1971 for divorce on the ground of W's desertion. His petition was dismissed and he appealed. It was held that it was the personal circumstances of H and W which were of significance. It is not necessarily the case in English law that a Muslim woman may not have a just cause for leaving her husband on the ground of a second marriage. H's appeal would be dismissed.

It is also worth noting that a resumption of cohabitation ends desertion. But as Lord Denning put it in **Bartram v Bartram [1949]** that once the period of desertion has begun to run, it does not cease to run simply because the parties attempt a reconciliation, a true reconciliation should be achieved.

In **Mummery v Mummery [1942]**, H, on active service in France, was evacuated in the retreat from Dunkirk (in May–June, 1940). The relevant period of desertion, upon which W's petition was based, would have terminated in April, 1941. In 1940, H called in to see W while on his way to stay at his grandmother's house. He spent one night with W, and the question arose as to whether the resumption of marital relations for that night was conclusive evidence of H and W having resumed cohabitation so as to bring the state of desertion to an end. It was held that termination of desertion depends on the intention of the parties. An act of sexual intercourse was not conclusive of the question of condonation, and W was entitled to her decree. Per Merriman P:

"It is clear beyond any possibility of argument that a resumption of cohabitation in the full sense of that phrase puts an end to a state of desertion, not merely because it condones a previous desertion for whatever period that offence has lasted, but also because a resumption of cohabitation is the precise negation of a state of desertion. The two things cannot exist together. In this case ... H had not the slightest intention of resuming cohabitation in the ordinary sense of the word ... It is plain that H resumed a state of desertion again the next day ... Does coming together for a single night raise an irrebuttable presumption that the parties have resumed cohabitation, even for that short time? Put in another way, does it raise an irrebuttable presumption that W, in consenting to that state of things, has condoned the previous desertion? I am bound to say that it would lead to an absurd state of things if one were bound to hold that it were so ... I think the law is that, as regards the wife at any rate, an act of sexual intercourse is not conclusive of condonation, and that it does not raise an irrebuttable presumption that cohabitation has been resumed."

In **Bartholomew v Bartholomew**, In Dec, 1945, the husband returned from war service and complained of the dirty condition in which the wife was keeping herself, the matrimonial home, and the children, and in March, 1946, he left, telling the wife that, if she failed to effect an improvement, he would not return. He complained that she failed to improve the conditions, and he refused to return to her. On a petition by him for divorce on the ground of constructive desertion,



Held – The fact that a wife was dirty in her person and her home was not of necessity evidence which showed that she wished to bring the matrimonial consortium to an end; she might be dirty because she was lazy or lacked energy; the conduct of the wife in the present case was not of such a grave and convincing character as to justify an inference of an intention by her to drive the husband away from the matrimonial home; and, therefore, she was not guilty of constructive desertion.

DENNING LJ. I agree. On the findings of the commissioner the wife was a lazy and dirty woman who did not keep the house or the children in a clean and proper state, so much so that on that account the husband left the house. That is not sufficient to make the wife guilty of constructive desertion. The essential element of intention is wanting. The wife had no wish that the husband should leave. There is no evidence that the wife intended to bring the matrimonial consortium to an end, and there is no ground for inferring any such intention. Without such intention constructive desertion cannot be found.

The law about constructive desertion was laid down by Bucknill J in 1938 in *Boyd v Boyd*, in terms which were quoted with approval by Lord Greene

MR in *Buchler v Buchler*, in the passage my Lord has read, and the judgment of Bucknill J was explicitly approved by this court in *Hosegood v Hosegood*.

The judgments in *Hosegood v Hosegood* were considered judgments, and I know that Bucknill LJ agreed with what I said about the nature of constructive desertion. *Winnan v Winnan*, in which the wife kept a large number of cats in the matrimonial home, must have depended on special evidence available to show that she intended to bring the matrimonial consortium to an end in that she preferred the cats to her husband. In the present case I see no evidence, and no ground for inferring, that the wife intended to bring the matrimonial consortium to an end. The real thing for the husband to have done would have been to buckle to himself and seen that the house and the children were kept in proper order. Instead of doing that, he left the house and his children, and was himself the deserter. Accordingly, I agree that the appeal should be allowed.

For desertion to be proved, several components must be proved:-

- The act must have taken place for two years or more.
- It must have taken place without reasonable or justifiable cause.
- Where the spouse left the home, s/he must have left without the intention to return to the home and without the other party's consent.

Desertion may fail where there has been unreasonable delay or condonation of the

other's behaviour or adultery by either the wife or the husband. Where a party is in desertion and the said party before the two years elapse makes a reasonable intention to return which is not refused by the other, the offer may be used to terminate desertion.



The burden of proof is on the party who alleges desertion; to prove that his spouse left his home without his consent and with no intention of returning and on such proof the evidential burden shifts to the respondent to prove that there was a reasonable and just excuse for his/her departure. This burden can be disproved if it is shown that s/he left home with a reasonable excuse. The burden shifts on the respondent to prove that there was a reasonable excuse for leaving the home. Desertion for two years can be a ground for an order of judicial separation.

Patel v Patel [1965] EA 560 *The husband petitioned for divorce on grounds of desertion. The wife admitted leaving the home but claimed that she had a just cause for doing so; she alleged neglect and cruelty on the part of the husband. She also alleged a bonafide offer by her to return home. It was held that a bonafide offer to return made before the filing of a petition would terminate desertion but on the evidence the wife had failed to discharge the onus of proving such an offer. Held that it isn't necessary to prove any matrimonial offence to excuse desertion. It is equally clear that desertion is not likely to be excused and the evidence raised by the wife was not grave and weighty that mere unhappiness therefore could not suffice.*

The mere fact that parties reside together does not exonerate the spouse from being in desertion of the other especially where there's no longer sexual intercourse between them.

Hutchinson v Hutchinson [1963] 1 All ER 1. *The husband was living apart from his wife and he agreed to resume cohabitation on the condition that there would be no sexual intercourse. The wife told him that she wasn't prepared to live with him on that basis and she applied for a separation order on grounds of desertion. The husband claimed that he did not want sex since he desired no more children and his affection had diminished.*

Held: that the husband's insistence on the refusal of sex as a condition for resumption of cohabitation when he was aware that the result would be that the wife would have refused to live with him constituted desertion on his part. Accordingly, the wife was entitled to a matrimonial order.

The above case was distinguished from:-

Biva v Biva [1945], *Where the refusal of the wife to permit sex to her husband was due to a repugnancy on her part which was equivalent to a structural incapacity and Court found that in those special circumstances, the husband was not justified in living apart from his wife in spite of denying him sex.*

Where the parties consent to separation and one spouse withdraws the consent in

appropriate circumstances, the continued absence of the respondent may constitute desertion.

- *Is it good law to retain the name of the husband during or even after desertion or*



separation?

- *Discuss the consequences of breaking a continuous period of desertion. Ascertain what amounts to breaking a continuous period of desertion.*
- *Need to revise the Divorce Act (Debate) 1964*
- *Divorce Act to accommodate other grounds for divorce*
- *Termination of contract of marriage, like any other contract (need for marriage contract)*
- *Must parties rely on the terms of the Divorce Act?*

However, where the spouse's refusal to have sexual intercourse is grounded on medical or biological reasons that may not constitute desertion.

In **Bevor v Bevor [1945] All ER 200**, *Court held that where a spouse has a structural incapacity that prevents sexual intercourse between her and the husband that does not necessarily amount to desertion.*

In **Drew v Drew (1888) 13 PD 97**, *In a wife's suit for dissolution on the ground of adultery and desertion, it appeared that the respondent when he left his wife said to her that he was going to Ireland for a week's shooting, but in fact he went to Australia to escape arrest on a charge of embezzlement. Up to the time of his flight he had been carrying on an adulterous intercourse with a woman with whom he had made arrangement to go away, and he was found living in adultery with another woman at Sydney. Subsequently he was brought back to this country in custody, tried, and sentenced to ten years' penal servitude. Held that the circumstances under which the respondent left his wife constituted desertion, and that the desertion would continue notwithstanding the fact that he was brought back to this country in custody and prevented by his imprisonment from returning to his wife.*

d) CHANGE OF RELIGION

Where one spouse converts to another religion without the consent of the wife for instance. She can petition for divorce, the rationale is that the two people are one and ought to agree on basic things. Religion not only affects the spiritual aspect of a person but even their perceptions and actions, different religions have different beliefs and this affects the other party if she has not consented. For example if the couple is a Christian and a spouse converts to Islam there are so many changes that will affect the other party for instance having four wives, failure to eat certain foods.

PROCEDURE FOR DIVORCE

S.30 Divorce Act CAP 249 is the law that regulates the procedure for divorce, i.e. “Subject to the provisions of this Act, all proceedings under this Act shall be regulated by the Civil Procedure Act” (and the rules made there-under).

- a) S.31 Divorce Act provides that proceedings are commenced by law of petition which must state the facts on which the claim is based and shall be verified by affidavit.
- b) The petition shall state that there is not any collusion or connivance between the petitioner and the respondent.
- c) Where there are children (issues of the marriage), the petition should indicate the names of the children and their ages.
- d) The petition should also indicate existence of a valid marriage and where it was contracted from.
- e) The petition should also indicate the grounds relied on
- f) The petition should indicate facts that confer jurisdiction upon the Court
- g) The petition may also include – prayers for maintenance and custody and distribution of property (and must indicate those properties) including company property e.g. shares.

James Rwabinumi v Hope Bahimbisomwe (CA No.30/2007) (Court of Appeal)

S.32 Divorce Act. The petition must be served on the party to be affected by it (Sermons to answer a petition). The party on who it is served is required to file a reply and he may also cross-petition.

S.34 – Husband and wife compellable witnesses. On any petition presented by a wife for the dissolution of her marriage on the ground of adultery coupled with cruelty or desertion without reasonable excuse, the husband and wife respectively shall be competent and compellable to give evidence relating to the cruelty or desertion.

S.35 – Sittings in camera. The court may hear the whole or any part of the proceedings under this Act with closed doors.

CONSEQUENCES OF DIVORCE

In a petition for dissolution of marriage the aggrieved party may claim for damages from any person on having committed adultery with his wife. Section 21-22, Uganda Association of women Lawyers.

Procedure for damage recovery, section 21(3) the court may direct that the damages be levied from movable and immovable property of the person ordered to pay for the benefit of the children and maintenance of the wife.



a) Custody

In a suit for dissolution of marriage, court may, or after a decree absolute has been pronounced make such orders as to custody and maintenance of young children.

In **Teopista Kayongo v. Richards**, it was stated that custody of children of tender years should stay with the mother unless she is not fit and proper.

In determining who should have custody of children, the welfare of minors is the paramount consideration. The court has to consider; who is the fit and proper person to take care of the interests of the minors.

Under **s.29 Divorce Act**, the Court may make an order for custody and maintenance and education of minor children or for placing them under the protection of the court – during proceedings for dissolution of marriage or judicial separation on or after a decree absolute has been pronounced. (See: Children's Act – children are below age of 18 years).

***Kayongo v Richards* [1978] HCB 240**

Held that custody of children of tender years should normally stay with the mother unless she is not a fit and proper person.

***Veronica Habyarimana v Perfect Habyarimana* [1980] HCB 139**

On the issue of the custody of the two children of the marriage the court was of the view that in such matters their welfare would be paramount. Nakagwa v Dominico Kiggundu [1978] HCB 315 and in the circumstances of the present case the welfare of the two children required that they be left with their mother. An order to that effect would therefore be made.

b) Maintenance

Where court has granted custody to any of the spouses, it may order the other spouse to provide for maintenance of the children. Nyakairu

The court can vary the order of maintenance on the change of economy. Section 29 “In suits for dissolution of marriage, or for nullity of marriage or for judicial separation, the court may at any stage of the proceedings, or after a decree absolute has been pronounced, make such order as it thinks fit, and may from time to time vary or discharge the orders, with respect to the custody, maintenance and education of the minor children of the marriage, or for placing them under the protection of the court.”

***Veronica Habyarimana v Perfect Habyarimana* [1980].** The respondent as a parent having a right of access to his child would be entitled to visit the children as often as he pleases

provided such visits did not unduly interfere with the welfare of the children and where necessary the children would be free to visit the respondent.



c) Alimony

According to section 23 of the divorce act, a wife whether or not she has obtained a protective order may apply to court pending suit and court may make such order as it may deem it fit and just except that the order should not exceed 1/5 of the average net income for three years next preceding the date of the order, i.e. *alimony pendente lite*.

Section 24 provides for permanent alimony where a decree absolute has been made, the court has to take into account the ability of the husband and the conduct of the parties. Court may direct either the alimony to be paid in lump sum, annually weekly or monthly during the life of the wife and depending on the ability.

The order of alimony may be discharged where there is a just cause i.e. inability of the husband to make continued payment, improved position of the wife. Once the court makes the order absolute and there is no appeal or the appeal has been dismissed or the time limit for the appeal has expired the parties may marry again as if the prior marriage had been dissolved by death. Section 40 provides that “*no clergyman in Holy Orders of the Church of Uganda shall be compelled to solemnise the marriage of any person whose former marriage has been dissolved on the ground of his or her adultery, or shall be liable to any suit, penalty, or censure for solemnising, or refusing to solemnise, such marriage.*”

d) Damages:

S.21(1) Divorce Act - In a petition for dissolution of a marriage, the aggrieved party may claim damages from any person on the ground of his having committed adultery with the wife of the petitioner. s.21(2) provides that such claim may be made either in a petition for dissolution of marriage or for judicial separation or by petition for that purpose only.

Loss of expectation: - Le Goyt v Le Goyt & Richardson [1950] 24 KLR 57

s.21(3) provides for recovery of damages. Court may direct that the damages be levied under a warrant on the movable or immovable property of the person ordered to pay and the damages may be ordered to be settled for the benefit of the children or maintenance of the wife.

e) Order of costs.

The correspondent may be ordered to pay costs of the proceedings if adultery with the wife of the petitioner has been established against him. However he shall not be ordered to pay the costs of the petitioner where: -

- If at the time of the adultery he had no reason to believe the respondent to be a married woman;
- If the respondent was at the time of the adultery living apart from her husband and leading the life of a prostitute.

In **Ruhara v Ruhara [1977]**, *It would not be usual practice of the court to condemn a wife in*

costs in matrimonial proceedings, except where it could be shown that she had sufficient separate estate. Accordingly the Chief Magistrate rightly ordered the respondent to pay costs.



f) Property:

s.26 Divorce Act – if a wife has been guilty of adultery, and she is entitled to property; court can order the whole or any part of it to be settled for the benefit of the husband or children of the marriage or of both.

s.27 Divorce Act – power of court to vary settlement for the benefit of the husband or wife or children if any, or of both children and parents, as seems fit, except that no order for the benefit of the parents, or either of them, shall be made at the expense of the children.

The general position of the law has been that where a spouse is able to prove financial or monetary contributions to the property acquired by the other spouse or by both of them jointly – the property is distributed according to the respective contributions.

In *Edith Nakiyingi v Merikizadeki* [1978], *The parties had married under customary law; later the defendant's father gave the plaintiff a kibanja upon which a house was put up through the contribution of both parties. The defendant bought some of the corrugated iron sheets which made the roof and tendered the kibanja and grew some crops on it. In 1972 the plaintiff terminated the marriage with the defendant due to some misunderstanding; he told her to leave his house but the defendant refused. Held on appeal:*

Since the plaintiff was the one that terminated the marriage, in the eyes of equity which the High Court is enjoined to administer, he could not chase the defendant out of the house to which she had substantially contributed to building and maintained for 12 years.

Although in law if A expends money on B's property, this does not give A any interest in such property, nevertheless the doctrine of equitable estoppel may apply if a wife had incurred expenditure in the property in belief 'encouraged' by the husband that she already owned or will be given some proprietary interest.

The court may impose a trust wherever it would be equitable for the estate owner to claim the property as his own. It is not necessary to establish any express or implied agreement or common intention that the wife made contributions to the family property with a view of acquiring an interest –
Haseltine v Haseltine [1971] 1 All ER 774.

Where the matrimonial home was beneficially owned by the husband and wife jointly, in equity or other shares under a trust for sale neither party was entitled as of right to expel the other and thus deprive him or her of his or her share.

At common law the husband has a duty to provide a home for his wife and unless the wife wishes to leave the matrimonial home or reasonable accommodation is provided for her or having considered all the circumstances, the court considers that a sale ought to be ordered, neither party to a jointly owned property may evict the other.

In the circumstances of the instant case, the house and the kibanja were jointly owned by the

plaintiff and the defendant under a trust for sale – the trust for sale having arisen out of the substantial contribution by the wife to the development of the kibanja and the building of the house and thus the plaintiff could not exclude the defendant from the enjoyment of their joint endeavour.



When property is registered in the husband's name the wife can claim ownership but where property is registered in a stranger's name, the wife cannot claim.

In ***Imelda Gertrude Basudde Nalongo v Tereza Mwemulize & Anor (2003)*** (*unregistered property – one can be evicted?*)

The applicant and the second respondent are legally husband and wife, while the first respondent is a sister in law to the applicant. The applicant left her husband and the couple has never cohabited ever since. The main remedy she sought was a declaration that the suit property was a matrimonial home for her and the second respondent and that she should not be evicted from that property upon that ground. The property in dispute was first bought under the RTA back in 1975 and registered under the mother of the respondents; it is currently registered under the name of the first respondent. There is no evidence to show that the second respondent either owns the property or is in possession of it. In the terms of the provisions of s.56 of the RTA, this court must conclude that the person whose name appears on the C/T is the owner of the property in question. Thus the claim by the applicant that the property is her matrimonial home has no basis whatsoever.

Even if it were true that the property were the matrimonial home of the applicant and the second respondent, the applicant would have no right to possession superseding that of the registered owner. The applicant having no apparent right to ownership of the property would at best have claimed to reside in the property merely as a licensee of her husband. Her rights as a wife to the second respondent for entitlement to a matrimonial home are personal rights. They are rights in personam. They do not extend against third parties. They would not constitute a genuine triable issue as against the registered proprietor. The decision in National Provincial Bank Ltd v Ainsworth [1965] 2 All ER 472 appears to me to constitute a good persuasive authority on this point.

In ***National Provincial Bank v Ainsworth [1965] AC 1175*** (*Compare with the decision in Imelda Gertrude Basudde and distinguish*). The position that when property is registered in the husband's name the wife can claim ownership but where property is registered in a stranger's name, the wife cannot claim - has been the subject of judicial consideration in the case of:-

In ***Julius Rwabunumi v Hope Bahimbisomwe***, The Court of Appeal held that Art.31 of the Constitution forms the constitutional basis for the rights of partners in any legal marriage in Uganda. The court held that the property acquired in anticipation of a marriage and during the marriage constitutes matrimonial property and it must be shared equally regardless of the contributions. (This applies to civil marriage; marriages contracted in Church; and does not apply to Islam or customary marriages).

g) Remarriage of the parties:

Under s.38, a decree absolute can be appealed against. However, if no appeal is made, or the appeal has been dismissed or the time limit for appealing has expired,

the marriage is legally

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dissolved and according to s.39 the parties are now free to marry again or remarry as if the prior marriage had been dissolved by death.

Time within which to appeal once decree absolute has been decreed: - Chief magistrate – 30 days; High Court – 14 days. (s.30 Divorce Act - Proceedings regulated by Civil Procedure Act)

Under s.40 – no clergy man of the Church of Uganda shall be compelled to solemnize the marriage of any person whose former marriage has been dissolved on the ground of his/her adultery.

ORDERS OBTAINED ON GRANT OF DIVORCE

First and foremost, the court grants divorce orders in two stages;

a) Decree Nisi

This is provided for under Section 37 of the Divorce Act. It is made after satisfying court that the alleged grounds in the divorce petition exist.

It is a form of interim order given as a step to give the parties some time to think about their course of action. It is a cooling of order.

Section.37(2) – the gap between decree nisi and absolute involves a waiting period which is intended to allow the parties to re-consider their petitions. It is when fresh evidence may be adduced to bar the granting of a decree absolute on grounds of collusion or by reason of material facts not having been adduced before court.

b) Decree Absolute.

Section 37(3) – if no evidence is adduced in then the decree will be made absolute. However, under Section 37(5) a petitioner must move court within a reasonable time that the decree nisi be made absolute and failure to do so may result in court dismissing the petition.

*In **Noegy v Noegy [1967]**, court held that; there is no power in Uganda for the courts to abridge the 6 months period provided for by the Divorce Act under s.37 between the decree nisi and decree absolute. That there is no power in Uganda for the court to abridge the six month period provided by the Divorce Act, s. 38 (1) between decree nisi and decree absolute.*

*In **Morrice v Morrice (1942)**, the applicant stated that he was a sick man and he had to leave the colony for treatment and that there was a lady willing to marry him and accept the responsibility of looking after him and even of becoming a guardian to his son in the event of his death. Court held that he had shown cause for granting an order for bridge of time between decree nisi and decree absolute.*

S.37(2) - During the 6-months waiting period, any person may show cause why the

decree should not be made absolute by reason of the same having been obtained by collusion, or by reason of material facts not having been brought before the court.



S.37(3) – On cause being so shown the court shall make the decree absolute, or reverse the decree nisi, or require further inquiry or otherwise deal with the case as justice may demand.

S.37 (5) – Where a petitioner fails to move within a reasonable time that the decree nisi be made absolute, the court may dismiss the suit.

c) Costs

Costs under Section 22 of the Divorce Act may be awarded by the Court if there was proved adultery on the respondent.

d) Alimony Pendant lite

This is an amount of money the court awards under Section 23 of the Divorce Act against the husband to pay to his wife for maintenance pending the final disposal of the suit. This sum shouldn't exceed a fifth of the husband's average net income in the last three years. The order continues in force until the decree is made absolute.

e) Permanent alimony.

This order is made pursuant to Section 24 of the Divorce Act. The order is made when the decree nisi is made absolute i.e. when the marriage is dissolved.

It can also be made during judicial separation.

The considerations the court looks into are as follows;

- The wife's fortune or economic standing.
- The ability of the husband to pay.
- The conduct of the parties.

The alimony could be in a lump sum or in installments and can be paid to the wife or a trustee.

This order can also be altered, modified or varied by the Court that made it. An example is the case of **Helen Monica Barrett v James Barrett [1961]** 1 EA 503 (HCU), where the petitioner sought to vary the order to include the maintenance of children. The court observed that the order was specifically made for the wife under S.25 of the Divorce Ordinance the current Section 24 of the Divorce Act and therefore it was personal to her and died with her but however, it was open for the petitioner to apply for an order for maintenance of the children under a different provision of the law.

DIVORCE UNDER CUSTOMARY MARRIAGE

A customary marriage is terminated according to the customs of a tribe or community

but such customs must be fair and just.

In **John Tom Kintu Muwanga v Myllious Gafabusa Kintu (supra)** it was stated by Justice SB Bossa that, when parties make a choice and opt to be governed by customary law in their marriage, they will be governed by the same rules. The rules of course subject to those rights guaranteed to them in the Constitution.



DISSOLUTION OF A CUSTOMARY MARRIAGE

Under customary law, divorce was rare because customary family law required that all people get married and it required that marriages be maintained. Many writers testify with the relative stability of marriages under customary law.

Reasons why marriage was stable:

- i) The universality of marriage: everybody was supposed to be married and alternatives to marriage were not allowed. People did not enjoy respect in society when they stayed single.
- ii) There was adequate preparation for marriage which ensured that when people got married, they were ready for the institution morally and psychologically.
- iii) Native religions idolized marriage: there were ceremonies like fertility rituals which would invoke the gods of fertility and therefore divorce or dissolution of the marriage was feared to bring the wrath of the gods.
- iv) There was family or community support and advice was given by the relatives and society at large. Many people were concerned about other marriages and could ask about the status.
- v) There was bride price which was a major stabilizing factor and had a collective element
i.e. it was usually contributed by the uncles, brothers and other relatives and payment of bride price was taken to be conclusive of marriage and it was difficult to refund bride price in order to have a proper divorce and in any case those who received it did not want to hand it back; this was one of the reasons why marriage had to be maintained.
- vi) Social status and personal integrity: there was no other social avenue to social esteem (respect) except by being and remaining properly married.
- vii) The acceptance of polygamy: marriage did not have to be dissolved because a man was allowed to have more than one wife.
- viii) The societies were relatively simple and there was consensus over basic values and because of the low levels of production, there were fewer contradictions in society and there were no competitive systems.

Grounds for divorce:

Divorce could be granted in very rare circumstances:

- i) Witchcraft: e.g. among the Bantu communities this was a serious offence and could be a ground for divorce.
- ii) Infertility on the part of the wife: if a wife failed to produce, her husband could

divorce her.

- iii) Incompatibility: this could take all forms including insult, nagging by the wife.
- iv) Laziness
- v) If one of the parties suffered from an incurable disease and there was generally a breakdown in the marriage.

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Procedures for dissolving a customary marriage under Customary law:

In explaining the law of divorce in customary marriages, intro should indicate that divorce in customary marriages is dependent on customs of a particular party. Then come to the position of the law.

The **Customary Marriages Act, CAP 248** is silent on how customary marriages are dissolved. This matter however has been discussed in:

- ***Aiiya v Aiiya (Divorce Cause No. 8 of 1973)***
Court said that customary law does not provide a procedure for dissolution of marriage and Court added that this lacuna in the law can be cured by invoking the Divorce Act.
- ***Bisanga v Bisanga Achilu [1976] HCB 282***
Court held that once a Customary law marriage is dissolved, the husband is entitled under the Teso customs to claim the return of dowry. The formal divorce may take a long time after the separation and it is signified by the actual return of dowry or on order for such a return. The return of bride price is evidence that the marriage has been dissolved and the claim is the full amount irrespective of the years that the couple had been married, the number of children produced or whose fault it was that led to the break up of the marriage.

It has been said that since the dissolution of customary law marriages was rare, there was no social need to lay down divorce procedures but where it happened, these are some of the steps to follow:

- i) Report to close relatives or the official in-laws. And if this failed, a report to the family council. The council would involve both families and their jurisdiction was never ousted and most people submitted to it although it was difficult for women to get dissolution unlike the men. The in-laws played a great role in the reconciliation of the parties and if all means of reconciliation failed, then bride price had to be returned.

Consequences:

There was a severance of the marriage bond but not the family relationships e.g. the death of relative of the divorced spouse would normally bring the couple together. Children had to grow up together and they normally stayed with the father because of the patrilineal nature of our societies. But the divorced wife and her relatives would go and visit the children as long as property and other things remained in the man's hands.

Changes which have impacted on customary marriages:

- i) Statutory law e.g. the Constitution: there are a number of customary practices which it has challenged e.g. Art. 36(6)
- ii) The repugnancy clause seems to be aimed at customary law i.e. the



- iii) The cash economy meaning people go out and earn a living on their own and they avoid depending so much on their families. Traditional families are no longer as influential as they used to be.
- iv) Foreign religions which have influenced marriage life and many of them condemn polygamy.
- v) The individualistic philosophy: people consider themselves as individuals and do not attach much importance to community values e.g. the **Bill of rights in the Constitution** emphasizes individual human rights although the **African Charter on Human and People's Rights 1981** attempts to restore the customary grill balance by doing away with individualistic tendencies. It provides in particular that individuals have a duty to their communities even if they have individual rights.
- vi) Woman emancipation (women liberation movement) and the adoption of Western values e.g. the number of children – some people do not want to get married, others do not want to get involved in polygamous relationships and all these developments have had an impact on customary legal life.

The question that arises therefore is whether customary law should be done away with or should some portion be preserved? There are a number of aspects that need to be preserved in customary law:

- i) The choice of partners – in traditional society, there was provision for enquiry and consultations before marriage.
- ii) The adequate preparation for marriage on both sides – included education on how to behave in the marriage.
- iii) The general upbringing of children – they belong to the society and were the responsibility of society. If a child was found in the wrong, it was punished by whoever found it.
- iv) The settlement of disputes – there were good settlement mechanisms and the first option was never divorce but reconciliation and restoration of peace.

Bride price:

It has been abolished in Tanzania since 1971. It is no longer a basic requirement although it is practiced. There are other areas that need to be streamlined including the grounds upon which a customary marriage should be dissolved; i.e. there should be a common ground for all marriages. Is it possible to have a customary monogamous marriage?

- *Ebulu v Ekwamu* [1982] HCB 43
- *Kimani v Gikanga*
- *UEB v Musoke*
- *Alai v Uganda*

- Ug. v Kunnimo Oliya and Anor (Criminal Revision NO. 10/1974)



DIVORCE UNDER ISLAMIC OR MOHAMMEDAN MARRIAGES

There are two forms of divorce under Islamic Law; -

1. Extra Judicial Divorces

Extra Judicial Divorce: There has been misconception about this form of divorce with some people feeling that it is very easy to divorce extra judicially under Islamic Law. However under Islamic Law divorce is discouraged and will only be allowed if the conditions are grave and weighty and even so divorce will be the last resort and reconciliation between the parties is encouraged. This reconciliation is provided for and where the conflict originates from the wife, her husband has the right to judge her, consider the wrong she has committed and make a decision. The husband is also supposed to guide her and show her that what she has done is wrong, and that she should not repeat it. If she repeats her actions, he may then resort to disciplinary action which is in 3 phases,

- He may start by kind exhortations or reprimands where he denies her a few necessities;
- He may then withdraw from the matrimonial bed however this should be of a temporary nature; and if this fails.
- He may undertake some symbolic beating but this should not be severe. At this stage he has the right to abstain from sex until the wife reforms.

When in conflict from the husband, the wife has to try and make peace with the husband and try to settle their differences. If all these fail two arbitrators from both sides are appointed to review the situation and to try and settle the dispute. It is only after this that the parties can then resort to divorce if the arbitration fails.

There are a number of extra judicial divorces that the parties can undertake.

- Under Islamic Law Divorce is of primarily three types. *Talaq*, which comprises of modes of divorce at the instance of husband. *Khula*, which is divorce at the instance of the wife and third is *Mubarat*, which is mutual consent divorce.
- *Talaq* itself is of three types. These are *Talaq Ahsan* and *Talaq Hasan*, both of which are approved by the Quran and Hadith and the third type which is *Talaq-i-Bidat*, which is neither recognized by the Quran nor the Hadith. Mulla's Mohammedan Law Section 311 explains the three types of *talaq* as follows:-

a) Talaq-i-Ahsan

Ahsan is a single pronouncement of *talaq* by the husband followed by a period of abstinence for the *iddat* period. *Iddat* period is equivalent to 90

days- i.e. three menstrual courses in case the wife is menstruating or three lunar months in case she is not. If there is resumption of cohabitation or intimacy within that period, the divorce is revoked. If there is no resumption, then the divorce becomes final on expiry of iddat/90 days.



b) Talaq-i-Hasan

Hasan arises if, after the first pronouncement as above, there is resumption of cohabitation within that month or a revocation. The first talaq is thereby revoked. Yet, after such intimacy, if during the second month there has been no intimacy the husband pronounces another 'talaq'. For the divorce to attain finality this is not sufficient-a further month has to pass and a third talaq has to be pronounced whether during or after the iddat. If after the third talaq is not pronounced- or there is resumption of cohabitation before the third talaq is pronounced, whether during or after iddat/three months, the divorce does not come into force. However, if the third talaq is pronounced the divorce is irrevocable. In sum Ahsan is one pronouncement of talaq followed by abstinence thereafter during iddat, whereas Hasan is three pronouncement one-each in three successive months interspersed with abstinence.

c) Talaq-i-bidaat

Talaq bid'a/ bidaat (innovated or not approved is instantaneous divorce). This form is not permitted by either the Quran the Hadith and is in fact contrary to quranic prescriptions. This practice can be traced to 2nd Century after the advent of Islam and is sought to be recognized only by few Sunni schools- the Hanafis most prominently. Even these schools that seek to recognize it, claim it as a sinful form of divorce and seek to justify it on the ground that "it is bad in theology but good in law". Talaq-i-bidat is also of two kinds- Uttered in one definitive talaq pronouncement such as "I talaq you irrevocably" or three simultaneous pronouncements i.e. "talaq, talaq, talaq" at one go, the divorce is said to be effected instantaneously and irrevocably. While both the types of talaq-i-bidat are colloquially referred to as triple talaq, the same is a misnomer because of two reasons. First, because Talaq-i-bidat can be effected by either three pronouncements or one pronouncement, as explained above. Second, because even Talaq Hasan has three pronouncements, the difference being that in case of Talaq Hasan these three pronouncements are interspersed in three 30 days periods, over a total of 90 days. Thus, the correct terminology for Talaq-i-bidat is instantaneous talaq and not triple talaq, which is a misnomer.

There are certain conditions to be fulfilled in order to make talaq complete and valid;

- a) The husband must be of age;
- b) He must be seen conscious alert and should not be angry;
- c) He should not be intoxicated;

- d) He should be free from external pressures;
- e) His intention to terminate the marriage must be clear.

On the part of the wife

- a) She should be of age;
- b) Must be in a healthy state of mind;
- c) Must be in a state of purity by which is meant that she should not have had any sexual relations with her husband and should not be menstruating.



The Marriage and Divorce of Mohammedans Act does not provide the grounds of divorce but the principles of Islamic law and some scholars have given some of the following grounds;

- a) Desertion by the husband for a period of 5 years;
- b) Failure of the husband to provide maintenance for a period of two years;
- c) Imprisonment of the husband for a period of 7 years.
- d) Failure of either spouse to perform marital obligations.
- e) Where the husband is either insane, cruel, impotent, suffering from leprosy or a venereal disease or where he is captured by war enemies.
- f) In cases of extreme or severe poverty.

2. Judicial Divorces.

Under Judicial divorce, when the divorce has been pronounced by court, both spouses are required to register under the Marriage and Divorce of Mohammedans Act and this should be done within one month of the pronouncement of the divorce. However failure to register will not invalidate a valid divorce or vice versa.

PROCESS OF FINAL DISSOLUTION OF MARRIAGE

Once the court allows the petition, it makes a decree nisi and the decree cannot be made absolute until the expiration of 6 months from declaration of that decree or longer periods as the Chief Justice may prescribe by rules.

In **Neogy v. Neogy**, it was held that there is no power in Uganda for court to bridge the 6 months period provided in decree nisi and decree absolute.

In **Morris v. Morris**, The 6 month period is for cooling after which either party can show why the decree should not be made absolute. Section 37

Where the petitioner fails to move the court within a reasonable time for the decree to be made absolute the court may dismiss the petition. Section 37(5)

a) Distribution of property

Section 26 provides for the settlement of the wife's property for the benefit of the husband and the children where the divorce is on the account of her adultery. Section 27 gives the court the power to vary settlements

In **Imelda Mwewulize**, the general principle of the law is that, where a spouse is able to prove financial or monetary contribution to the property acquired by the

other spouse or both of them jointly, the property is distributed in respective contribution.

However that provision has been subject of judicial consideration in the case of **Julius Rwabinumi v. Hope Bahimbisomwe**, the court of appeal stated that Article 31(1) forms the constitutional basis of the rights of partners in any legal marriage in Uganda. It further stated



that property acquired in the anticipation of marriage and during marriage constitute matrimonial property and must be shared equally regardless of the contribution.

NULLIFICATION OF MARRIAGE, WHEN MARRIAGE CAN BE NULLIFIED

Marriage is a legal union between man and woman. Once the couple is wedded either before church or registrar of marriages it is supposed to be permanent. However courts can nullify a marriage upon petition of either party i.e. husband or wife. The following are some of the instances when a marriage can be granted a decree of nullity

Impotence: Where the respondent was permanently impotent at the time of marriage the petitioner can be legally allowed to walk out of the marriage. One of the main reasons for getting married is to obtain conjugal rights, impotence prevents this from happening. A marriage is considered valid if its consummated.

Consanguinity: Due to migration, misunderstandings and other factors, people may not know all their kinsmen especially those that are so directly attached to them and as a result someone might marry his sister so where its discovered that the parties are within the prohibited degrees of consanguinity, whether natural or legal or affinity the marriage can be nullified.

Insanity: Where either party was a lunatic or an idiot at the time of marriage it might be nullified.

Today people are so involved in extra marital affairs at times they engage in them for fun without the intention of marrying the partners in crime but due to certain circumstances they decide to take the relationship to another level and they don't dissolve the previous. Unknown to the other, the prospective partner is actually married in the event that it comes to the attention of the affected party he/she can petition for nullity.

Impersonation/Identity theft: Where one of the parties impersonates another person/the intended groom or bride the marriage can be nullified. This is especially

so if they have an identical countenance. It is advisable to make sufficient inquiries about the person one intends to get married to for marriage is a life time.



THE BARS TO DIVORCE:

There are the factors which court may consider to refuse to grant divorce, they include absolute bars and discretionary bars (5,7,8,9,and 10 of the Divorce Act). Before court can grant orders to divorce or judicial separation. It must establish claims made by a petitioner and court also examines conduct of the petitioner. For the petitioner may have condoned the mis-conduct or forgiven the offender.

Under Section 7 and 8 (1) of cap. 249, if the court is satisfied that the petitioners case had been proved and does not find that the petitioner has been an accessory to or has connived at the going through of the form of marriage or the adultery or has connived at or condoned it or that the petition is presented or prosecuted in collusion, the court shall pronounced a decree nisi for the desolution of the said marriage. See judgement of V.F Musoke Kibuuka J. in a divorce cause No. 3 of 2003 of Dr.Specioza W. Naigaga Kazibwe Vs. Engineer Charlse Nsubuga Kazibwe (un reported) at page 8.

ABSOLUTE BARS TO DIVORCE

In a petition for divorce, the petitioner must prove not only prove marriage, domicile and ground for divorce but in addition must prove to the satisfaction of the court that he/she has not been accessory to or has not connived or condoned or the petitioner has not been prosecuted in collusion. That implies that where there is evidence of connivance, condonation or collusion even if the petitioner has satisfied the grounds the court may not grant the petition.

Under **Section 6 of the Divorce Act Cap 249**, the court is required to satisfy itself so far as it reasonably can as to the facts alleged and also whether or not the petitioner has been in any manner accessory to or conniving at the going through of the form of marriage or the adultery complained of, or has condoned it, and shall also inquire into any countercharge which may be made against the petitioner.

Under **Section 7 of the Divorce Act Cap 249**, the petition shall be dismissed if the Court is satisfied that during the marriage, the petitioner has been an accessory to or has been conniving at the going through of the said form of marriage or adultery or has condoned the same or the court finds that the petition is presented or prosecuted in collusion with either the respondent or co-respondent. Therefore absolute bars are three; Collusion, Condonation, and; Connivance.

Under **Section 8 of the Divorce Act Cap 249** provides that a petition shall be granted;-

- If the court is satisfied that the petitioner's case has been proved, and does not find that the petitioner has been accessory to or has connived at the going through of the form of marriage or the adultery, or has connived at or condoned it, or that the petition is presented or prosecuted in collusion, the court shall pronounce a decree nisi for the dissolution of the marriage.



- Notwithstanding subsection (1), the court shall not be bound to pronounce the decree if it finds that the petitioner has during the marriage been guilty of adultery, or been guilty of unreasonable delay in presenting or prosecuting the petition, or of cruelty to the respondent, or of having deserted or wilfully separated himself or herself from the respondent before the adultery complained of, and without reasonable excuse, or of such wilful neglect of or misconduct towards the respondent as has conducted the adultery.

a) **COLLUSION**

This simply means that the petitioner has setup evidence with the intention of obtaining the divorce.

It could also mean that the petitioner has authorised a matrimonial offence and this should be more in conduct than in words. That is, that the petitioner has made the circumstances conducive for the respondent to commit a matrimonial offence to warrant a divorce petition. It connotes an improper agreement or bargain by the spouses to the effect that one of them should bring proceedings against the other for purpose of obtaining divorce.

In **Churward v Churchward (1910) p. 195**, the petitioner declined to divorce his wife who wanted to marry the co-respondent until she had made a settlement in favour of the children of the marriage and she agreed to do so since she wanted to be released from the marriage, deposited some amount and the petitioner then filed his petition. It was held that this amounted to collusion. The court stated that there are two kinds of collusion, where the parties put false facts to facts to form the basis of judgement or where the parties put forward facts which are true but which have been corruptly pre-concocted to form the basis of the judgement.

In **Brine v. Brine, 1924 SA SR 432** Sir Francis defined collusion to mean an agreement express or implied between the petitioner and the respondent for the purpose of obtaining a divorce contrary to the justice of the case.

The reasonable inference drawn from the foregoing point is that the object of the agreement is to deceive or impose upon the court by way of evidence that false witness shall be supplied to the court or material fact withheld from it.

Proof of Collusion:

Stavridis v Stavridis (1970). So the intentional entering into an agreement for

consideration to withdraw a good defense constitutes collusion with intent to cause a perversion of justice. In order to prove collusion it is not necessary to establish that the parties were satisfied that such a defence would succeed. Nor of course is the motive of the parties material. *(In the present case I believe that the parties and their advisers all acted honestly and in good faith. The*



Matrimonial Causes Act and the rules there under encourage and indeed required parties to negotiate on questions of maintenance, settlement, custody, and the like. This fact has, as it seems to me, caused the solicitors for the parties to believe that it is proper to negotiate for the withdrawal of a defence for a consideration. In my view, this is not proper... I have no alternative, as it seems to me, but to find that there was an agreement that the respondent for consideration would withdraw a good defence. I find that collusion has been established.”)

In **Barlow v. Barlow, 1937 SA SR 246** it was stated that the test applicable to determine whether there is collusion, is for the court to find out whether there has been such an agreement in fact or not and it is a question dependent on the circumstances of each case. The mere fact that the respondent has not defended the petition is not enough to constitute collusion. In *Patel v. Patel*, the respondent sent a lawyer and said he had no ground for opposing the petition.

Where the petition is initiated, procured and conducted especially without being defended on the basis of an agreement between the parties and as a result relevant material is withheld from the court with the intention of facilitating a ground for divorce, such arrangement constitutes collusion.

Stavridis v. Stavridis, collusion may be inferred from the circumstances under which a petition is instituted. In **Gabric v. Gabric**, the court noted that there was collusion in the institution of a suit for divorce when the commencement of the suit was brought about by an agreement by the co-respondent to deposit a sum of money for the petitioner’s costs of suit and of obtaining evidence, and by an agreement by the respondent to supply an address where necessary evidence would be obtained, and the deposit and information were in turn brought about by an undertaking on the part of the petitioner not to seek custody or damages.

It is ordinarily enough to constitute collusion where the agreement between the parties prevents the respondent from asserting material facts which amounts to withholding substantial evidence from court. In *Hubbard v. Hubbard*, the court noted that there had been a bargain between husband and wife that the husband would not present his side of the facts so that an intended result was that the court would be deprived of relevant evidence which might affect its conclusion. The court further noted that this constituted to collusion with intent to cause a perversion of justice.

Where defence is abandoned for a consideration there is collusion as stated in *Grose v. Grose*, collusion would arise where parties agree not to urge a substantial and bonafide defence which would by virtue of that agreement, deprive the court of an opportunity of fulfilling its statutory functions of determining the issues involved and

which would lead to a decree or order being improperly obtained.

In **Shaw v. Shaw**, it was observed that where there is an agreement for consideration to withhold evidence, which if believed, would establish that the court had no jurisdiction to hear the suit, then that agreement would seem to be collusive.



It is also important to distinguish between the two types of collusive bargain. A collusive bargain which in the ordinary meaning of the word is corrupt, remains an offence legally and morally

e.g. procurement of a decree upon a false case or improper pressure by financial bribes or threats upon the spouse to bring a suit or abandon a defence.

The other collusive bargain depicted in *Nash v. Nash*, is a collusive bargain which represents an honest negotiation between the parties which is not intended to deceive the court either by putting forward false evidence or suppressing or withdrawing a good defence.

In **Colbec v. Colbec [1961] EA 431**, Where the petitioner is proved to have colluded in presentation of the petition, section 7 empowers the court to dismiss the petition. “The petition shall be dismissed if the court is satisfied that the petition is presented or prosecuted in collusion with either the respondent or co-respondent.”

Explain the principles underlying actual bars to divorce. When given a case, give brief facts of the case, issues and reasoning of the judge that gave the conclusion with judge in the statement given. Statement – go back to statement and ensure that you do not deviate from the statement.

Bars to divorce must be pleaded specifically:

Ross v Ross (Civil case No. 18/1951 – Nn.Rhodesia/Zambia)

Rayden on Divorce, para 5 pg.131 “It is submitted that if a respondent seeks to rely on any matter which is a bar to relief, whether absolute or discretionary, it must be pleaded specifically in the answer. But the fact that the matter is not pleaded does not relieve the court of the duty of taking notice, of investigating, and, if proved, acting on it.”

In the opinion of this court, it is clear from that passage and, in fact, self-evident that if the court becomes aware that there may exist a statutory bar to relief which had not been pleaded, it is the court’s duty to have this investigated to satisfy itself that it is not exceeding its jurisdiction by possibly granting a relief barred by statute. The practice in such a circumstance is for the issue in question to be notified by the court to counsel and pleadings ordered, if necessary. In this connection ...Court’s duty of investigation when there has been a possibility of condonation of the offence charged, a condonation which has not been pleaded because condonation, if it did exist, would be an absolute bar to the relief sought.”

b) CONDONATION

This means forgiving a matrimonial offence or turning a blind eye on it where a

spouse knows the other has committed a matrimonial offence and forgives expressly or by necessary implication and conducts himself in such a way that he believes that he is forgiven that amounts to condonation.

According to **s.9 Evidence Act**, adultery shall not be deemed to have been condoned unless
cohabitation or sexual intercourse has been subsequently resumed.



In **Moss v Moss [1916] Probate 155**, *Where a husband has been guilty of acts of cruelty to his wife which would be sufficient to entitle her to a judicial separation, the fact that she has condoned these acts by continuing cohabitation does not absolutely dispose of them. The condonation may be displaced and the cruelty revived by further acts of cruelty no in themselves sufficient to justify separation. If the Court consider the new acts, taken together with those condoned, justify the wife in a reasonable apprehension of bodily harm.*

According to **Mugonya v Mugonya (1975)** is a state of forgiveness and reinstatement to the former marital status where both parties forget the past and reconcile.

When a wrongful act most commonly a marital offence is committed by the spouse and the petitioner goes ahead and forgives or ignores it. He or she is barred from seeking to use the forgiven act as a ground for divorce.

In **Cramp v. Cramp (1920) P. 158** the decision in this case was that a husband who has sexual intercourse with his wife after knowledge of her adultery must be conclusively presumed to have condoned the offence. Mere forgiveness does not amount to condonation. For condonation to exist the forgiveness must be followed by cohabitation and the restoring of the offending party to their former position as husband or wife.

Similarly, in **Crocker v. Crocker (1921) P. 25** where a soldier who was serving overseas during the war wrote to his wife offering to forgive her for having committed adultery when he was away. The wife accepted the offer but on his return home he changed his mind and petitioned for divorce. It was held that there was no condonation because there was no reinstatement.

Commission of a further marital offence will revive condoned adultery or cruelty. That is where the respondent has committed adultery and cruelty which is condoned by the petitioner if the respondent commits another offence then the condoned offence will revive and the petitioner will be entitled to a divorce on the ground of the condoned act. **Beard v. Beard (1945) 2 All ER** and **Bertram v. Bertram (1944) P. 59**.

Christina D/O Hamis Vs Omari (1962) EA. 463. In this case the appellant was married to the respondent under Christian faith. The respondent married a second wife under Islamic Law. The first wife had stayed with the respondent for some time during his second marriage she later left the home for about a year and petitioned for divorce on ground of the husband's adultery. The trial judge found for the husband, holding that there was condonation. The wife appealed.

It was held *that there was adultery between the husband and the second wife since the marriage*

ceremony was valid. The wife's condonation related only to the adultery, which had taken place prior to her departure and not after her departure. Therefore she did not condone the subsequent adultery after her departure.



c) CONNIVANCE

Means that the petitioner has authorized or consented to a matrimonial offence, usually through his/her behavior than through words; denotes the situation where the petitioner has made the circumstances conducive for the respondent to commit a matrimonial offence such as adultery.

In **Godfrey v Godfrey [1964]**, Court stated that *where a man encourages or willfully consents to his wife's adultery, he is deemed to have connived and is guilty of wicked and disgraceful conduct – that he should not be allowed to complain of that or any subsequent adultery.*

Note that connivance may be express or by necessary implication; *for instance finding one's spouse kissing with another person and ignoring it or greeting and welcoming the person who you have found having sexual intercourse with your spouse, in your house.*

Ideally, this is forgiveness with corruption on one of the parties. According to **Gipps v Gipps**, *it is guilt of a corrupt intention of promoting or encouraging either the initiation or continuation of an act amounting to a matrimonial offence.* Connivance connotes behaviour of a person designed to cause his/her matrimonial spouse to commit a matrimonial offence such as adultery, this implies that the petitioner has consented to the matrimonial offence.

In such case the other spouse is an accessory to the matrimonial offence. If the court is satisfied of the evidence that the petitioner has been an accessory or has connived at the offence then it has to dismiss the petition. The principles as to what constitutes connivance were laid down in **Churchman v. Churchman (1945) P 44** it was stated as follows:- *“It is the essence of connivance that it precedes the event and generally speaking the material event is the inception of the adultery and not its reputation although connivance at the continuous of an adulterous association may show that the party conniving must be taken to have done so at the first. In this case it was stated that the material event is the inception of the adultery, that is when the petitioner first knew of the adulterous association, he must have connived for the adultery to happen.”*

In the case of **Douglas Vs Douglas**, In this case, the husband suspected the wife to have committed adultery to which she denied. In an attempt to prove this, the husband arranged a speaking apparatus in the kitchen so that he could hear what the wife and the co-respondent were taking. He also engaged injury agent and later made an excuse to absent himself from the house so that the agents could watch. The agent confirmed that they saw the wife committing adultery in the husband's absence. There was no evidence to show that the husband had done anything to bring about the adultery. *It was held that his search for proof did not amount to connivance to*

the adultery; nor did it create an opportunity to the adultery because he wasn't consenting to it but seeking proof for its existence. To obtain the proof court observed that the husband was entitled to do all this and that there was no corrupt intention to his part. In addition, the husband did not intend to encourage or promote adultery by absenting



himself on false excuses but he was merely seeking proof of what he had already believed to exist and he was entitled to redress from court.

In **Godfrey v Godfrey & Wall [1964]**, the court held that a husband petitioner was guilty of connivance at his wife's adultery. The wife told the husband that she was going to live with the co-respondent i.e. Wall. The co-respondent then came to stay at the matrimonial home. The husband one day after a drink or two came home and found the wife and co-respondent embracing each other. He then told them "**if you two want to go to bed together then why the hell don't you**" which is exactly what the wife and Wall proceeded to do. The next day the petitioner turned the co-respondent out and chased him out of the home but the wife and the co-respondent continued with the association and eventually the wife moved out to live with the co-respondent. When the husband petitioned for divorce on grounds of adultery the court in refusing to grant him the decree held that he had not shown that his initial connivance was not the effective cause of the subsequent adultery.

In **Godfrey v. Godfrey** it was stated that where a man wilfully consents to his wife's adultery, he is deemed to have connived and is guilty of wicked and disgraceful conduct that he should not be allowed to complain of that or any subsequent adultery.

In **Poulden v. Poulden**. In order for a petitioner to succeed, there must be evidence that the adultery originary being the subject of connivance is not the proximate cause of the subsequent adultery which is now the subject of consequent petition.

Court in Godfrey categorised connivance into two; the first and the most prominent being in regard to a position of a conniving husband. The court noted that a man who consents to his wife's adultery is guilty of that and subsequent adultery. The court however noted that it may be possible for such a husband to obtain relief on basis of subsequent adultery where he satisfies the court that the connivance was spent.

The maxim once connivance always connivance is no longer a valid representation of the law in so far as it doesn't accommodate exceptions otherwise, as long as the connivance is the proximate cause of subsequent adultery it is not spent.

The court must consider the conduct of the petitioner as a whole or for a reasonable time to ascertain whether there was wilful consent to future adultery.

It is also important to prove that the party condoning was aware of matrimonial offence being committed. In **Butch v. Butch**. The wife discovered that the husband

had relations with other women, in order to keep the marriage intact, she told the husband an isolated case of adultery between her and a Canadian, the husband left the matrimonial home and petitioned on the ground of the wife's adultery. **Issue**, whether the husband had condoned or connived on the wife's confession? **Held**, in absence of evidence that the husband was aware of the wife's adultery, it would not be said that the husband had connived.



DISCRETIONARY BARS TO DIVORCE

The court has powers to decide where the petitioner is at fault e.g. of adultery, or where the petitioner has taken too long or has reasonably delayed with presentation of petition or has been guilty of cruelty or desertion, the court shall not be bound to pronounce a decree. Section 8(2) of the Divorce Act *“the court shall not be bound to pronounce the decree if it finds that the petitioner has during the marriage been guilty of adultery, or been guilty of unreasonable delay in presenting or prosecuting the petition, or of cruelty to the respondent, or of having deserted or wilfully separated himself or herself from the respondent before the adultery complained of, and without reasonable excuse, or of such wilful neglect of or misconduct towards the respondent as has conducted the adultery.”*

Here the court may grant a divorce even if such a discretionary bar exists. This means that the petitioner may be themselves guilty of a matrimonial offence but he or she applies to court to exercise its discretion and overlook the petitioner's own matrimonial offence and grant a petition for divorce.

Section 8 (2) of the Divorce Act has some of these discretionary bars.

In **Binney v. Binney** the husband took no steps for divorce until his wife had been living with another man for 20 years and even so only petitioned for the purpose of freeing himself to marry another woman. It was held that there had been culpable delay and the petition was dismissed.

a) UNREASONABLE DELAY.

Delay that is unexplained may be fatal to a petitioner's relief and in **Johnson v. Johnson (1903)** it was stated that the reason why courts insist on steps being taken promptly are that it is a terrible thing that people should go around and about neither married nor unmarried possibly liable to contract fresh and illegal matrimony and certainly exposed to the temptation to commit adultery. The court is saying that once a marital offence has been committed then parties are in a state of limbo, they do not discharge their usual marital obligations and the temptation to commit adultery is there and that is why the court wants them to take steps promptly. In this case the fact that the respondent wife had become insane and had been in an asylum for many years and that the husband had been expecting release by her death was held to be a sufficient answer to a plea of unreasonable delay. In this case the wife just simply refused to die.

In **Prince V Prince [1942]**, the wife was living in the UK and petitioned for divorce on the ground of her husband's adultery. According to the petition, the respondent had been living with a woman X since 1936 and the petition was not filed until 1942. Her reasons was that there were difficulties experienced in obtaining satisfactory

evidence and postal delays in corresponding between England and Kenya in particular following the outbreak of the war and that he wasn't in position financially to proceed with the matter until the situation of maintenance was settled. Whether the petitioner had unreasonably delayed? Court held that each question on



what is unreasonable delay in presenting or prosecuting the petition must be dealt with on its own facts and merits taking into consideration all the circumstances of the case. In this case, the poverty of the petitioner, the long drawn out correspondence and later the difficulties of communication owing to the war. Although there was a great delay, it wasn't unreasonable. Divorce was granted.

In **Medcalfe v Medcalfe [1941]**, the issue was whether there had been culpable delay by the petitioner in presenting a divorce petition? The wife admitted that she had delayed to petition for divorce because she was waiting for the new law (Matrimonial Causes Ordinance) – to come into force. Her explanation was accepted as being reasonable and it was held that this was just delay.

However in:

Parker v Parker 20 (1) KLR 21, The petitioner filed a petition 16 years after the wife had left. He said he didn't have sufficient money to institute the proceedings. It was held to be a delay.

In **Binney v. Binney** the husband took no steps for divorce until his wife had been living with another man for 20 years and even so only petitioned for the purpose of freeing himself to marry another woman. It was held that there had been culpable delay and the petition was dismissed.

In **Stjernhom v Stjernhom (1955)**, Court considered where principles of unreasonable delay apply in cases of desertion and held that the statutory discretionary bar of unreasonable delay applies also in cases of desertion although the principles are different from the case of adultery. Court looks at the time when it must have appeared to the petitioner that reconciliation was not possible and then considers if after such a time, the delay was unreasonable.

In **Hyde v Hyde [1960]**, a husband filed a petition for divorce after desertion of 28 years. It was held not to be sufficient delay because at all times he had tried to prepare the marriage and he had been at most times a prisoner.

b) PETITIONER'S OWN ADULTERY UNDER SECTION 10 OF THE DIVORCE ACT.

This receives some special treatment because in most cases the petitioner's own adultery is a consequence of the respondent's conduct therefore the courts will look at the circumstances to gauge whether that adultery will bar the petitioner's petition.

In *Blunt v. Blunt* the court laid down the considerations that will be taken into account in exercising its discretion when a petitioner is guilty of adultery as follows:-

- The position and interest of any children of the marriage.
- The question whether if the marriage is not dissolved there is a prospect of reconciliation between husband and wife.



- The interest of the petitioner and in particular the interests that the petitioner should be able to remarry and live respectably.
- The interests of the party with whom the petitioner has been guilty of misconduct with special regard to the prospects of future marriage.
- The interests of the community at large to be judged by maintaining a balance between the sanctity of marriage and maintenance of a union which has utterly broken down.

In **Ker v Ker [1942]**, the court was satisfied that the respondent had been guilty of adultery on which he petitioned. The respondent had virtually left the petitioner and the latter made a full and frank confession of her own misconduct subsequent to the respondent leaving her. Held: this was a case in which the court should exercise its discretion???

c) CONDUCTING CONDUCT.

This is conduct which conduces the commission of a marital offence. Therefore cruelty, neglect, desertion or other misconduct towards a spouse who afterwards as a result commits a marital offence may bar the petitioner from obtaining a divorce. *Lander v. Lander* (1890) and *Dixon v. Dixon* (1952) classical decision where the wife refused to agree to intercourse until husband filed for divorce and it was held that the wife was guilty of conducting conduct.